

Voice or Veto? Participatory Procedure in Local Government

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Nowhere does American law demand more public participation than in local government. This reflects a powerful intuition that the government closest to the people should be the most open to them. Over the last century, the law has hardened this ideal into a thick machinery of mandated hearings and comment periods. This is especially true in land use. There, a proposal to develop a single apartment building can trigger more opportunities for public input and local veto than a major federal rule. This machinery is now under siege. Proponents of the “abundance” movement blame participatory procedure for a government that cannot build, prompting state legislatures to preempt local process wholesale. Yet the debate proceeds with almost no systematic evidence of what happens inside local meetings.

This Article supplies that evidence. It introduces one of the largest datasets on local democratic participation to date, including over 25,000 city council meeting transcripts across 115 California cities (2015–2024), with over 80,000 commenters linked to voter and property records. It uses that data to evaluate core theories of participation’s value and compare that value to theorized mechanisms of its costs. The results discipline both sides. Participants are drawn from a narrow and demographically skewed population. Commenters sometimes supply valuable local knowledge, but more commonly try to forecast long-term effects or describe broader neighborhood and system conditions that are more readily addressable in upstream planning. Meanwhile, the costs run through quieter channels than a direct “veto” implies. While outright project denial is rare, organized opposition is closely tied to long delays and negotiation of additional, potentially prohibitive conditions on development projects.

Voice and veto need not be so intertwined. Current law mandates participation most forcefully at the downstream adjudicative project approval stage, where the evidence suggests it does the most damage and the least democratic work. I argue that deliberative engagement belongs upstream, helping shape the rules and plans that govern projects in the aggregate, while downstream application of those rules should be made ministerial. The Article shows why exactions scrutiny under *Nollan*, *Dolan*, and *Sheetz* should not police that boundary, and why well-designed state preemption should instead.

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Appendix available at: <https://www.oliviahmartin.com/files/voice-or-veto-appendix.pdf>.

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Introduction

In May 2026, Marblehead, Massachusetts, held its 377th annual town meeting.¹ On the floor was the town’s third attempt to comply with the MBTA Communities Act, a 2021 state law requiring transit-served communities to zone for multifamily housing “by right”—that is, without discretionary, project-by-project review.² In order to comply, the town needed to designate a district where this zoning would apply. The town’s proposed district was drawn largely over the 125-year-old Tedesco Country Club.³ One resident asked the obvious question: “Are we kind of being pricks? We’re trying to make sure we build no houses?”⁴ The clip of his comment went viral, spawning its own genre of commentary, and the town ultimately approved the district.⁵

Three thousand miles away in Elk Grove, a Sacramento suburb, the same fight had already run its full course. In 2022, a nonprofit developer proposed the Oak Rose Apartments, sixty-six apartments of permanent supportive housing.⁶ The developer submitted its application under a 2017 state streamlining law providing for by-right approval that purportedly replaces discretion with a checklist of “objective” standards.⁷ Yet somehow, the checklist still became a hearing on whether those standards were met.

Residents raised safety concerns and the council denied what was supposed to be a non-discretionary project.⁸ The state’s response was swift. The Department of Housing and Community Development issued a notice of violation.⁹ In May 2023, the Attorney General filed one of the state’s first-ever lawsuits against a city for denying a housing project.¹⁰ When the council reconvened in September 2023 to reconsider the project under threat of judgment, public comment ran for hours. One resident suggested suing the state back. Another suggested initiating a referendum under the California Constitution. A third warned the council that “100% of the people here will vote you out if you do not fight for us today.” In the end, litigation broke the impasse.

¹ Jack Attridge, *Town Meeting Message*, MARBLEHEAD CURRENT (Apr. 27, 2026), <https://marbleheadcurrent.org/2026/04/27/town-meeting-message-from-moderator-jack-attridge/>.

² Will Dowd, ‘Are We Kind of Being Pricks?’: Resident’s Question Goes Viral as Marblehead Passes MBTA Zoning, THE MARBLEHEAD INDEPENDENT (May 5, 2026), <https://www.marbleheadindependent.com/are-we-kind-of-being-pricks-residents-question-goes-viral-as-marblehead-passes-mbta-zoning/>.

³ *Id.*

⁴ Jerusalem Demas, “Are We Kind of Being Pricks?”, THE ARGUMENT (May 11, 2026), <https://www.theargumentmag.com/p/are-we-kind-of-being-pricks>.

⁵ See, e.g., Christian Britschgi, *The Need for Prick-Proof Housing Laws*, REASON (May 12, 2026), <https://reason.com/2026/05/12/the-need-for-prick-proof-housing-laws/>.

⁶ Letter from Matthew T. Struhar, Deputy Att’y Gen., Cal. Dep’t of Just., to Bobbie Singh-Allen, Mayor, City of Elk Grove 1 (Mar. 16, 2023), <https://oag.ca.gov/system/files/attachments/press-docs/AGO%20Letter%20to%20Elk%20Grove%203.16.23.pdf>.

⁷ *Id.*; Cal. Gov’t Code § 65913.4.

⁸ The council reasoned that the area’s zoning reserves ground floors for commercial uses. Elk Grove, Cal., City Council Meeting (July 27, 2022) (transcript on file with author).

⁹ Letter from Matthew T. Struhar, *supra* note 6.

¹⁰ Press Release, Off. of Governor Gavin Newsom, Governor Newsom and Attorney General Bonta Announce a Lawsuit Against the City of Elk Grove for Violating State Fair Housing Laws (May 1, 2023), <https://www.gov.ca.gov/2023/05/01/governor-newsom-and-attorney-general-bonta-announce-a-lawsuit-against-the-city-of-elk-grove-for-violating-state-fair-housing-laws/> (alleging violations of SB 35, the Housing Accountability Act, and state fair housing law).

The city settled suits from both the developer and the state, and in May 2026, Elk Grove’s leaders gathered to break ground on the renamed Coral Blossom Apartments.¹¹

Marblehead and Elk Grove represent the front lines of a struggle between state and local governments over who controls housing approval. California’s legislature has passed dozens of laws over the past decade that chip away at local discretion, including streamlining laws, a battery of Accessory Dwelling Unit (ADU) statutes, and a revived builder’s remedy.¹² Massachusetts has built on decades of preemption with the MBTA Communities Act, the law behind the Marblehead debate.¹³ Oregon, Washington, Colorado, and Montana, among other states, have followed with regimes of their own.¹⁴ Even Florida passed a “Live Local Act” eliminating discretionary approvals for qualifying affordable housing.¹⁵ These fights are usually framed in preemption terms. Yet preemption of local control also overrides a deliberative *process*, and a central part of that process is a robust participatory infrastructure.

The case for locating land use decisions locally rests on local government’s unique responsiveness to ordinary residents. The commitment to participation runs to the foundations. The Standard State Zoning Enabling Act, the 1920s Commerce Department model that nearly every state copied, made the public hearing the primary procedural requirement for local zoning, arguing that “it is right that every citizen should be able to make his voice heard.”¹⁶ The result is one of the most elaborate participatory machineries in American government: oral, in-person, repeated, and open to anyone who shows up.

Participation is also a cornerstone of federal administrative law. Agencies that hear from all affected interests, the D.C. Circuit reasoned in *Sierra Club v. Costle*, govern with something like legislative legitimacy in the microcosm.¹⁷ That story is now under siege. Nicholas Bagley calls it a “procedure fetish”; the abundance movement blames participatory procedure for a government that cannot build; and a majority of the Supreme Court treats presidential control, not public input, as

¹¹ Idaly Valencia, *Affordable Housing Complex Breaks Ground*, ELK GROVE CITIZEN (June 2, 2026), <https://www.egcitizen.com/2026/06/02/573347/affordable-housing-complex-breaks-ground>.

¹² See *infra* Part III.B.3.

¹³ Mass. Gen. Laws ch. 40A, § 3A. The MBTA Communities Act extends a preemptive tradition dating to the 1969 Anti-Snob Zoning Act, which lets affordable-housing developers appeal local denials to a state board empowered to override them. Mass. Gen. Laws ch. 40B, §§ 20-23.

¹⁴ See, e.g., Colo. Rev. Stat. §§ 29-35-201 to -210 (2024) (H.B. 24-1313) (directing transit-oriented communities to zone for a state-set housing-opportunity goal near transit); Mont. Code Ann. §§ 76-2-304 (2023) (S.B. 323) (requiring cities of 5,000 or more to permit duplexes where single-family homes are allowed); Or. Rev. Stat. § 197A.420 (2023) (H.B. 2001) (requiring cities to allow middle housing, like duplexes and townhouses, on lots zoned for single-family use); Wash. Rev. Code §§ 36.70A.635-.638 (2023) (H.B. 1110) (requiring four to six units per lot near major transit in covered cities).

¹⁵ Fla. Stat. § 166.04151 (requiring municipalities to administratively approve qualifying affordable multifamily projects in certain zoned areas).

¹⁶ Anika Singh Lemar, *Overparticipation: Designing Effective Land Use Public Processes*, 90 FORDHAM L. REV. 1083, 1088 (2021); U.S. Dep’t of Com. Advisory Comm. on Zoning, A Standard State Zoning Enabling Act Under Which Municipalities May Adopt Zoning Regulations § 4 (rev. ed. 1926).

¹⁷ 657 F.2d 298, 400 (D.C. Cir. 1981) (“the very legitimacy of general policymaking performed by unelected administrators depends . . . upon the openness, accessibility, and amenability of these officials to the needs and ideas of the public from whom their ultimate authority derives”).

the administrative state's true democratic warrant.¹⁸ States now legislate under explicit "abundance agendas" implementing this critique, from California's extensive housing-and-permitting package to New York's "Let Them Build" program, writing the movement's premises into law.¹⁹

Whether and when participation merits its costs is an open question at nearly all levels of government, and especially at the local level. Almost no research systematically measures what happens inside local meetings at scale—what is said, by whom, and to what end—despite a legal regime that mandates participation in so many settings. The values attributed to local participation come from a sprawling set of disciplines, and the costs, meanwhile, are usually gestured at as "vetoes" and "delay," without distinguishing the mechanisms that produce them. Closing the gap in understanding both the alleged benefits and costs of participation is the work of this Article, and the evidence complicates both camps. The lesson is that participation is mandated everywhere and most forcefully at the project stage, where much of the information elicited is poorly matched to the decision and where participation appears to do the most damage. I argue that voice and veto are separable, and that deliberative, information-bearing engagement worth defending should be moved upstream to the rules and plans that govern projects in the aggregate, while the downstream application of those rules to individual projects should be made ministerial.

The Article makes four contributions. First, it catalogs the legal infrastructure that mandates local participation. Participation requirements accrete from independent sources such as zoning ordinances, open meeting laws, and environmental review statutes. Each requirement has its own history and logic, and they interact in undesigned ways. The composite is a regime in which a single apartment building can trigger more legally mandated opportunities for public input than a major federal rule, and in which the participation mandate, unlike its federal cousin, attaches with equal if not greater force to the adjudicative application of rules rather than their legislative creation.

Second, the Article disciplines a sprawling interdisciplinary literature on local participation into a framework with which evidence can engage. On the benefit side, I distill four primary theories of what participation is for: *preference elicitation* (hearings reveal what residents want), *information transmission* (residents hold local knowledge officials lack), *accountability* (participation lets the governed check the governors between elections), and *expression* (being heard has value and confers legitimacy, independent of outcomes). On the cost side, I distinguish four mechanisms by which the participatory process might impose costs: outright denial of projects, delay, costly conditioning, and litigation exposure.

Third, the Article introduces one of the largest and most comprehensive datasets on local democratic participation to date: over 25,000 city council meeting transcripts across 115 California municipalities from 2015 through 2024, comprising over 75,000 hours of recorded deliberation and over 80,000 public commenters linked to voter registration and property ownership records. The picture that emerges disciplines both sides of the debate. Participation is scarce and concentrated: Roughly 1.5 of every thousand registered voters speak at a council meeting in a given year, and a

¹⁸ See generally Nicholas Bagley, *The Procedure Fetish*, 118 MICH. L. REV. 345 (2019); EZRA KLEIN & DEREK THOMPSON, *ABUNDANCE* (2025); Brian D. Feinstein & Daniel E. Walters, *Valuing Administrative Democracy* 17-19 (Dec. 8, 2025) (unpublished manuscript), <https://ssrn.com/abstract=5876144> (citing the Court's recent removal cases as evidence of this presidentialist view of administrative legitimacy).

¹⁹ See *infra* Part I.C.1.

quarter of speakers account for 60 percent of appearances. The participants are unrepresentative of registered voters in terms of race, age, gender, and homeownership, and the racial gap persists even when comparing to voters in recent local elections. Participants do surface potentially useful facts, but the firsthand observations about the project site that provide the strongest case for localized expertise make up only a small share of what project hearings elicit. Much of the remaining information consists of forecasts or observations about broader transportation, housing, and neighborhood systems. Councilmembers then also only directly engage with about one in ten comments. And the costs of all this run through quieter channels than the word “veto” suggests. Outright denial occurs in only 3 to 5 percent of land-use votes, but organized opposition is strongly associated with delay and the types of conditions that get attached to projects.

Finally, the Article draws out the reform implications. The prescription is to reallocate thick, representative engagement to the legislative rule-and-plan stage, whereas the adjudicative project stage deserves ministerial application of law to facts. The Article also offers proposals for how—and how not—to tame participation’s costs in the meantime. The conditioning findings invite a judicial response under evolving property law principles, but I argue that exactions scrutiny under *Nollan*, *Dolan*, and now *Sheetz* is ill-suited—both doctrinally and institutionally—to policing this boundary. I argue that continued state preemption is better suited to this task, while pointing out the current statutes’ pitfalls.

The Article primarily develops this account through a study of California. Such a focus is necessary. Local governments are *local*—heterogeneous in institutions, politics, and housing markets—and claims about how participation works are challenging to test from thirty thousand feet of abstraction. California offers that depth at scale, with 483 cities, enormous internal diversity, and the nation’s most severe housing crisis.²⁰ And while California’s stack of participatory mandates is thick, the underlying institutions are fairly standard. The hearing requirements descend from the same Standard Act nearly every state adopted, the council-manager governments and planning commissions form the national template, and similar open meeting laws exist in all fifty states. Throughout, I compare California’s mechanisms and their contexts to counterparts in other jurisdictions, both to identify what is distinctive (or not) about California and to assess which findings extend beyond it. This approach uses depth within a heterogeneous state to surface generalizable lessons about participatory governance more broadly.

The Article proceeds as follows. Part I maps the legal infrastructure of mandated participation and develops the framework of four benefit theories and four cost mechanisms, drawing out the normative case for and against locating participation where current law puts it. Part II introduces the data and presents the empirical analysis: who participates, what they say, and to what effect. Part III returns to law, translating the voice-versus-veto account into concrete reform for state legislatures designing preemption, for cities redesigning their own processes, and for the scholarly debate over whether procedure can be democratic and government can still build.

²⁰ See Press Release, Cal. Dep’t of Fin., *Federal Policy Changes Constricting Legal International Migration Cause Slight State Population Dip in 2025* (May 1, 2026), https://dof.ca.gov/media/docs/forecasting/Demographics/estimates/E-1_2026_Press_Release.pdf.

I. How and Why We Have Local Participation

The local government participatory apparatus is large and old. This Part reconstructs the apparatus along two dimensions: what it is and what it is for. The first section maps the legal infrastructure of participation, starting with the universal open-meeting floor and building to a subject-specific superstructure that stacks hearing mandates onto particular decisions. The second section reconstructs the affirmative case as four distinct theories of what local participation is for. It elicits preferences; it transmits local knowledge that a capacity-strained government cannot generate on its own; it holds officials accountable by forcing decisions into public view and building the record a court later reads; and it confers expressive value on the speaker and legitimacy on the institution. Each theory implies its own standard of success, which Part II then takes to the data. The third section reconstructs the case against the participatory intuition, providing the critique now most associated with the “abundance” movement that procedure built to discipline government can instead disable it. I separate the critique into mechanisms through which participation can be most harmful in the housing space.

A. The Legal Infrastructure of Participation

Consider a proposed mixed-use housing project in a California city. Before the first shovel touches dirt, the project may trigger public hearings under the local zoning ordinance, a separate comment period under the state’s environmental law, a coastal development permit hearing if it falls within the coastal zone, and a public comment opportunity at the city council meeting, guaranteed by the Brown Act, where the project will ultimately be put up for approval. If the city is spending federal funds on related infrastructure, add an additional mandated citizen participation process. Each requirement originates in a different legal tradition, and yet many converge on the same institutional channel: a person standing at a podium, often in a city council chamber, speaking for about three minutes.

This sequence illustrates but one small corner of a broader participatory apparatus. The floor of this apparatus is set by open-meeting law, which guarantees a right to attend and speak before every local body, regardless of subject matter. A subject-specific superstructure then stacks statutory hearing requirements onto particular decisions, like zoning or environmental approvals. I take them in turn, beginning with the floor.

1. *The Open-Meeting Floor and Local Legislative Bodies*

Open-meeting laws guarantee any member of the public the right to attend meetings of the local legislative body, and in many cases, to speak.²¹ In most regions of the country, the city council

²¹ Many states affirmatively guarantee the opportunity to speak. *See, e.g.*, Cal. Gov’t Code § 54954.3(a); Fla. Stat. § 286.0114(2) (similar); 65 Pa. Cons. Stat. § 710.1(a) (requiring a “reasonable opportunity” for residents or taxpayers—though not the public at large—to comment); Tenn. Code Ann. § 8-44-112; Tex. Gov’t Code Ann. § 551.007(b) (requiring a governmental body to “allow each member of the public who desires to address the body regarding an item on an agenda . . . to address the body . . . before or during the body’s consideration of the item”). Other states guarantee only attendance. *See, e.g.*, Ariz. Rev. Stat. § 38-431.01 (public body “may”—but need not—“make an open call to the public”); Conn. Gen. Stat. § 1-225(a); Mass. Gen. Laws ch. 30A, § 20(a), (g) (meetings open to the public, but “[n]o person shall address

is the elected legislative body of the municipality.²² In California, most city councils are either five- or seven-person elected bodies with a member selected to serve as the “mayor”; in other words, the boundary between executive and legislative is blurry at best.²³

Every state has an open-meeting law.²⁴ California’s Brown Act is a particularly strong iteration. Passed in 1953, it applies to all local legislative bodies, which include city councils, county boards, school districts, and a wide range of special-purpose agencies.²⁵ It applies to meetings, defined broadly to include “asynchronous communications used to arrive at agreements to act.”²⁶ It requires that meetings be “open and public,” and that the public have an “opportunity ... to directly address the legislative body,” subject to “reasonable regulations,” including limits on each speaker’s time and total public testimony.²⁷ Closed sessions are permitted only for narrow categories of discussion like real property negotiations, pending litigation, and personnel matters.²⁸ The Act allows any “interested person” to seek mandamus, injunctive relief, or declaratory relief, and intentional violations can trigger misdemeanor liability.²⁹ Brown Act litigation often serves as a procedural

a meeting of a public body without permission of the chair”); Mo. Rev. Stat. § 610.015; N.Y. Pub. Off. Law § 103(a).

²² The plurality of municipal governments—48 percent—use the council-manager form, in which an “elected council or board and chief elected official are responsible for making policy with advice of the chief appointed official (e.g., administrator/manager).” Int’l City/Cnty. Mgmt. Ass’n, *2018 Municipal Form of Government Survey*, at iii, 1 (2019), <https://icma.org/2018-municipal-fog-survey> [hereinafter ICMA Survey]. The mayor-council form—an elected council serving as the legislative body and a separately elected mayor as executive—is next most common, at 38 percent. *Id.* In both, the city council is the legislative body. The council-manager form predominates among mid-sized cities, whereas big cities (over 250,000 in population) most often use the mayor-council, or strong-mayor, form. Author’s calculations using ICMA raw data. Council-manager governments are most common in the West (69 percent) and the South (64 percent); in the Northeast, a strong contingent of towns—24 percent—instead use the town-meeting form of government, in which qualified voters “convene and act as a legislative body that makes basic policy, votes on the budget, and chooses a board.” *Id.*; ICMA Survey.

²³ See Cal. Gov’t Code § 36801. For general law cities, the government is vested in a “city council of at least five members.” *Id.* § 36501. Cities can also decide to adopt an elected mayor system. *Id.* § 34900.

²⁴ Alex Aichinger, *Open Meeting Laws and Freedom of Speech*, The First Amendment Encyclopedia (Aug. 3, 2023), <https://firstamendment.mtsu.edu/article/open-meeting-laws-and-freedom-of-speech/>. The federal government also has its own Sunshine Act, 5 U.S.C. § 552b. But the federal law is much weaker than many state counterparts; it confers only a right of observation, applies only to meetings of multimember agencies, provides no remedy that invalidates agency action, and is generally read not to apply to exploratory or background discussions. See *id.*; *F.C.C. v. ITT World Communications, Inc.*, 466 U.S. 463, 469-473 (1984).

²⁵ Cal. Gov’t Code §§ 54951, 54952; Anne Richardson Oakes & Julian Killingley, *California’s Brown Act: Clearing the Smoke-Filled Room*, 58 CAL. W. L. REV. 1, 6 (2021). The Brown Act’s passage was catalyzed by a series of newspaper articles that “exposed the Bay Area government’s dismissive attitude to open meeting requirements and the tactics adopted to avoid them,” such as by re-labeling meetings as “caucus[es]” or “pre-council meetings.” *Id.* at 5-7. Note California has separate open meeting laws for local (the Brown Act) and state government (the Bagley-Keene Open Meeting Act). *Id.* at 9.

²⁶ Oakes & Killingley, *supra* note 25, at 10; Cal. Gov’t Code § 54952.2.

²⁷ Cal. Gov’t Code §§ 54953(a), 54954.3. The Act forbids barriers to attendance such as sign-in requirements. *Id.* First Amendment suits for speech limitations—e.g., commonly three minutes—have largely been unsuccessful. See, e.g., *Ribakoff v. City of Long Beach*, 238 Cal. Rptr. 3d 81, 99-103 (Ct. App. 2018).

²⁸ Cal. Gov’t Code §§ 54962, 54956.8, 54956.9, 54957.

²⁹ *Id.* §§ 54959-54960. However, prosecutions under the penal provision are rare. Oakes & Killingley, *supra* note 25, at 8.

vehicle for substantive disputes, with one recent survey identifying 136 appellate decisions implicating the Act between 1973 and 2021, most often involving real property disputes, employee discipline, and requests for mandamus.³⁰

These guarantees describe a right of access—but to what? Within a single city council meeting, public participation takes several distinct forms. All meetings provide some opportunity for general public comment during which any resident can speak for one to three minutes on any subject not already on the agenda. The council takes no vote and rarely speaks during this period. Routine business then moves through the consent calendar, which batches uncontroversial items like approvals of minutes and contract renewals into a single vote with no discussion, unless a member pulls an item out for separate treatment. Substantive policy is typically decided on the agendized discussion calendar, where the staff typically provides a report, the public can comment, and the council asks questions, deliberates, and often votes. Finally, some matters take the form of a formal, noticed public hearing where members make ex parte disclosures, opponents and the public testify, and the council deliberates and adopts findings. Rezoning, subdivisions, environmental determinations, and property-related fee adoptions typically arrive in this format. These formal hearings are also often where the participatory apparatus’s second layer attaches.

2. *Participation as a Code-Wide Procedural Reflex*

While this Article focuses on public participation in land use, the participatory impulse it studies runs through nearly the entire body of governance. To measure its full scope, I use an LLM-based tool, the Statutory Research Assistant (STARA), to conduct a systematic survey of the California statutory code, identifying every provision that mandates a public hearing, public comment period, or community-engagement opportunity in connection with a governmental proceeding or decision.³¹

California law contains over 2,400 such provisions scattered across 24 titles of the code. The top three sources are the Health and Safety Code (499 provisions), the Government Code (424), and the Public Resources Code (343). Sorted by substantive policy domain, land use (including planning and zoning) is the single largest domain with 252 provisions, more than local public finance (195), health and human services (192), and agriculture and open space (188). The most common participation format is an oral hearing (67%), followed by written comment periods (20%) and workshops (11%). Mandate growth accelerated in the 1970s, and the stock has continued to grow in recent years.³²

³⁰ Oakes & Killingley, *supra* note 25, at 19.

³¹ See Faiz Surani et al., *What Is the Law? A System for Statutory Research (STARA) with Large Language Models*, ICAIL 2025; Appendix § 1.

³² Repeal is generally rare. For the 2023-24 session, 222 of 9,684 (2.3%) of identifiable code-section actions were repeals. Author’s calculations from California Legislative Information Bulk Archive, pubinfo_2023.zip, <https://downloads.leginfo.legislature.ca.gov/> (sections designated as IS_REPEALED).

VOICE OR VETO?

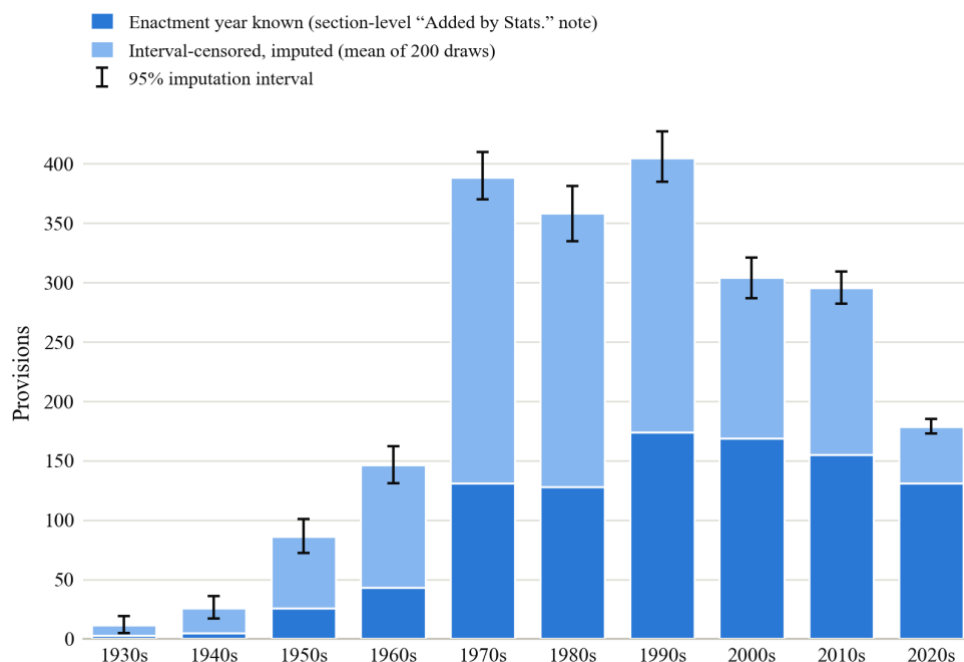


Figure 1: Enactment Decades of Participation Mandates³³

The breadth of the landscape is easiest to see at its edges. Public hearings are required to recalculate the rate paid to curbside recyclers for beverage containers³⁴ and to determine seasonal access to a single trail near Palm Springs.³⁵ The Government Code mandates that law enforcement agencies obtain approval through a public hearing before acquiring military equipment.³⁶ The Vehicle Code requires the DMV to hold hearings when establishing programs for alternative license plate devices, and requires the commissioner to hold public hearings before adopting noise standards for pneumatic tires.³⁷

Most of these hearings are triggered automatically as a default step in the proceeding, and nearly all are open to any member of the public. Nearly 60 percent of mandates attach to legislative acts adopting or amending a plan, program, or policy, and eight percent attach to functionally adjudicative proceedings involving penalties, license revocation, or individual applications. Overall, the public hearing arises as a default procedural setting in state law, attached to governmental decisions with little regard for whether it is the right instrument for the decision at hand.

³³ See Appendix § 1.2 for full dating methodology.

³⁴ Cal. Pub. Res. Code § 14549.5(c).

³⁵ Cal. Fish & Game Code § 1587.

³⁶ Cal. Gov’t Code § 7071.

³⁷ Cal. Veh. Code §§ 4854, 27503.

3. *Land Use as a Layered Participatory System*

As shown above, land use is where the participatory infrastructure is the thickest. Land use decisions stretch across a variety of different bodies and legal modalities. For housing, the two most critical bodies are the city council and the planning commission. Legislative acts like adopting or amending the general plan, rezoning, or approving a specific plan belong to the council.³⁸ Adjudicative acts applying existing standards to a particular parcel or applicant—like conditional use permits, variances, tentative maps, and design review—formally rest with an appointed planning commission.³⁹ Yet the council frequently enters adjudicative matters on appeal or through councilmember decisions to “call up” potentially controversial projects, and in practice, many cities route their largest projects to the council regardless of entitlement type.⁴⁰

Whichever body acts, the duty to hold a hearing typically accumulates from layers of law that developed separately and now operate together. The oldest and most familiar one is zoning. Zoning hearing mandates trace to the Standard State Zoning Enabling Act (the “Standard Act”), a federal model law published in 1924 that most states adopted in some form.⁴¹ The Standard Act’s participation requirement was minimal, requiring a single public hearing, with fifteen days’ notice, before adoption of or amendment to a local zoning ordinance.⁴² Modern zoning enabling acts generally require hearings not only for amendments to the zoning code, but also for variances, conditional use permits, subdivision approvals, and site plan reviews, each of which may trigger separate notice and hearing obligations.⁴³

Environmental review adds another layer, though not always in the form of a hearing.⁴⁴ In California, the California Environmental Quality Act (CEQA) applies to discretionary projects unless an exemption applies.⁴⁵ Its main participatory demands arise once an environmental

³⁸ Cal. Gov’t Code §§ 65354, 65356 (general plan: commission recommends, legislative body adopts); *id.* §§ 65853–65857 (zoning amendments); *id.* § 65453 (specific plans); *id.* § 65867.5 (development agreements are “legislative act[s]”); *see* Arnel Dev. Co. v. City of Costa Mesa, 28 Cal. 3d 511, 514, 517 (1980) (rezonings are legislative acts).

³⁹ Cal. Gov’t Code § 65101 (planning commissions); *id.* §§ 65901–65902 (use permits and variances decided by a board of zoning adjustment or zoning administrator, functions cities often assign to the commission); *id.* § 65906 (variance standards); *id.* § 66415 (tentative maps); design and site-plan review are creatures of local ordinance. When granting these entitlements, the commission acts quasi-judicially and must make findings bridging evidence and decision. *Topanga Ass’n for a Scenic Cmty. v. Cnty. of Los Angeles*, 11 Cal. 3d 506, 514–515, 517 (1974).

⁴⁰ Appeals to the council run under Cal. Gov’t Code §§ 65903–65904; “call-up” or “call for review” provisions are local and not state-mandated.

⁴¹ Lemar, *supra* note 16, at 1088.

⁴² *See* Standard State Zoning Enabling Act, *supra* note 16, § 4.

⁴³ Vicki Been & Anika Singh Lemar, *The Law’s Effects on Public Participation 2*, in *A RESEARCH AGENDA FOR US LAND USE AND PLANNING LAW* (John J. Infranca & Sarah Schindler eds., 2023); Lemar, *supra* note 16, at 1090–91.

⁴⁴ CEQA guidelines expressly say that the law “does not require formal hearings at any stage.” Cal. Code Regs. Tit. 14, § 15202. However, city councils are often the lead agency certifying environmental documents, a discretionary decision that is both (1) not exempt from open meeting requirements and (2) often subject to subsequent litigation, and so cities generally hold rather formal certification hearings to clarify their reasoning (and preserve it for the record). *Id.* § 15090.

⁴⁵ *See* Cal. Pub. Res. Code §§ 21080, 21152(b). Note that CEQA was significantly reformed in 2025 to exempt most infill housing projects. *See infra* Part III.B.2.

document is prepared. Draft Environmental Impact Reports (EIRs) must be circulated for public comment for at least thirty days, and agencies must respond in writing to timely comments on environmental issues.⁴⁶ So CEQA often stacks a comment period on top of zoning law, even where the hearing obligation itself comes from some other source.

Local governments then pile on further. Municipal charters and ordinances frequently impose additional hearings and create additional review bodies, such as planning commissions, design review boards, neighborhood councils, and community advisory committees, each with their own hearing and public participation processes.⁴⁷ State law sets floors but not ceilings on local participation requirements.⁴⁸

Federal funding conditions reinforce the same pattern. For example, local grantees under the Community Development Block Grant (CDBG) must have a “detailed citizen participation plan” and HUD rules require the jurisdiction to publish the proposed consolidated plan, allow at least 30 days for comments, consider comments and attach a summary of accepted and rejected comments, provide at least two public hearings per year, and respond to written complaints within 15 working days where practicable.⁴⁹

4. *The Political Equilibrium*

Formal mandates explain only part of how participation became so central to local governance. As Noah Kazis argues, participation might persist without any statutory requirements.⁵⁰ For example, transportation law generally does not mandate participation with the intensity of land use law; and yet, governments continue to “deliberately and voluntarily empower hyper-local voices.”⁵¹ In his account, neighbors are sufficiently incentivized to participate such that “they do not need any procedural encouragement,” and local elected officials are eager to “air out all controversy in a controlled setting before it is too late.”⁵² If this is true, cutting legal mandates may do little to reduce participation. But law does shape, at minimum, the *form* participation takes, and form matters. Informal participation—like a constituent calling a councilmember or a neighborhood association circulating a position—generates no exhaustion-of-remedies prerequisite, nor does it build a record for procedural challenge, nor does it trigger the litigation through which public comment exerts its sharpest discipline on government decisions. Formal, on-the-record comment does all three. The line between formal and informal participation is, in practice, the line between participation that carries legal consequences and participation that does not.

⁴⁶ Cal. Pub. Res. Code § 21091(a), (d).

⁴⁷ Been & Lemar, *supra* note 43, at 2 (citing as an example Minneapolis, Minn. Code of Ordinances app. A, tit. IX, § 1 (2022)). Palo Alto, for example, permits residents within 600 feet of a protected tree removal to request a public hearing to “review the urban forester’s decision.” Palo Alto, Cal., Mun. Code § 8.10.140.

⁴⁸ See Been & Lemar, *supra* note 43, at 8.

⁴⁹ 42 U.S.C. § 5304(a). The statutory basis for these requirements has left them unaffected by recent Trump Administration rulemaking on fair housing. See Affirmatively Furthering Fair Housing Revisions, 90 Fed. Reg. 11,020, 11,023–24 (Mar. 3, 2025).

⁵⁰ Noah Kazis, *Transportation, Land Use, and the Sources of Hyper-Localism*, 106 IOWA L. REV. 2339, 2360-66 (2021).

⁵¹ *Id.* at 2349.

⁵² *Id.* at 2362.

B. The Normative Case for Local Participation

The previous section illustrated the pervasive reliance in law on public participation opportunities as a procedural mechanism. But what exactly are these opportunities a mechanism *for*? This section disciplines the answers scattered across disciplines into four primary (though not necessarily exhaustive or mutually exclusive) categories. Participation elicits residents' preferences on questions elections are too blunt to resolve; it transmits local expertise a capacity-strained government might not be able to generate on its own; it holds officials accountable by forcing decisions into public view and building the record a court later reads; and it delivers expressive value to the person heard and legitimizing value to local government itself, independent of whether the first three obtain. Each subsection develops the theoretical case for each value, and asks what success might look like under each criterion. Those criteria then structure the empirical evaluation that follows in Part II.

1. Democratic Preference Elicitation

Elections are the textbook mechanism for eliciting and aggregating preferences, but they are a blunt tool.⁵³ A voter picks a councilmember once every few years, bundling policing, pensions, and potholes into a single choice. Local elections especially are low-turnout, low-information, and in most jurisdictions, nonpartisan, so voters lack even a party-label heuristic.⁵⁴

Public participation is supposed to help fill this gap. The most basic justification for requiring public comment, public hearings, and open meetings at the local level is preference elicitation. In other words, policymakers want to know what residents want on specific questions that elections cannot resolve, and residents want a channel through which to express those preferences.⁵⁵

The localism tradition predicts this elicitation should work with special force at the local level, for two reasons.⁵⁶ The first is appropriateness. Local governments make decisions about streets, policing, schools, and neighborhood characteristics, matters that bear on home and family in a way the diffuse questions of state and national politics often do not. Richard Briffault calls this the suburban model, where the locality stands in as protector of home and a haven from the world beyond its borders.⁵⁷ The second is feasibility. A smaller community shrinks the population denominator and hands each resident a larger share of influence, and a resident can participate in

⁵³ See generally ANTHONY DOWNS, AN ECONOMIC THEORY OF DEMOCRACY 49-50 (1957); DUNCAN BLACK, THE THEORY OF COMMITTEES AND ELECTIONS (1958); Timothy Besley & Stephen Coate, *Issue Unbundling via Citizens' Initiatives*, 3 Q.J. POL. SCI. 379 (2008).

⁵⁴ See David Schleicher, *Why Is There No Partisan Competition in City Council Elections?*, 23 J.L. & POL. 419, 419-28 (2007); David Schleicher & Nick Bagley, *The State Capacity Crisis*, 66 BOS. COL. L. REV. 2301, 2344-49 (2025); Sarah Anzia, *Timing and Turnout: How Off-Cycle Elections Favor Organized Groups*, 14 PERSP. ON POL. 875 (2016).

⁵⁵ See Carol M. Rose, *Planning and Dealing: Piecemeal Land Controls as a Problem of Local Legitimacy*, 71 CAL. L. REV. 837, 883-87 (1983); Been & Lemar, *supra* note 43, at 6.

⁵⁶ Zachary D. Clopton & Nadav Shoked, *Suing Cities*, 133 YALE L.J. 2540, 2585 (2024) ("One of the most important functions of local government is to advance democratic participation."); David J. Barron, *The Promise of Cooley's City: Traces of Local Constitutionalism*, 147 U. PA. L. REV. 487, 490 (1999).

⁵⁷ Richard Briffault, *Our Localism: Part II-Localism and Legal Theory*, 90 COL. L. REV. 346, 382-92 (1990); *Village of Belle Terre v. Boraas*, 416 U.S. 1, 9 (1974) (referring to the village as "a sanctuary for people"); Margaret Jane Radin, *Property and Personhood*, 34 STAN. L. REV. 957, 1013 (1982).

multiple settings, ranging from speaking at a planning commission hearing to emailing their representative, and reasonably expect to be heard at each.⁵⁸ The resulting ambition is that local venues are “open to all,” capable of registering and adjusting to residents’ preferences in ways higher levels of government cannot replicate.⁵⁹

For participation to perform well as preference elicitation, the democratic benchmark is whether those heard resemble those affected.⁶⁰ Participation is costly, requiring time, transportation, childcare, and a willingness to speak publicly, while its returns are uneven.⁶¹ Residents with moderate preferences rationally abstain, and the participating sample skews more extreme than the population it is drawn from.⁶² The two participatory institutions most like local public comment have used representativeness as a primary evaluation criterion. In voting, hundreds if not thousands of papers analyze the issue of unequal turnout, and millions if not billions of dollars have been spent to try to address turnout imbalances.⁶³ The notice-and-comment scholarship runs similarly in treating unrepresentative comment as a flaw to be fixed.⁶⁴

⁵⁸ The institutional architecture further shortens the loop. Most local governments lack formal separation of powers—the executive sits within the legislative body—so the legislature can respond quickly to administrative action. Nestor Davidson, *Localist Administrative Law*, 126 YALE L.J. 564, 600-01 (2017).

⁵⁹ Clopton & Shoked, *supra* note 59, at 2586; Gerald E. Frug, *The City as a Legal Concept*, 93 HARV. L. REV. 1057 (1980); Briffault, *supra* note 57, at 397.

⁶⁰ Taken seriously, the Tiebout model of local public goods might make representativeness beside the point because sorting into homogeneous polities would just be residents “voting with their feet.” Charles M. Tiebout, *A Pure Theory of Local Expenditures*, 64 J. POL. ECON. 416, 421-424 (1956). But Tiebout’s equilibrium assumes costless mobility, perfect information about locational differences, employment untethered to place, and—critically—no externalities from local decisions. None holds in practice.

⁶¹ Online participation options made broadly available during the pandemic should have reduced these costs and increased participation. In causal work on this matter, I find that this is generally true (with some noise), but that demographic composition is largely unchanged. *See infra* Part III.A.

⁶² *See* Martin J. Osborne, Jeffrey S. Rosenthal, & Matthew A. Turner, *Meetings with Costly Participation*, 90 AM. ECON. REV. 927, 937-38 (2000).

⁶³ *See, e.g.,* Arend Lijphart, *Unequal Participation: Democracy’s Unresolved Dilemma*, 91 AM. POL. SCI. R. 1 (1997); BERNARD L. FRAGA, *THE TURNOUT GAP* (2018); LISA GARCIA BEDOLLA & MELISSA R. MICHELSON, *MOBILIZING INCLUSION* (2012); NAACP, *NAACP Reached 14.5 Million Voters Through Historic \$20M+ Investment in 2024 Election—Building Black Political Power and Progress* (Nov. 5, 2024), <https://naacp.org/articles/naacp-reached-145-million-voters-through-historic-20m-investment-2024-election-building>.

⁶⁴ *See* Jim Rossi & Kevin M. Stack, *Representative Rulemaking*, 109 IOWA L. REV. 1, 3 (2023) (empirical studies consistently find rulemaking participation “deeply unrepresentative” across regulatory contexts); Susan Webb Yackee, *The Politics of Rulemaking in the United States*, 22 ANN. REV. POL. SCI. 37, 45-48 (2019) (higher influence by business interests); David Arkush, *Direct Republicanism in the Administrative Process*, 81 GEO. WASH. L. REV. 1458, 1491-93 (2013); Blake Emerson & Jon D. Michaels, *Abandoning Presidential Administration*, 68 UCLA L. REV. 104, 133 (2021) (group consultation); Bijal Shah, *Administrative Subordination*, 91 U. CHI. L. REV. 1603, 1659-89 (2024) (proxy representation for underserved interests). *But cf.* Steven P. Croley, *Theories of Regulation: Incorporating the Administrative Process*, 98 COL. L. REV. 1, 17-24 (1998) (arguing that skewed participation need not yield skewed outcomes); Cary Coglianese, *Citizen Participation in Rulemaking: Past, Present, and Future*, 55 DUKE L.J. 943, 958 (2006) (questioning whether broadening the participant pool via e-rulemaking meaningfully improves regulatory quality); Alexander Spangher et al., *DOCKET: A Pluralistic Benchmark for Evaluating LLM Policy Feedback* (June 2026) (unpublished manuscript) (finding that individual and advocacy organization comments outnumber those from industry among 8.27 million comments).

Representative voice is ultimately a proxy for ensuring that everyone with a real stake in the decision has a chance to be heard.⁶⁵ Measuring affectedness directly is rarely possible, because we do not observe the stakes or preferences of those who stayed home. The primary proxy the voting and participation literatures have long relied on is the *demographic* representativeness of participants relative to the eligible population. If the people who show up resemble the community, we have more reason to believe the preferences they express are at least plausibly representative of it. If they do not, we have a principled reason to worry, and a measurable place to look.

One might argue that representative voice is the wrong criterion. On this view, public comment is not a poll of community opinion. Its job is to surface the views of those with a real stake, allowing the cost of showing up to filter out those who are too indifferent to bear the cost.⁶⁶ The argument fails as a defense of unrepresentative preferences for three reasons. First, the screen is contaminated. Effort sorts for intensity only if the cost of participating tracks the stakes, and it does not; it tracks free time, a flexible schedule, freedom from childcare, English fluency, secure immigration status, comfort with procedure, and the rootedness of ownership at least as much as it tracks affectedness.⁶⁷ Second, affectedness is not adjacency. The affected class for a housing decision runs far wider than the parcel's neighbors, and much of it cannot be in the room. Renters across the region who would benefit from new housing, workers who cannot afford to live within a reasonable commute, and households paying higher prices because housing is scarce are all affected now. Yet their costs of participation are nearly prohibitive. Third, other domains do not treat costly participation as self-validating. In voting, for example, we generally treat low and uneven turnout as a distortion to be corrected, not as a sign that non-voters are content.

In land use, the skew of participation has a theorized direction. As William Fischel's homevoter hypothesis explains, the costs of a project concentrate on its neighbors while its benefits diffuse across the region and the future, so the residents with the sharpest and most reliable reason to participate are homeowners, whose largest asset sits beside the proposed change.⁶⁸ We would then expect commenters to look more like homeowners, who are generally older and whiter.⁶⁹

2. Objective Information Transmission

While preference elicitation asks whom the record represents, information transmission asks what it teaches, regardless of how representative participation is. Local officials often face real

⁶⁵ See Christopher S. Havasy, *Relational Fairness in the Administrative State*, 109 VA. L. REV. 749, 781-790 (2023).

⁶⁶ See George A. Akerlof, *The Economics of "Tagging" as Applied to the Optimal Income Tax, Welfare Programs, and Manpower Planning*, 68 AM. ECON. REV. 8 (1978). These arguments have, of course, drawn philosophical counterarguments. See Elizabeth S. Anderson, *What Is the Point of Equality?*, 109 ETHICS 287, 305-07 (1999) (relational-egalitarian objection to demeaning ordeals).

⁶⁷ These costs also often fall hardest on those least equipped to bear them. See, e.g., Manasi Deshpande & Yue Li, *Who Is Screened Out? Application Costs and the Targeting of Disability Programs*, 11 AM. ECON. J.: ECON. POL'Y 213 (2019); PAMELA HERD & DONALD P. MOYNIHAN, ADMINISTRATIVE BURDEN: POLICYMAKING BY OTHER MEANS (2018).

⁶⁸ WILLIAM A. FISCHEL, THE HOMEVOTER HYPOTHESIS: HOW HOME VALUES INFLUENCE LOCAL GOVERNMENT TAXATION, SCHOOL FINANCE, AND LAND-USE POLICIES (2001).

⁶⁹ See U.S. Census Bureau, *Homeownership by Selected Demographic and Housing Characteristics* (Oct. 8, 2021), <https://www.census.gov/data/tables/time-series/dec/coh-ownerchar.html>.

uncertainty about conditions that residents may know firsthand, like where flooding recurs or which intersection has dangerous blind spots. Cities vary dramatically in their capacity to resolve that uncertainty internally.⁷⁰ For example, Palo Alto spends over four times as much per capita as neighboring East Palo Alto, Fremont, or San Ramon.⁷¹ A city with robust staff (and consultants) can, in principle, generate the information it needs to make quality decisions internally. The capacity that bears most directly on land use is thinner still. Planners, building officials, and engineers together make up under seven percent of municipal staff statewide, and that capacity scales steeply with a city's income.⁷² For lower-capacity cities, residents may be the cheapest available source of decision-relevant facts about local conditions. Even in well-resourced jurisdictions, however, local capacity remains structurally thin by federal administrative-law standards. The body reviewing a 200-unit building is often a part-time council or commission meeting on a weeknight, with no municipal Congressional Budget Office to score fiscal effects and no local Government Accountability Office to audit the staff report.⁷³

The informational rationale rests on a Hayekian premise that knowledge relevant to land-use decisions is often dispersed, particular, and held by people who live with local conditions.⁷⁴ Nestor Davidson describes local agency expertise as aggregative, collecting and mediating place-specific information rather than deriving policy from a distance.⁷⁵ Carol Rose similarly frames local land-use institutions as mediated channels for intensely personal, place-specific knowledge.⁷⁶ What residents supply on this account is situated knowledge—like where many almost-accidents may occur or where drains are frequently clogged—that might be individually mundane, but collectively informative. Federal notice-and-comment rests similarly on the idea that regulated firms and advocacy groups may possess information the agency cannot easily generate itself.⁷⁷ But the analogy is partial. Federal commenters are often sophisticated repeat players submitting technical data to an expert agency; local commenters are typically lay residents reporting lived observations to part-time officials.⁷⁸

⁷⁰ See Davidson, *supra* note 58, at n.141 (2017); Michelle Wilde Anderson, *The New Minimal Cities*, 123 YALE L.J. 1118, 1129-51 (2014).

⁷¹ Author's calculations from 2022 Census of Governments Data (Palo Alto: \$6,417 per capita; Fremont: \$1,571; East Palo Alto: \$1,317; and San Ramon: \$1,222).

⁷² Author's calculations from the 2024 Government Compensation in California data (California State Controller) merged to 2023 ACS five-year median household income. The four largest functions (police, fire, public works, parks) account for about 65% of municipal staff. Per resident, the highest-income quintile of cities employs roughly twice the planning and building staff, and three times the engineers, of the lowest, while police staffing differs by under 10% across the income distribution.

⁷³ See Kellen Zale, *Compensating City Councils*, 70 STAN. L. REV. 839, 851 (2018); Bagley & Schleicher, *supra* note 54, at 2306.

⁷⁴ See F.A. Hayek, *The Use of Knowledge in Society*, 35 AM. ECON. REV. 519, 520-26 (1945) (arguing that decisionmaking depends on knowledge “dispersed among many people,” including “knowledge of people, of local conditions, and special circumstances”); see also Lea S. VanderVelde, *Local Knowledge, Legal Knowledge, and Zoning Law*, 75 IOWA L. REV. 1057, 1057-63 (1990).

⁷⁵ Davidson, *supra* note 58, at 616.

⁷⁶ Rose, *supra* note 55, at 887-93.

⁷⁷ See, e.g., Wendy E. Wagner, *Administrative Law, Filter Failure, and Information Capture*, 59 DUKE L.J. 1321, 1330-42 (2010) (also noting the dangers of excessive information, or “information capture”).

⁷⁸ See, e.g., Rossi & Stack, *supra* note 64; Yackee, *supra* note 64; Spangher et al., *supra* note 64 (observing that repeat players often raise more technical concerns related to economics, health, or science).

At a theoretical level, local comment may partially satisfy this informational rationale. Some testimony conveys concrete, verifiable observations, but other claims are predictions about counterfactual futures—that a project will worsen traffic or depress property values.⁷⁹ Those claims come from interested speakers, and the decisionmaker must separate observation from conjecture. Strategic-communication theory suggests that this task is easiest when claims are verifiable, the speaker's bias is known, and opposing interests force each side to reveal what the other would omit.⁸⁰ Local land-use hearings only sometimes have these features. Nearby opponents often appear in force, while developers and diffuse beneficiaries appear less often, though pro-housing organizations provide a partial and geographically uneven corrective. And the novice decisionmakers who most need outside facts are often least equipped to evaluate them.⁸¹ The key questions for evaluation are therefore what information participation adds, whether government already possessed it, whether it is appropriately matched to the decision at hand, and whether officials use it.

3. Accountability

If preference elicitation asks whom the record represents, and information transmission asks what it teaches, accountability asks whether participatory decisionmaking creates consequences for official misconduct, bias, or neglect. Open meetings supply the first condition, a decision made in public view, but visibility alone does little unless someone monitors what officials do and has some way to respond. Accountability requires that decisions be observable so someone can notice a problem and that some mechanism—whether elections, litigation, or the press—can impose a consequence.

Monitoring is canonically achieved through elections, which provide a threat of removal.⁸² But that discipline depends on information and competition, both of which are often lacking at the local level.⁸³ Law has built a supplementary accountability apparatus between elections. Open-meeting laws force decisions into public view, while due-process review allows courts to undo decisions reached through bias, prejudice, or irregularity.⁸⁴ California's Brown Act specifically grew out

⁷⁹ See Lemar, *supra* note 16 at 1121 (documenting testimony that routinely contradicts engineering reports and forecasts that later evidence proved wrong). There is also evidence that lay predictions may be grounded outside of economic reality. See Chris Elmendorf, Clayton Nall, & Stan Oklobzija, *The Folk Economics of Housing*, 39 J. ECON. PERSPECTIVES 45, 53 (2025) (finding that roughly a third of residents expect a large increase in regional housing supply to raise prices, not lower them).

⁸⁰ See Paul Milgrom & John Roberts, *Relying on the Information of Interested Parties*, 17 RAND J. ECON. 8 (1986); Vincent P. Crawford & Joel Sobel, *Strategic Information Transmission*, 50 ECONOMETRICA 1431 (1982) (without such verification, communication can collapse into cheap talk).

⁸¹ Lemar, *supra* note 16, at 1146 (arguing that land-use hearings operate more like jury than bench trials).

⁸² See generally Robert J. Barro, *The Control of Politicians: An Economic Model*, 14 PUB. CHOICE 19, 19-20, 26-29 (1973); John Ferejohn, *Incumbent Performance and Electoral Control*, 50 PUB. CHOICE 5, 6-8 (1986); Scott Ashworth, *Electoral Accountability: Recent Theoretical and Empirical Work*, 15 ANN. REV. POL. SCI. 183, 183-84 (2012).

⁸³ Local elections are often low turnout, have low media coverage, and are usually non-partisan, so voters lack party labels to use as heuristics. See Zoltan L. Hajnal & Paul G. Lewis, *Municipal Institutions and Voter Turnout in Local Elections*, 38 URB. AFF. REV. 645, 645-46, 655-56 (2003) (documenting low turnout in mayoral and city council elections); *supra* note 54.

⁸⁴ See *Clark v. City of Hermosa Beach*, 56 Cal. Rptr. 2d 223 (Ct. App. 1996) (finding a violation of state fair hearing standard where a neighbor-turned-councilmember sat in judgment but no federal due process

of a 1952 news series documenting how elected bodies evaded scrutiny, relabeling meetings as private “caucuses” to keep decisions off the public record.⁸⁵ Beyond observability, participation works as a fire alarm: Self-selected residents are the decentralized monitors that review the thousands of decisions no court, reporter, or voter could directly patrol.⁸⁶ And it builds the record by preserving objections for future reversal.

Participation succeeds on this dimension if visibility deters misconduct, a claim transcripts alone cannot test. What they can address is a comment’s marginal contribution. Oral comment operates alongside a broader accountability apparatus of record requests, state audits, private litigation, and Attorney General enforcement, where capacity is often thinner but whose scrutiny is more neutral. Comment’s distinctive offer is abundant, decentralized monitoring, contemporaneous with the decision, supplied by self-selected and interested parties.⁸⁷ Whether that adds anything turns on what commenters actually surface and how much council business is even open to inspection rather than conducted in closed session. Part II takes up that evidence.

4. *Expressive Value and Legitimacy*

Participation is also valuable for what it brings to the participant and to civic life and the legitimacy of public authority, independent of any decision it improves. One longstanding argument is civic. Tocqueville understood local institutions as schools of self-government, and Mill argued that participation cultivates the judgment that representative government depends on.⁸⁸ Other defenses concern what institutions owe the people they govern. Dignitary accounts of due process treat the opportunity to be heard as a way of recognizing people as agents whose perspectives deserve consideration.⁸⁹ Accounts of participatory legitimacy further argue that

violation because a discretionary permit is not a protected property interest); *Breakzone Billiards v. City of Torrance*, 97 Cal. Rptr. 2d 467, 484-92 (Ct. App. 2000) (rejecting a bias challenge to a conditional use permit denial). While the Due Process Clause does not apply to legislative activities, courts regularly entertain due process claims against local governments acting in an adjudicative capacity, and the line between legislative and adjudicative is particularly fuzzy in the local setting. See *U.S. v. Florida E. Coast Ry. Co.*, 410 U.S. 224, 245 (1973) (holding that constitutional due process requirements apply only to official action “designed to adjudicate disputed facts in particular cases”); Hans A. Linde, *Due Process of Lawmaking*, 55 Neb. L. Rev. 197 (1976); Davidson, *supra* note 57, at 600-01 (articulating the prevailing view that “separation-of-powers principles simply do not apply at the local-government level”).

⁸⁵ Killingley & Oakes, *supra* note 25, at 4-5.

⁸⁶ See Mathew D. McCubbins & Thomas Schwartz, *Congressional Oversight Overlooked: Police Patrols Versus Fire Alarms*, 28 AM. J. POL. SCI. 165, 166 (1984) (describing “fire-alarm oversight” as a decentralized oversight system in which rules and procedures enable “individual citizens and organized interest groups” to examine decisions and seek remedies); *but cf.* Eric Maskin & Jean Tirole, *The Politician and the Judge: Accountability in Government*, 94 AM. ECON. REV. 1034, 1034-35 (2004) (modeling accountability as a mechanism both for disciplining officials and pandering to public opinion).

⁸⁷ Oral comment can also be *counterproductive* to legal compliance, which is also a form of accountability. In Elk Grove, commenters leveraged public comment to punish officials complying with state law, while it took state intervention and a lawsuit to bring the city into compliance with state law.

⁸⁸ See ALEXIS DE TOCQUEVILLE, *DEMOCRACY IN AMERICA* 74-86 (F. Bowen ed., 1863); John Stuart Mill, *Considerations on Representative Government*, in ON LIBERTY, UTILITARIANISM, AND OTHER ESSAYS 181, 223-24 (Mark Philp & Frederick Rosen eds., 2015).

⁸⁹ *People v. Ramirez*, 25 Cal. 3d 260, 267-68 (1979); Jeremy Waldron, *The Concept and the Rule of Law*, 43 GA. L. REV. 1, 23-24, 28 (2008) (arguing that law ought to respect individuals’ “dignity as beings capable of explaining themselves”).

participation helps justify government authority over those bound by its decisions, particularly for those who disagree with the decision outcome.⁹⁰ An opportunity to present one's own evidence and arguments gives the affected person a role in the exercise of authority and helps explain why the resulting judgment may bind them. These arguments require careful thought when applied to the procedure owed to neighbors opposing land-use approvals.

The participatory moments demanded by the procedural justice account are closely related to due process's concern regarding the deprivation of "life, liberty, or property."⁹¹ Doctrinally, a procedural due-process claim requires a governmental deprivation of a protected interest.⁹² Objection to neighboring development does not, by itself, establish such a deprivation. A neighbor may care deeply about the block's character, density, or view, but positive law has generally declined to convert those concerns into entitlements. Ownership of adjoining land, for example, does not alone confer a right to light, air, or view across the property line.⁹³ Framing them as dignitary rights claims risks translating incumbent resistance into the language of legal injury.⁹⁴

A related empirical question is whether participatory procedures cause people to regard public institutions and their decisions as legitimate.⁹⁵ Brian Feinstein and Daniel Walters supply the

⁹⁰ See Frank I. Michelman, *Formal and Associational Aims in Procedural Due Process*, in *DUE PROCESS: NOMOS XVIII* 126, 126-128 (J. Roland Pennock & John W. Chapman eds., 1977) (describing procedural participation as serving values independent of decisional accuracy); Lawrence B. Solum, *Procedural Justice*, 78 S. CAL. L. REV. 181, 274-81 (2004).

⁹¹ Solum, *supra* note 90, at 183.

⁹² See *Bd. of Regents of State Colls. v. Roth*, 408 U.S. 564, 569-71 (1972) (explaining that procedural due process applies "only to deprivation of interests encompassed by the Fourteenth Amendment's protection of liberty or property"); *id.* at 577 (a protected property interest requires "more than a unilateral expectation" and instead requires "a legitimate claim of entitlement").

Going beyond a doctrinal account of procedural justice to its political and moral roots raises further questions. First, the theory has primarily developed around binding, court-like adjudications where life, liberty, and property are at stake. The urgent necessity for such process for what are effectively third parties is less clear. Second, there are many other compelling sources of legitimacy at the local level beyond "everything, everywhere all at once participation," such as the fact that significant decisions are often made by democratically elected local legislatures, subject to ordinary fair hearing procedural challenges as well as constraints enacted by democratically elected state legislatures. Third, the equality underlying participatory legitimacy requires attention to whose opportunities a procedure actually protects. Preserving a hearing for existing objectors does not by itself establish that a process adequately respects prospective residents and others whose interests are affected but are poorly positioned to participate. Fourth, and perhaps most significantly, even where individual participation protects a genuine moral interest, its *priority* over competing claims requires justification. For example, more than six unhoused individuals die each day in Los Angeles County. Sam Levin, *LA County Reports First Drop in Deaths of Unhoused People in a Decade*, THE GUARDIAN (Mar. 10, 2026), <https://www.theguardian.com/us-news/2026/mar/10/la-county-homeless-deaths-report>. Building additional homeless shelters has been proven to reduce mortality, yet these projects are among those against which participatory rights have been most consistently and vociferously weaponized. Respect for persons ought also to support their claims to housing and basic security.

⁹³ See *infra* Part III.A.

⁹⁴ One might say that property law is itself a machinery by which legal systems translate interests into the language of legal injury. But that translation still requires a recognition step, such as constitutional property's requirement of a legitimate claim of entitlement. See *Roth*, 408 U.S. at 577. Even *Goldberg v. Kelly*—the high-water mark of the "new property"—attached process to a statutorily defined benefit. 397 U.S. 254, 261-62 (1970).

⁹⁵ See TOM R. TYLER, *WHY PEOPLE OBEY THE LAW* 94-108 (1990).

strongest recent evidence that the public values participation in administrative decisionmaking. Their experiments show that people rate a (federal) agency as more legitimate, accountable, and trustworthy when it receives public input.⁹⁶ They argue that respondents continue to favor deliberative process even when it pushes a rulemaking months past the baseline. Its relevance to local land use is uncertain, however; the experiment concerns a technical, national rulemaking, far removed from the local, adjudicative settings in which delay can immediately derail projects by costing developers their financing.⁹⁷ Alexander Love and Alexander Sahn instead directly surveyed nearly 2,000 federal rule commenters. They found that learning that an agency followed procedure has no effect on perceived legitimacy.⁹⁸ Instead, legitimacy arose only among commenters who prevailed and fell among those who lost.

We might then read Feinstein and Walters as documenting a stated appetite for participation among observers, and Love and Sahn as casting doubt on whether that appetite converts to legitimacy in reality. They work in the federal context. This paper uses city council transcripts to provide revealed preference evidence for this appetite in the local context, asking who actually takes up the opportunity that many purport to value. It also gets at the distributive question—if standing at the podium confers a dignitary or civic good, to whom do those values accrue? This paper will not, however, answer the highly valuable questions of whether commenting leaves people feeling heard, and whether it builds civic capacity over time. Answering those questions would take a survey instrument this paper does not yet deploy; they are valuable subjects for future work.⁹⁹

C. The Normative Case Against Local Participation

The affirmative case for local participation treats procedure as a way to discipline government. The opposing case begins from the concern that the same infrastructure can disable it. Hearings, comments, and review may reduce error, but they can also make action so slow, costly, or vulnerable that the status quo prevails by default. This Section frames that critique and identifies the specific claims Part II will test: participation may block projects outright, delay them, add costly conditions for approval, and generate the leverage for litigation.

⁹⁶ Feinstein & Walters, *supra* note 18, at 34. The preference differences are admittedly a bit subtle: the aggregate affect score ranges only from roughly 4.6 to 5.1 on a seven-point scale against a 4.4 no-participation control, leaving little separating bare notice-and-comment from full deliberation and uncertainty in judging whether a half-standard-deviation gain warrants the costs.

⁹⁷ Additionally, the design makes the benefits of additional procedure salient, while leaving the costs of delay somewhat unclear to participants. Variation across additional policy schemes with different temporal stakes and further explanation of the costs of delay in each setting may have been helpful.

⁹⁸ Alexander Love & Alexander Sahn, *Policy, Procedure, and Public Trust in the Bureaucracy*, Working Paper (May 2026), https://osf.io/preprints/socarxiv/jyhma_v1.

⁹⁹ Cf. Alexander Sahn & Tyler Simko, *Issue Accountability Among Public Commenters*, Working Paper (July 2026), <https://osf.io/vxpc5/files/qn3rx> (following up with San Francisco land use commenters and finding that most accurately recall their past positions, but do not learn the subsequent policy action).

1. *Abundance and Its Predecessors*

This critique is now most closely associated with the so-called “abundance movement,” though its roots are much older.¹⁰⁰ Most of the movement’s key analytic claims should be familiar to any social scientist or public-law scholar: scarcity is often artificial, procedure has costs, veto points accumulate, capacity matters, and rules written to prevent public harm can also prevent public goods. Abundance’s novelty is chiefly strategic. It has bundled these ideas into a recognizable center-left political program, supported by think-tank initiatives, advocacy networks, state and local organizations, policy roadmaps, and gubernatorial reform packages.¹⁰¹ California has enacted housing and permitting reforms under an “Abundance Agenda.”¹⁰² New York has enacted a “Let Them Build” agenda.¹⁰³ Utah has announced a plan to “create an abundance of energy.”¹⁰⁴ National abundance conferences draw thousands of attendees.¹⁰⁵ The sensibility has even reached the bench. In *Seven County Infrastructure Coalition v. Eagle County*, a majority of the Court described NEPA as having become a “blunt and haphazard tool” used to stop or slow infrastructure and construction—words that seem to echo those of abundance pundits.¹⁰⁶

These ideas inherit an old quarrel over how progressive government should balance effective administration against public constraint. Marc Dunkelman labels the two impulses Hamiltonian and Jeffersonian. The first builds by empowering leaders and expert administrators; the second

¹⁰⁰ See generally KLEIN & THOMPSON, *supra* note 18.

¹⁰¹ See Alex Thompson, *Exclusive: New Group Plots 2028 “Abundance” Agenda*, AXIOS (Apr. 30, 2026), <https://www.axios.com/2026/04/30/abundance-group-democrats-agenda>; *Inclusive Abundance Initiative Announces the Abundance Agenda*, INCLUSIVE ABUNDANCE (Apr. 29, 2026), <https://www.inclusiveabundance.org/abundance-in-action/inclusive-abundance-initiative-announces-the-abundance-agenda>; Matthew Meyers, *Niskanen’s Abundance-Related Policy Work*, NISKANEN CTR. (Sept. 9, 2025), <https://www.niskanencenter.org/niskanens-abundance-related-policy-work/>; Catherine Vaughan & Robert Joyce, *A Roadmap for Abundance*, ABUNDANCE N.Y. (Mar. 2, 2026), <https://abundancenyc.substack.com/p/a-roadmap-for-abundance>; Press Release, Rep. Josh Harder, *New Caucus: New Bipartisan Build America Caucus Launches to Support Pro-Growth Policies* (May 8, 2025), <https://harder.house.gov/media/press-releases/new-caucus-new-bipartisan-build-america-caucus-launches-to-support-pro-growth-policies>.

¹⁰² Press Release, Off. of Governor Gavin Newsom, *Governor Newsom Signs into Law Groundbreaking Reforms to Build More Housing, Boost Affordability* (June 30, 2025), <https://www.gov.ca.gov/2025/06/30/governor-newsom-signs-into-law-groundbreaking-reforms-to-build-more-housing-affordability/>.

¹⁰³ Press Release, Governor Kathy Hochul, *Let Them Build: Governor Hochul Signs Legislation That Delivers Generational Reforms to Make It Easier and More Affordable to Build Housing and Critical Infrastructure* (May 27, 2026), <https://www.governor.ny.gov/news/let-them-build-governor-hochul-signs-legislation-delivers-generational-reforms-make-it-easier>.

¹⁰⁴ Utah Off. of Energy Dev., *Operation Gigawatt: Powering Utah’s Energy Future*, <https://energy.utah.gov/homepage/about-us/operation-gigawatt/>.

¹⁰⁵ Alex Trembath, *Bottom-Up Abundance*, BREAKTHROUGH INST. (Sept. 8, 2025), <https://thebreakthrough.org/articles/bottom-up-abundance>; *The National Pro-Housing Conference*, YIMBYTOWN, <https://yimby.town/>.

¹⁰⁶ *Seven Cnty. Infrastructure Coal. v. Eagle Cnty.*, 605 U.S. 168, 183 (2025) (describing NEPA as having “transformed from a modest procedural requirement into a blunt and haphazard tool”); *id.* at 193 (Sotomayor, J., concurring in the judgment) (faulting the majority for “unnecessarily grounding its analysis largely in matters of policy”); see also Ian Milhiser, *The Supreme Court Wants to Make It Easier to Build*, VOX (May 29, 2025), <https://www.vox.com/scotus/414856/supreme-court-seven-county-eagle-railroad-abundance>.

guards against unaccountable power by arming citizens with procedure.¹⁰⁷ Robert Moses represents the Hamiltonian pole. Through a string of mostly unelected offices, he built New York’s state park system, major bridges, and 416 miles of parkway, all while pioneering institutional devices—especially the independent public authority—designed to insulate his decisions from public oversight.¹⁰⁸ Moses “love[d] the public, but not as people.”¹⁰⁹ That disregard helped produce grievous harms, including the destruction of lower-income neighborhoods for highways.¹¹⁰

Jane Jacobs and others supplied the corrective.¹¹¹ Against Moses’s confidence that planners could see what a city needed, Jacobs argued that residents held knowledge no map or engineering report captured, and that neighborhoods needed power to resist public authority.¹¹² This decentralization hardened into law, particularly in the 1970s, as distrust of concentrated public and private power made disclosure, hearings, citizen suits, and judicial review the favored tools of restraint.¹¹³ The result is much of the legal participatory infrastructure catalogued in Part I.A.

The abundance critique begins where that infrastructure overshoots, or where safeguards built to stop bad projects have become general-purpose tools for stopping any project. Nicholas Bagley calls the reflex a “procedure fetish”;¹¹⁴ Frank Fukuyama calls it “vetocracy.”¹¹⁵ Housing is the central case because its political economy is particularly asymmetric. A new building’s costs are concentrated, visible, and local; its benefits are diffuse, regional, and often years away.¹¹⁶ The homeowner who fears noise, lost parking, traffic, or a softer resale has every reason to participate. Yet neither the future tenant nor the worker priced into a longer commute is typically in the room. To address this asymmetry in the housing space, the abundance movement has pursued structural removal of veto points, often through preemption. Another strategy has been to organize the so-

¹⁰⁷ MARC DUNKELMAN, *WHY NOTHING WORKS* 1-30 (2025).

¹⁰⁸ ROBERT CARO, *THE POWER BROKER: ROBERT MOSES AND THE FALL OF NEW YORK* 6, 8, 10-13 (1974). *Id.* at 629, 632 (use of officials removable only for cause and elimination of public hearing requirements); *id.* at 173-175 (redefining “parks” to encompass parkways, bridges and other “appurtenances” and writing himself a term three times as long as the Governor’s); *id.* at 182-92.

¹⁰⁹ *Id.* at 318.

¹¹⁰ *See id.* at 850-94 (recounting the displacement of thousands of residents despite a purportedly feasible alternate route “just two blocks . . . to the south”). Moses likewise wielded public works to entrench racial segregation. *See id.* at 318-19 (steering Black patrons away from state parks and beaches); *id.* at 513-14.

¹¹¹ *See* JANE JACOBS, *THE DEATH AND LIFE OF GREAT AMERICAN CITIES* 3-5, 18-25 (1961) (attacking “orthodox city planning” and master-planned “order” imposed on existing city life); ANTHONY FLINT, *WRESTLING WITH MOSES: HOW JANE JACOBS TOOK ON NEW YORK’S MASTER BUILDER AND TRANSFORMED THE AMERICAN CITY* 62-65 (2009).

¹¹² *See* Jane Jacobs, *Downtown Is for People*, *FORTUNE* (Apr. 1, 1958), <https://fortune.com/article/downtown-is-for-people-fortune-classic-1958/>.

¹¹³ *See generally* PAUL SABIN, *PUBLIC CITIZENS: THE ATTACK ON BIG GOVERNMENT AND THE REMAKING OF AMERICAN LIBERALISM* (2021).

¹¹⁴ *See* Bagley, *supra* note 18, at 353-55.

¹¹⁵ *See* Francis Fukuyama, *Vetocracy and the Decline of American Global Power*, *PERSUASION* (Oct. 9, 2023), <https://www.persuasion.community/p/vetocracy-and-the-undermining-of-american-global-power>.

¹¹⁶ *See* Katherine Levine Einstein, David M. Glick & Maxwell Palmer, *Who Participates in Local Government? Evidence from Meeting Minutes*, 17 *PERSPS. ON POL.* 28, 29-30 (2019); Edward L. Glaeser, Joseph Gyourko & Raven E. Saks, *Why Is Manhattan So Expensive? Regulation and the Rise in Housing Prices*, 48 *J.L. & ECON.* 331, 331-33 (2005).

called “YIMBY” or yes-in-my-backyard movement gathering diffuse beneficiaries into an organized force to counter the perceived “NIMBY” (not-in-my-back-yard) status quo.

2. *The Costs of Participation on Development*

The live question is therefore how much participation to require, in what form, and at what stage. Even constitutional due process treats adjudicative procedure as something to be weighed rather than maximized; *Mathews v. Eldridge* weighs the value of additional safeguards against their administrative burden,¹¹⁷ and Bagley similarly describes procedural design as an optimization problem among efficiency, rights, and accountability.¹¹⁸ The abundance critique supplies a particular account of the burden side of that balance.¹¹⁹

The first and simplest mechanism is outright denial. On the strongest version of the abundance critique, participation produces literal vetoes in which organized residents attend hearings, pressure elected officials, and cause cities to reject housing projects that otherwise would have been approved.¹²⁰

The second mechanism is delay. A project need not be denied to be defeated. Land-use approvals primarily unfold after a developer has already sunk money into site control, design, environmental review, engineering, legal work, and financing.¹²¹ Time therefore changes the economic meaning of participation.¹²² A continuance, redesign demand, supplemental study, or repeated hearing may carry real costs like missed financing windows, expired purchase options, rising construction prices, and greater uncertainty. Delay is a natural consequence of layered administrative procedure and serves to tilt the field toward the status quo.¹²³

¹¹⁷ 424 U.S. 319, 348 (1976).

¹¹⁸ Bagley, *supra* note 18, at 352.

¹¹⁹ Calling these burdens “costs” assumes that the projects delayed or prevented by participatory procedures were otherwise worth building. Cf. Vicki Been, Ingrid Gould Ellen & Katherine O’Regan, *Supply Skepticism: Housing Supply and Affordability*, 29 HOUS. POL’Y DEBATE 25, 25–27, 33–34 (2019) (describing supply-skeptical objections to market-rate development and concluding that supply increases are critical to moderating prices while emphasizing that market-rate supply must be paired with subsidies and other tools to serve very low-income households).

¹²⁰ See, e.g., Jacob Anbinder, *New York NIMBYs Turn Against Democracy*, THE ATL. (Sept. 9, 2025), <https://www.theatlantic.com/ideas/archive/2025/09/new-york-nimbys-turn-against-democracy/684140/> (describing councilmember deference as allowing legislators to “kill housing proposals”); Jerusalem Demsas, *The Billionaire’s Dilemma*, THE ATL. (Aug. 4, 2022), <https://www.theatlantic.com/ideas/archive/2022/08/marc-andreessens-opposition-housing-project-nimby/671061/> (arguing that policymakers must “eliminate NIMBYism’s veto power”); Jake Blumgart, *Public Meetings Thwart Housing Reform Where It Is Needed Most*, GOVERNING (Mar. 17, 2022), <https://www.governing.com/now/public-meetings-thwart-housing-reform-where-it-is-needed-most> (describing housing review as “full of choke points”).

¹²¹ See Roderick M. Hills, Jr. & David Schleicher, *Planning an Affordable City*, 101 IOWA L. REV. 91, 95, 116–20 (2015) (arguing that parcel-by-parcel zoning bargaining raises costs for prospective developers, adds to the price of new housing, causes delay, and deters some housing proposals).

¹²² See Diego A. Zambrano, *Litigation Scar Tissue & Construction Costs*, IN RESEARCH HANDBOOK ON LAW AND TIME 168 (Frank Fagan & Saul Levmore eds., 2025).

¹²³ Bagley, *supra* note 18, at 367–69; Roderick M. Hills Jr. & David Schleicher, *How the Gentry Won: Property Law’s Embrace of Stasis*, 104 TEX. L. REV. 987 (2025).

The third mechanism is conditioning. Participation may reshape a project enough to make it infeasible even with formal approval. Cities may add design requirements, parking changes, traffic mitigations, affordability commitments, or other concessions that reshape the project and increase its cost. Leah Brooks and Zach Liscow’s study of interstate highways provides the closest analogue. They attribute much of the post-1970 rise in highway costs to “citizen voice” expressed through statutes, litigation, and doctrine.¹²⁴ That voice appeared in more noise walls, elevated segments, ramps, and “wigglier” routes that avoided politically or physically difficult obstacles.¹²⁵ Each change may have made highways more responsive to real local harms, while also making them more expensive. Ezra Klein’s critique of “everything-bagel liberalism” describes the same dynamic in contemporary approvals, where the project-review stage becomes a forum for loading many desirable goals into a single development.¹²⁶ Approval therefore may remain nominally available, while the resulting project may be slower, costlier, or infeasible.

The final mechanism is litigation, though the result of litigation is often delay or increased bargaining leverage to extract further conditions. The record-making machinery that makes participation visible also manufactures the material for expensive lawsuits through comments that build the administrative record that CEQA and related challenges run on, so the hearing doubles as discovery for the lawsuit to follow.¹²⁷

Surprisingly little evidence exists as to the prevalence and relative magnitude of any of these potential costs. Part II turns to that missing evidence.

II. The Empirical Reality of Local Participation

Part I’s framework asks what local participation is for and what its theorized costs might be. This Part asks how it performs, taking those governance values to a record of what happens in the room using a novel dataset of city council transcripts. I choose to focus on city council meetings as the broadest and most emblematic venue of local participation. City councils are elected generalist bodies whose agendas run the full range of local governance. They are also the final decisionmakers on the legislative groundwork that defines permissive space for new development, and they hear appeals from below.

¹²⁴ See Leah Brooks & Zachary Liscow, *Infrastructure Costs*, 15 AM. ECON. J.: APPLIED ECON. 1, 1-3 (2023).

¹²⁵ *Id.* at 18, 21.

¹²⁶ Ezra Klein, *The Problem with Everything-Bagel Liberalism*, N.Y. TIMES (Apr. 2, 2023), <https://www.nytimes.com/2023/04/02/opinion/democrats-liberalism.html> (cataloguing requirements ranging from minority contractor preferences to “access to child care for facility and construction workers”).

¹²⁷ See Zambrano, *supra* note 122 (describing how CEQA and similar litigation can impose costs through process, delay, and settlement leverage, and how project-specific responses to that litigation accumulate into persistent “litigation scar tissue” carried forward by developers, cities, and consultants).

A. Data Overview

Until recently, studying local public participation has meant studying agendas or minutes, often in one or a select number of relatively homogeneous jurisdictions.¹²⁸ The claims that follow draw upon a far larger and more granular corpus, built and validated in a companion methods paper, consisting of over 25,000 city council meeting transcripts across 115 California municipalities from 2015 through 2024, comprising over 75,000 hours of recorded deliberation and over 80,000 public commenters linked to voter registration and property ownership records.¹²⁹

The sample covers 75 of California's 100 largest cities and roughly 52% of the state's population, from Burlingame (population 30,000) to Los Angeles (nearly four million), and from rural Porterville to dense San Francisco.¹³⁰ Cities range from a 6% White share of the population to 78%; median household income from \$54,000 to over \$250,000; and median home value from \$281,000 to over \$2 million. The corpus was constructed using speech-recognition and speaker-diarization deep learning models to convert raw audio and video into speaker-level transcripts. A large language model then segmented each transcript into agenda items and unagendized comment, identified speakers and their government affiliation, recorded vote tallies, and sorted items into policy domains. Identified commenters were matched to the voter file and to property records. Each step was validated against human hand-coded labels. The model and human coders agree on whether a speaker is a member of the public or a government official, on the names of public speakers, and on whether and how the council voted.¹³¹ The companion paper reports the prompts, confusion matrices, and match diagnostics in full.¹³²

¹²⁸ See, e.g., Einstein, Glick & Palmer, *supra* note 116; Alexander Sahn, *Public Comment and Public Policy*, 69 AM. J. POL. SCI. 685 (2024) (San Francisco Planning Commission minutes). The largest existing transcript corpus, LocalView, draws only from YouTube (where only roughly half of California cities post meetings), is not diarized, and provides limited coverage of meetings within each town even where a YouTube channel exists. Soubhik Barari & Tyler Simko, *LocalView, A Database of Public Meetings for the Study of Local Politics and Policy-Making in the United States*, 10 NATURE SCI. DATA 1 (2023).

¹²⁹ For full details on construction and validation of the dataset, see Olivia Martin & Amar Venugopal, *Participation and Representation in Local Government Speech*, arXiv:2604.21202 (2026), <https://arxiv.org/abs/2604.21202>. Note that the dataset predominantly precedes the state's CEQA reforms, which took effect on June 30, 2025. See *infra* Part III.B.2.

¹³⁰ Due to the focus on larger cities, sample cities are somewhat denser, wealthier, and less Hispanic than the state as a whole. Martin & Venugopal, *supra* note 129 at 6.

¹³¹ The model and human coders agree on whether the council voted 97 percent of the time and the exact tally 96 percent of the time. They agree 87 percent of the time on whether a speaker is a government official, and the model recovers roughly 84 percent of the surnames human coders identify, and about 78 percent of the names it produces are corroborated. Most disagreements attach a real name to the wrong speech segment rather than invent one, and uncorroborated model names that nonetheless matched a voter record are under 2 percent of the validation sample.

¹³² The matching of speakers to the voter file is conducted by a deterministic matching algorithm; the language models in the pipeline classify only the public statements of individuals who have selected to address a legislative body in an open, recorded session. Moreover, my LLM use operated under Google Gemini API's paid quota tier (under Stanford's Google Cloud agreement), which does not train on the data it receives (unlike the free, non-institutional tiers). See Gemini API Additional Terms of Service, Google AI for Developers, <https://ai.google.dev/gemini-api/terms>. Additionally, results are reported in aggregate, and no commenter is identified in this Article (other than in one case when the commenter had filed public litigation against the city).

The resulting picture of city government is one of frequent and lengthy deliberation. The average city meets twice per month for about three hours, though meetings run long. Ten percent of meetings are at least five hours and one percent—still hundreds of meetings—run eight hours or more. A typical meeting features 16 speakers from across city government (including councilmembers) and 12 members of the public, and works through about 13 distinct issues, ranging from agendized items like a “Gas-Powered Leaf Blower Ban” to unagendized general comment on “Waste Management Noise Complaints.” Roughly half of issues take public comment and 43% include a council vote. Of the 160,000 votes in the corpus, about a third are procedural—a vote to introduce an ordinance on a first reading, to refer to committee, to continue to the next meeting—and the remaining two-thirds are final votes to approve, adopt, or deny.¹³³ Procedural votes are more common still in land use, where 43 percent are procedural rather than final decisions or outcomes.

Councils are also strikingly unanimous. Only one percent of votes fail (nays exceed yeas) and 87% of votes are entirely unanimous. Some of this consensus is a function of scale, as unanimity is easier to achieve in a five- or seven-member body than in a large legislature. But the pattern remains even after excluding categories that might mechanically inflate agreement. Final votes are more likely to be unanimous than procedural votes, 88% compared to 78%. Ceremonial business—proclamations, commendations, honors—is nearly always unanimous at 95%, but it is too rare to move the total, which holds at 87% once it is removed. Consensus therefore arises as a central feature of how these councils decide, and a ceiling on the types of effects we can attribute to public commenters’ efforts to stir up debate or “win” votes.

B. Participation as Democratic Preference Elicitation

As Part I argued, participation’s democratic case depends on representative voice. Local hearings are supposed to surface the preferences of the community affected by a decision. The threshold empirical question is therefore simple: who actually shows up? If commenters do not resemble the residents whose preferences they are taken to express, the canonical case for local participation begins on unstable ground.

The most systematic prior evidence comes from Katherine Einstein, Maxwell Palmer, and David Glick, who coded roughly 3,000 participants in 97 metropolitan Boston planning and zoning meetings between 2015 and 2017.¹³⁴ They matched 83 percent of speakers to voter records and found that participants were, on average, eight years older and substantially more likely to be male than the voting population. My dataset extends the approach by an order of magnitude with over 80,000 linked participants across 115 California municipalities, covering city council meetings rather than only planning and zoning hearings, over a full decade. I find that approximately 1.5 in

¹³³ This classification was conducted on full meeting transcripts by the LLM as part of the vote extraction described in Martin & Venugopal, *supra* note 129 at 6-7.

¹³⁴ Einstein, Glick & Palmer, *supra* note 116 at 31–33 (finding that commenters were, on average, 7.8 years older and 8 percentage points less likely to be female than voters).

1,000 registered voters speak at a meeting in a given year. By comparison, 714 in 1,000 registered California voters voted in 2024 and 508 in 1,000 voted in the 2022 midterms.¹³⁵

In contrast to the theory’s aspirational claims for the democratic advantage inherent in smaller political entities, meeting participation looks like other high-intensity, high-resource forms of political participation. As shown in Table 1, compared with registered voters in the same city and year, meeting speakers are older (+4 years), less likely to be female (-5 percentage points), more likely to be Democrats (+6 p.p.), substantially more likely to be of White non-Hispanic origin (+16 p.p.) and more likely to be homeowners (+4 p.p.). These gaps are smaller than the canonical “neighborhood defenders” venue of zoning meetings in suburban Boston studied by Einstein, Glick, and Palmer. Their participants had roughly twice as large age and gender gaps and significantly larger homeowner-renter gaps, though significantly smaller race gaps, which might make sense in the more niche setting of zoning meetings.¹³⁶

	Participants		Non-Participants		Difference
	<i>N</i>	<i>Mean</i>	<i>N</i>	<i>Mean</i>	
Age	107,788	52.596	75,761,347	48.133	4.463***
Female	107,077	0.478	74,384,571	0.526	-0.049***
Democratic	107,788	0.537	75,761,347	0.482	0.055***
White non-Hispanic	99,214	0.623	69,394,181	0.459	0.164***
Homeowner	69,320	0.740	44,230,094	0.703	0.037***

*Table 1: Difference in Means Between Participants and Non-Participant Registered Voters*¹³⁷

A sharper comparison is to the voters who actually participate in low-salience municipal elections. That benchmark is necessarily limited, because many local contests are now consolidated with larger elections, but twelve elections in the transcript corpus sample provide a useful

¹³⁵ Cal. Sec’y of State, Statement of Vote: General Election, November 5, 2024, at 3 (2024), <https://elections.cdn.sos.ca.gov/sov/2024-general/sov/complete-sov.pdf>; Cal. Sec’y of State, Statement of Vote: General Election, November 8, 2022, at 3 (2023), <https://elections.cdn.sos.ca.gov/sov/2022-general/sov/complete.pdf>.

¹³⁶ Commenters are 12 percentage points more likely than voters to be over fifty, compared with 22 points in their study; 5 percentage points less likely to be women, compared with 8 points; and 4 points more likely to be homeowners, compared with 28 points. The racial gap, however, is larger in my sample: White non-Hispanic commenters exceed their share among voters by 16 points, compared with an 8-point white-voter gap in their study. Katherine Levine Einstein, David M. Glick & Maxwell Palmer, *Neighborhood Defenders: Participatory Politics and America’s Housing Crisis*, 135 POL. SCI. Q. 281, 298–300 (2020).

If I restrict my sample to land-use items, the closest analog to planning and zoning hearings, the gender gap doubles to match theirs. Further restricting to demographically Boston-like suburbs closes part of the age difference as well, but not the race difference. I in part ascribe this to the much whiter populations they study, which places an arithmetic ceiling on their racial gap. See Appendix § 2.4.

¹³⁷ Differences and significance come from Welch’s two-sample t-tests treating each voter as an independent observation. Significance persists in a logistic regression with city and year fixed effects and city-level clustered standard errors. See Martin & Venugopal, *supra* note 129 at 19.

comparison.¹³⁸ Relative to these local voters, commenters still skew meaningfully Whiter, by about 6 to 9 percentage points. The age gap, however, disappears and even reverses; commenters are less likely than local voters to be over 50. In short, moving from all registered voters to likely municipal voters narrows much of the representational critique, but the racial disparity remains.

Organized participation might, in principle, do the representative work that individual participation does not. Overall, roughly 60 percent of public speaker appearances are from individuals, and the rest are from people purporting to speak on behalf of a group. Across all meetings and specifically discussions related to land use, the most common organizational affiliation is being associated with a business (19 percent),¹³⁹ followed by advocacy organizations (14 percent),¹⁴⁰ service nonprofits (13 percent),¹⁴¹ and civic organizations (7 percent).¹⁴² The modal speaker from an organization therefore represents a business rather than an underrepresented constituency, though some advocacy organizations may represent underrepresented groups like renters or racial minorities.

More participation also does not mean more representative participation. In nearly every one of the 115 cities in the sample, the age gap is positive, the White non-Hispanic gap is positive, and the female gap is negative. Per-capita participation varies by roughly a factor of six across cities and rises sharply with educational attainment and income. Yet the cities that draw the most participation are not the ones whose participants come closest to mirroring their communities. The age gap is, if anything, wider where participation is higher; the White non-Hispanic gap is flat across the distribution, and only the female gap narrows.

The most extreme form of unrepresentativeness is participation by quite literally the *same* people, or “repeat speakers.”¹⁴³ Most unique participants appear once, but the 26% who do return supply 62% of all appearances. The average repeater speaks at 16.9 meetings and the tail is long. In dozens of city-years, a single resident attended every council meeting the town held. For example, Denise Barton in Santa Monica appears at nearly 100 meetings across the sample period.¹⁴⁴ Unsurprisingly, repeat speakers are also significantly older, more White, more Democratic, and more likely to be male, though not necessarily more likely to be homeowners.

¹³⁸ See Appendix §2.3 for regression table. The four standalone municipal contests are San Leandro in 2022, and Downey, Inglewood and Vacaville in 2023. The eight 2021 odd-year elections are in Riverside, Santa Barbara, Inglewood, Carson, San Jose, Los Gatos, Hemet and Rosemead.

¹³⁹ Note the similarity here to the literature on federal notice-and-comment and FOIA processes being dominated by businesses. See Yackee, *supra* note 64; Margaret B. Kwoka, *FOIA, Inc.*, 65 DUKE L.J. 1361 (2016). For a full breakdown of stated organizational affiliations, see Appendix § 2.2.

¹⁴⁰ Example advocacy organizations: NAACP, Moms Demand Action, and Alameda Renters Coalition.

¹⁴¹ Example service nonprofits: American Heart Association, Habitat for Humanity, and Eden Housing.

¹⁴² Example civic organizations: League of Women Voters, American Red Cross, Boys & Girls Club.

¹⁴³ Such participation was a concern for the Biden Administration, which encouraged reforms in the federal regulatory review process to “ensure access to those who have not historically requested such meetings” and to “discourag[e] meeting requests that are duplicative.” See Exec. Order No. 14,094, Modernizing Regulatory Review, 88 Fed. Reg. 21,879 (Apr. 6, 2023).

¹⁴⁴ She also filed a \$1.7 billion claim against the city for assorted grievances. Ashley Archibald, *Resident Files \$1.7B Claim with City Hall*, Santa Monica Daily Press (Aug. 14, 2012) <https://www.smdp.com/resident-files-1-7b-claim-with-city-hall/>.

Demographics are one proxy for preference representation. The data can also signal direct preferences. For each public comment in a land-use discussion, I use an LLM to score the speaker's expressed stance toward the more development-oriented outcome on the issue on a continuous -1 (opposed) to $+1$ (supportive) scale.¹⁴⁵ Once developers, consultants and business representatives are removed, the remaining “ordinary public” is slightly opposed to development. Strongly anti-development comments make up roughly 39% of non-applicant comments, against roughly 36% strongly pro-development, with the remainder neutral or mixed.¹⁴⁶ This divide is narrower than the neighborhood-defenders literature might lead one to expect—opponents barely outnumber project supporters, not the lopsided margins a “tyranny of the neighbors” account implies. The gap is also remarkably stable over the past decade. Localized YIMBY mobilization is visible in some heavily organized cities, like Berkeley, where pro-housing turnout has in some years pushed average sentiment positive, though even these shifts are intermittent.

Direct benchmarking is impossible because we do not observe the preferences of the local nonparticipants. We can, however, compare the comments to survey evidence. Nationally, 66 percent of Americans support requiring local governments to approve housing that meets clear standards, and more than 80 percent support allowing more apartments near transit or on church and college land.¹⁴⁷ Californians are similarly supportive even when asked about building close to home, with 64 percent favoring more housing in their own city or community.¹⁴⁸ A net-opposed or even net-neutral participating public therefore sits uneasily against a broader public that, even in its own backyard, favors more housing in the abstract.¹⁴⁹

The democratic case for local participation rests on the hope that smaller scale and geographic closeness make public preferences easier to hear. The evidence shows that meeting speakers are older, more male, Whiter, and more likely to own their homes than registered voters in the same

¹⁴⁵ Full methodology and validation in Appendix § 3.1.

¹⁴⁶ Debaised estimates are similar. See Appendix § 3.1. Pro-development comment concentrates in discussions of homelessness services and affordable-housing programs—largely supportive comment on shelters and heavily subsidized projects. Excluding those conversations (22% of scored comments), the divide over market-rate development is starker: 43% anti versus 33% pro. Pro-development commenters disproportionately invoke affordability and economic opportunity, while opponents concentrate on traffic, crime, schools, environmental impact, and aesthetics—a divide between economic-necessity framing and neighborhood-preservation framing. See Martin & Venugopal, *supra* note 129 at 27.

¹⁴⁷ Searchlight Inst., *What Americans Think About Housing* (Sept. 19, 2025), <https://www.searchlightinstitute.org/research/what-americans-think-about-housing/>; Alex Horowitz & Tushar Kansal, *Survey Finds Large Majorities Favor Policies to Enable More Housing*, PEW CHARITABLE TRS. (Nov. 30, 2023), <https://www.pew.org/en/research-and-analysis/articles/2023/11/30/survey-finds-large-majorities-favor-policies-to-enable-more-housing>.

¹⁴⁸ Mark Baldassare et al., *Californians and Housing Affordability*, PUB. POL'Y INST. OF CAL. (Sept. 2017), <https://www.ppic.org/publication/californians-and-housing-affordability/> (64% of Californians favor building more housing in their own city or community—Central Valley 72%, San Francisco Bay Area 70%, Los Angeles County 63%—with renters favoring it more than homeowners, 73% to 55%). The tilt toward state action persists in later waves: about 60% think the state should require localities to build their “fair share” of affordable housing, against roughly 40% who would leave the decision to local government. Dean Bonner, *Desire for Action on Housing Contrasts with How Californians Want to Live*, PUB. POL'Y INST. OF CAL. (Aug. 8, 2023), <https://www.ppic.org/blog/desire-for-action-on-housing-contrasts-with-how-californians-want-to-live/>.

¹⁴⁹ “In the abstract” is an important qualifier. It is much easier to support good things in the abstract without being confronted with concrete costs.

city and year. Some of these gaps shrink against the sharper benchmark of municipal voters, but a racial gap remains. Nor does greater participation solve the problem—cities with more speakers do not have more representative speaker pools. On land use, the participating public leans anti-development, though by a narrower margin than the strongest neighborhood-defenders account would predict. Local participation therefore supplies some preference information, but it is only a weak democratic proxy for the community whose preference it is taken to express.

C. Participation as Objective Information Transmission

Part I framed the informational case for participation as a claim that residents may know facts about a place that city officials, especially capacity-constrained ones, would otherwise miss. This Section tests that claim in the land-use setting by examining what information public commenters provide, and whether councilmembers appear to take that information up in deliberation.

a. Supply of Information

To examine what information residents contribute to local decisions and to keep these contributions comparable, I narrow to project-level deliberations on proposals to develop new housing or homeless shelter.¹⁵⁰ There are roughly 2,400 such deliberations in my corpus, containing about 15,700 public comments.¹⁵¹ I use an LLM to extract from each comment the main one to three pieces of plausibly objective information—i.e., observations about the world that go beyond mere preference—producing roughly 20,700 informational contribution statements. I then classify each contribution along three dimensions: its substantive topic (e.g., traffic safety or crime and disorder), its informational form (e.g., observed condition or forecasted effect), and its geographic scope (e.g., specific to the project site itself, another site location, or a broader area).

Identifying the substantive topic is important because the claim of local expertise is strongest where residents can draw on repeated exposure to conditions they uniquely observe, like that cars routinely fail to stop at a particular intersection or that an existing driveway creates a dangerous sightline. The informational form is useful to identify because most lay residents are typically less well-situated to make forecasts about complicated phenomena such as housing prices, crime, or municipal finances, but they are well-situated to share observations. Geography also matters, particularly for identifying if the comment has been shared in the appropriate venue. A firsthand observation about road conditions may be highly valuable local knowledge, but it also may bear more on broader transportation planning than the approval of one parcel along that road.

To illustrate how this works, consider the following comment from a Palo Alto resident opposing the certification of an Environmental Impact Report for a proposed housing development:

My concern with 788 San Antonio Road ... is the heavy reliance on bicycles. San Antonio Road is only four lanes wide. It has no bicycle lanes. So bicyclists normally ride in the

¹⁵⁰ This deliberately excludes any broad legislative discussion of citywide policy or even neighborhood-level planning.

¹⁵¹ Full pipeline and validation details available in the Appendix.

sidewalks. Twice in the last 10 days while I was walking and the bike riders on the sidewalks have passed me from the back, really surprising me.

The pipeline synthesizes the contribution as: “The street is currently very dangerous for pedestrians and bicyclists because it lacks bike lanes, forcing bicyclists onto the sidewalks.” The claim is then tagged as a directly observed condition about traffic safety relating to an area broader than just the project site (the commenter discusses a wider stretch of the road). Overall, the contribution is quintessential, valuable, firsthand local knowledge. But geographically, she is speaking to the conditions of an entire road system that cannot be directly addressed by approving or denying the particular project before the council.

Figure 2 applies these kinds of distinctions across the universe of comments made in project-level deliberations. The total length of each bar denotes how frequently commenters provide information on a substantive topic. The internal segments then distinguish four kinds of contributions: firsthand observations about the project site; forecasts about the project site; information specific to sites other than the project (e.g., comments about an issue that occurred when a different site was being developed); and information about broader areas or no particular place. To keep the figure readable, it only displays topics accounting for at least two percent of all informational contributions, which together comprise about 91 percent of the total; complete results and full topic definitions appear in the Appendix.

Analytically, existing site conditions (e.g., noting abandoned properties or a site’s topography) are close to the paradigmatic case for localized expertise. Although they only make up 2.6 percent of contributions, roughly two-thirds are firsthand observations about the project site. Built form and neighbor interface (e.g., noting effects on view or design compatibility) are more common at 6.1 percent, but they consist largely of project features and predicted effects rather than firsthand observations. Traffic safety, congestion, parking and bicycle access are also quintessentially local subjects, yet much of the testimony consists of forecasts or observations about a broader road or neighborhood rather than the project itself. Such observations are valuable, but they often identify transportation problems that extend beyond the parcel (or beyond the parcel’s marginal impact).

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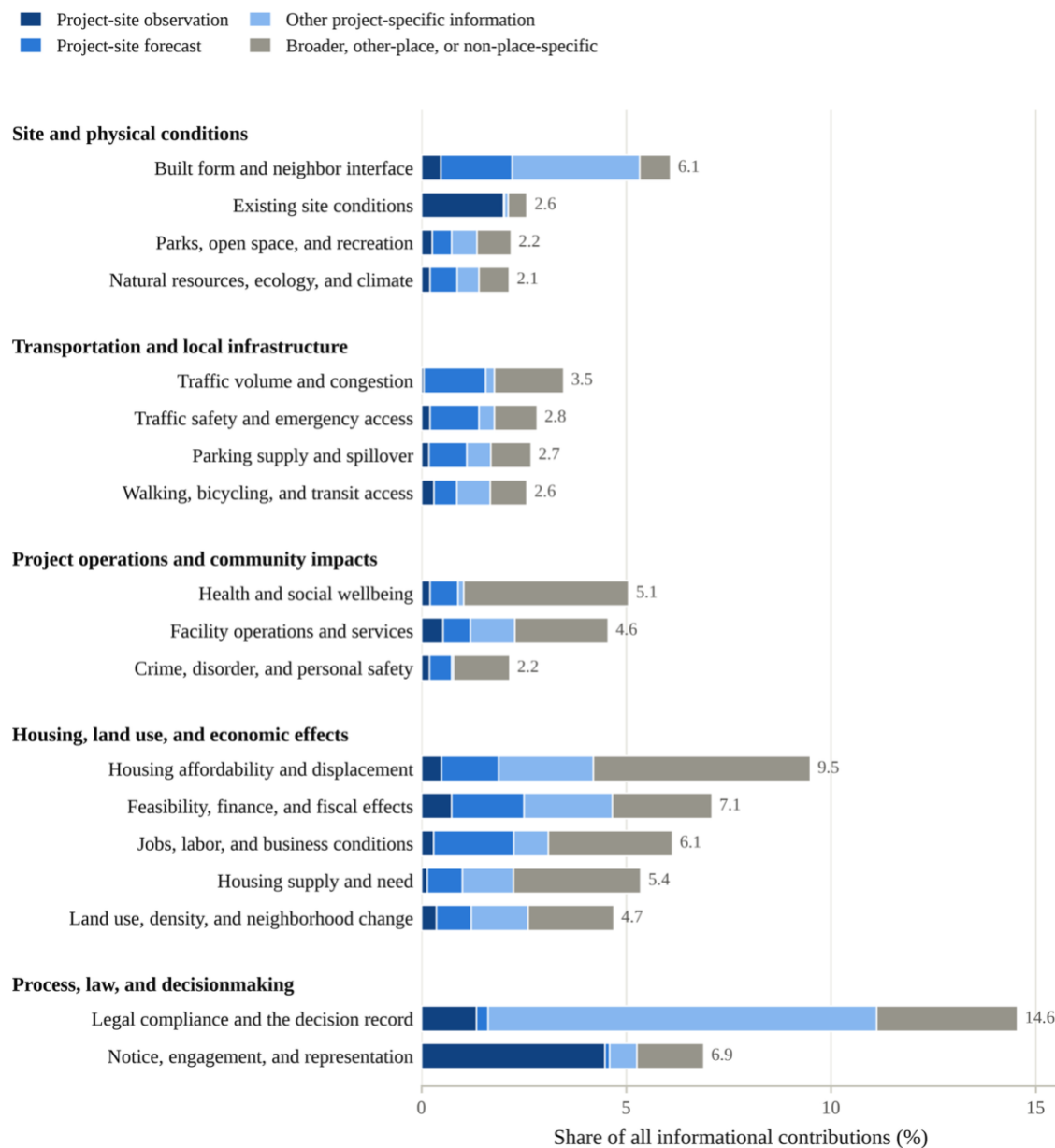


Figure 2: Informational Contributions by Topic, Informational Format, and Geography

Similarly, most comments about housing affordability and tenant displacement are comments about overall affordability trends rather than distinct concerns about tenant displacement at the site.¹⁵² And the most common type of information that residents offer is about the procedure itself. Residents may have firsthand knowledge of whether they received notice or were allowed to participate, but that information primarily serves the accountability function discussed in the next Section.

¹⁵² In one particularly useful example, a commenter noted concerns about relocating the current residents of the mobile home park on the site given that many residents have mobility issues due to strokes and recent accidents. However, such comments seemed rare.

Taken together, Figure 2 suggests that the information most distinctively suited to local expertise—firsthand observations about conditions at the project site—is only a relatively small portion of what project hearings elicit. Other comments may still provide useful information, but their content often suggests a different and often broader institutional setting.

Finally, objective information from commenters is most useful if it is *novel*—that is, councilmembers did not readily have that information available after reading standard materials like staff reports prepared before the meeting. To assess novelty, I take a sample of 1,507 informational contributions made during 58 project-specific land-use votes and use an LLM to compare each contribution with the full agenda packet, including staff reports, exhibits, environmental-review materials, and attached studies.¹⁵³ The model scored 51 percent of contributions as clearly stated in the packet, 17 percent as plausibly inferable, and 32 percent as absent. Novelty (as indicated by absence) is most common among comments on jobs, labor, and business conditions (52 percent), health and social wellbeing (45 percent), and notice and representation (44 percent). Comments about another site were more likely to be novel (63 percent), as were comments about a broader system or area (47 percent), compared to only 20 percent of contributions about the subject project or site itself. In other words, most project-site information was already available in the packet.

b. Demand for Information

So far, the figures presented have described the information *supplied* to councilmembers. A more revealed preference test for usefulness is whether councilmembers *use* the information residents supply. As a lower bound, I measure how often councilmembers explicitly cite public comments.¹⁵⁴ Within land use discussions, I begin with roughly 26,000 councilmember speaking turns that name a speaker, refer to public testimony, frame the turn as responsive, or acknowledge a point's validity.¹⁵⁵ An LLM then reviews these candidates and refines them down to 9,000 turns that appear to cite a public commenter from the same meeting. The measure is intentionally generous in that it counts the act of citation rather than any effect on the vote and counts a councilmember's dismissal of a commenter and adoption of a commenter's suggestion equally as uptake. Figure 3 illustrates the pipeline and the main results.

¹⁵³ Full audit description and validation available in Appendix.

¹⁵⁴ This is only an observable-uptake measure and therefore almost certainly understates actual use; however, citation patterns are a common proxy in the field. Cf. Cassandra Handan-Nader, *Do Fake Online Comments Pose a Threat to Regulatory Policymaking? Evidence from Internet Regulation in the United States*, 15 POL'Y & INTERNET 100, 104–09, 113 (2023) (identifying comments cited in the FCC's final order); Jason Yackee & Susan Yackee, *Administrative Procedures and Bureaucratic Performance: Is Federal Rule-Making 'Ossified'?*, 20 J. PUB. ADMIN. R. & THEORY 261 (2010) (measuring interest-group influence by comparing public comments with final-rule content); Spangher et al., *supra* note 64 (matching comment claims to agency responses and final-rule changes).

¹⁵⁵ I use a high-recall regular expression match. Full pattern code and synonym list in Appendix § 4.

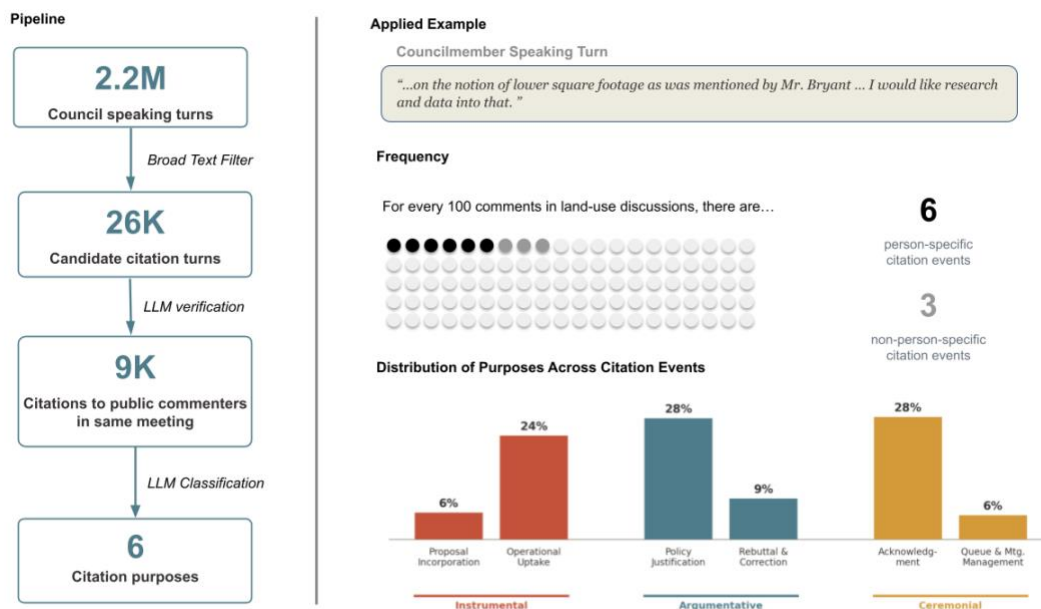


Figure 3: Pipeline, Applied Example, and Distribution of Councilmember Citation Purposes

I find that a councilmember directly cites a public commenter from that same meeting in about one third of land-use discussions. Roughly six of every 100 comments receive a person-specific citation from a councilmember, and another three produce a non-person-specific reference (e.g., “a lot of people in the audience said...”). Comments therefore rarely elicit direct engagement from councilmembers. The citation rate is lower than the closest federal notice-and-comment benchmark, where recent research finds noticeable agency responses to 20 to 60 percent of comments, but the gap is unsurprising—local testimony is oral and informal, and councilmembers face weaker legal pressure to respond than agencies reviewing written comments.¹⁵⁶

Councilmembers cite a public comment for various purposes, some more substantive than others. An unsupervised topic discovery and classification approach yields five broad purposes.¹⁵⁷ The most common mode is *policy justification* (28%), in which a councilmember invokes public concern to support a position, as when a mayor cites members of the public “who expressed that concern” to pressure an applicant for deed restrictions. The next most common mode is *operational uptake* (24%), which routes a commenter’s specific point back to staff or onto the agenda for further work. *Rebuttal or correction* (9%) covers councilmembers pushing back on a commenter’s claim, often by reading from staff materials. *Proposal incorporation* (6%) is perhaps the most explicitly substantive, covering when a councilmember folds a suggestion from a commenter directly into a motion or condition of approval. The remaining citations look like ceremonial acknowledgment (e.g., thanking an individual for their comments with no further discussion). Of these, operational uptake and proposal incorporation look most like a meaningful sharing of localized expertise.

¹⁵⁶ Spangher et al., *supra* note 64.

¹⁵⁷ Full methodology in Appendix § 4.

These findings suggest that the local expertise channel is not empirically empty. The demand side, however, is thinner. Roughly one in ten comments generates a councilmember citation, and only a third of those citations show information clearly moving from resident to council. The resulting picture instead falls somewhere between informational theater and a robust exchange of locally grounded expertise.

D. Participation as Accountability

Meetings are where residents produce the raw material of accountability, like allegations, demands for explanation, and contestations of facts. This section asks how much accountability work public comment does, what kinds of claims it makes, and how those claims hold up when checked against primary sources.

I first isolate the comments appearing to do accountability work. A comment qualifies when it holds officials, staff, or developers to account by questioning the fairness of a process, alleging a broken promise or procedural violation, demanding an explanation or transparency, or pressing a decisionmaker to justify its conduct. Mere disagreement does not count. Opposing a decision qualifies only if it invokes a duty, a failure or a violation. So defined, accountability comments make up 17 percent of agendized public comment in the land use domain.

What do these comments press for? I derive the scheme inductively as before by generating a free-text description of the accountability “move” each comment makes for a random sample of 300 accountability-coded comments, using an LLM to distill these descriptions into a parsimonious set of seven registers, and classifying each comment against the resulting scheme, described in Table 2. The registers are not mutually exclusive—58 percent of comments invoke two or more—and they are dominated by process, a similar result to the informational decomposition in the previous section. Nearly half of comments allege that a required procedure was not followed, and over a third that the public was not genuinely heard. This is somewhat striking. In other words, the participatory apparatus that was built to let residents police official conduct is to a substantial degree occupied policing the apparatus itself. This is not necessarily an indictment—procedural violations may proxy for substantive misconduct that is harder to observe—but it raises the possibility that procedural mandates are self-undermining of procedural legitimacy. If each layer of required process creates new grounds to feel wronged by process, more participatory mandates create more opportunities for participation’s content to focus on complaints that participation was denied.

Accountability-related comments are most valuable if they make colorable claims of official misbehavior. Two registers stand out as the most readily independently falsifiable: epistemic misrepresentation—the charge that officials, staff, or applicants are misleading the public with dishonest data or analysis (30 percent of accountability comments)—and procedural and legal fidelity (48 percent).

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Comment Category	Prevalence	Description
Procedural and legal fidelity	47.7%	Whether the required process, notice, or environmental-review step was followed
Participatory legitimacy	37.0%	Whether the public was genuinely heard, or whether engagement was foreclosed, perfunctory, or restricted
Epistemic misrepresentation	30.2%	An allegation that officials or developers deployed dishonest or bad-faith data or analysis, as distinct from a good-faith factual disagreement
Distributive equity	24.8%	Disparate harm to a marginalized or protected group
Performance and commitment enforcement	22.9%	A demand that a prior promise be honored or an existing code enforced
Ethical integrity	15.8%	Allegations of conflict of interest, favoritism, or improper influence
Jurisdictional authority	7.8%	Contests over which body—state or local, administrative or elected—is entitled to decide

Table 2: Classification of Accountability-Related Comments

To assess whether such claims hold up, I reviewed a random, stratified sample of 50 flagged comments—25 from each register—and checked each against the primary record consisting of staff reports, environmental documents, agendas and minutes, prior hearings, and litigation records. Clean verdicts are scarce in both directions. Of the misrepresentation claims, six are fully corroborated and eight are flatly contradicted; the other eleven have a kernel of truth but are stated as something stronger. Similarly, among the procedural comments, the core charge clearly stands in eight, clearly fails in five, and partly holds in twelve. If we were to extrapolate from these case studies, the typical accountability comment emerges as a real grievance, pushed somewhat past what the record will bear.

I call a claim contradicted when the contemporaneous written record directly refutes it. In Alameda, for example, the council considered rehabilitating eleven vacant structures built in 1942 for a World War II training facility, converting them into 90 units of senior housing, interim homeless housing, and medical clinics; only one building would be demolished, and the rest would be rehabilitated.¹⁵⁸ One resident who instead wanted the facility recognized as a historic resource claimed that the city’s architectural report was “misleading” because it did not conduct “any new research” and that the firm “didn’t even look right here.” But the report identified a site visit conducted just a month earlier as a core part of its methodology and concluded the complex lacked

¹⁵⁸ City of Alameda, McKay Wellness Center (Alameda Federal Center Reuse Project): Initial Study & Mitigated Negative Declaration 1-3 (Sept. 2018), <https://www.alamedaca.gov/files/assets/public/v/1/departments/alameda/city-manager/mnd.pdf>; City of Alameda, Addendum to an Initial Study/Mitigated Negative Declaration for the McKay Wellness Center (Alameda Federal Center Reuse Project) 1-2 (May 6, 2021), <https://alameda.legistar.com/View.ashx?GUID=A08A6AAF-40FB-4EA6-B504-E18388491869&ID=9350759&M=F>.

“sufficient integrity” for eligibility to be listed in the National Register of historic resources.¹⁵⁹ An image of the building to be demolished, taken by that firm during the visit, can be seen below.¹⁶⁰

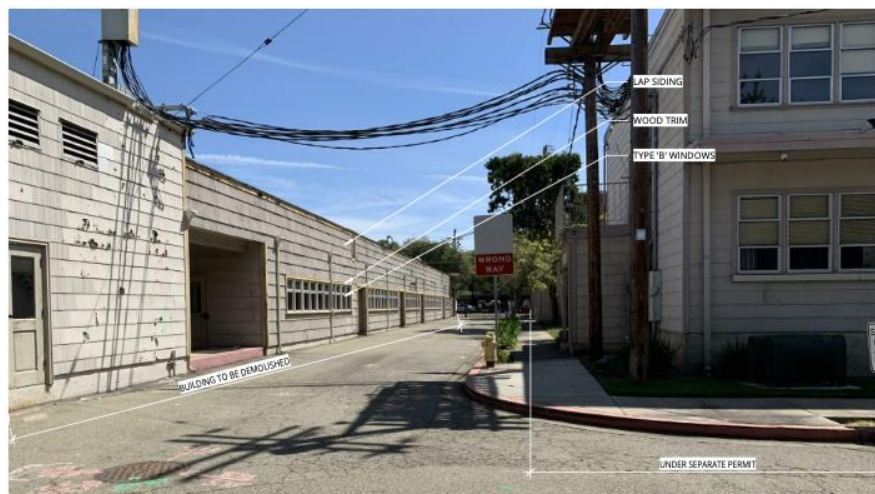


Figure 4: “Historic” Building to Be Demolished for the McKay Wellness Center in Alameda, CA

In San Ramon, an appellant’s attorney told the council that a permit application falsely claimed ownership of a disputed parking lot; staff responded, and the record confirmed that the application made no such claim.¹⁶¹ In Palo Alto, a regular critic charged that the planning report “quotes only property owners, brokers ... landlords”; the report *quotes* no one and documents outreach to businesses, retailers, childcare providers, and the public.¹⁶² In Encinitas, a commenter accused officials of “intentionally le[aving] out” a project’s wildfire-evacuation danger, though the fire department had already conducted its own evacuation analysis and disputed the residents’ study.¹⁶³

The procedural register has similar challenges. In a Davis hearing on an urgency ordinance requiring design review for “large” homes, one commenter asked whether there had been a “breakdown of communications” between the council and the planning department, given that planning “okayed” a large home addition and “didn’t bring it to council.” No rule required it to, though; the addition went through a ministerial permit process whose requirements the project fully satisfied.¹⁶⁴ In Fontana, the allegation’s failure was starker. A property owner appealed a warehouse

¹⁵⁹ Stacy Kozakavich, Page & Turnbull, Memorandum re: 620 Central Avenue/1245 McKay Avenue, Alameda (APN 74-1305-26-2), at 2, 8-10, 16 (Apr. 29, 2021), <https://www.alamedaca.gov/files/assets/public/v/1/major-planning-projects/mckay-2021/mckay-alameda-federal-center-april-2021-page-and-turnbull-memo.pdf>.

¹⁶⁰ *Id.* at 21.

¹⁶¹ City of San Ramon, City Council Meeting (Aug. 25, 2020); City of San Ramon, Staff Report, at 129-35, https://sanramonca.igmp2.com/Citizens/Detail_Meeting.aspx?ID=2954.

¹⁶² Compare City of Palo Alto, City Council Meeting (Dec. 14, 2020), with City of Palo Alto, City Manager Report No. 11702, at 18, <https://www.paloalto.gov/files/assets/public/v/1/agendas-minutes-reports/reports/city-manager-reports-cmrs/year-archive/2020-2/id-11702.pdf>.

¹⁶³ See City of Encinitas, City Council Meeting (June 8, 2022); Bill Slane, *Encinitas Disputes Claims in Independent Fire Analysis of Goodson Project*, THE COAST NEWS GROUP (Nov. 10, 2021), <https://thecoastnews.com/encinitas-disputes-claims-in-independent-fire-analysis-of-goodson-project/>.

¹⁶⁴ See City of Davis, City Council Meeting (Feb. 5, 2019); see also David M. Greenwald, *Planning Commission to Consider Permanent Ordinance on Design Review for Larger Homes*, DAVIS VANGUARD

by claiming that truck traffic would trespass on his private access road and neighboring parcels “must obtain land usage agreements from me”—a premise a California appellate court had already rejected in litigation to which he was a party, holding that the road was public, a decision staff had cited.¹⁶⁵

Most allegations, however, land between the poles as directionally true, but stated as something stronger. In Clovis, an attorney suing the city flagged that its draft annual progress report omitted an outstanding court order requiring rezoning for over four thousand additional units, doubling the disclosed obligation.¹⁶⁶ The order was under appeal at the time, but was affirmed weeks later.¹⁶⁷ In San Jose, a resident objected that a data center presentation touted replacing 47 trees while omitting that the project would remove 156. Yet the figure appeared in the project record, the applicant obliquely acknowledged it, and a councilmember referenced the tree-mitigation payment.¹⁶⁸ The objection is therefore better read as selective emphasis than factual concealment.

Fully corroborated misrepresentation claims are relatively rare and often nuanced. In a San Jose hotel appeal, the appellant read the exhibits against one another—the transportation plan promised guests a free shuttle, but the operations plan’s staffing list contained no shuttle driver.¹⁶⁹ In Oakland, a commenter charged that staff ignored a direct question about the racial composition of a project’s union workforce; the transcript shows the question asked, deemed “valid,” and left unanswered at the later meeting.¹⁷⁰ Even corroborated claims may add little if they are already known. In

(Apr. 6, 2019), <https://davisvanguard.org/2019/04/planning-commission-to-consider-permanent-ordinance-on-design-review-for-larger-homes/>.

¹⁶⁵ See City of Fontana, City Council Meeting (Mar. 23, 2021); S. Cal. Edison Co. v. Constant, 2020 WL 3261460, at *15 (Cal. Ct. App. June 15, 2020) (saying the avenue was “clearly a public road”).

¹⁶⁶ See City of Clovis, City Council Meeting (Mar. 20, 2023); Danielle Bergstrom, *Appeal Judge to Clovis: Make Way for More Affordable Housing*, KVPR (Apr. 7, 2023), <https://www.kvpr.org/local-news/2023-04-07/appeal-judge-to-clovis-make-way-for-more-affordable-housing> (describing a May 2021 order to plan for an additional 4,000 or so units).

¹⁶⁷ *Martinez v. Clovis*, 90 Cal. App. 5th 193 (Apr. 7, 2023).

¹⁶⁸ News coverage confirms the project would remove 156 trees and replant only 47. See Joseph Geha, *Proposed Data Center Spurs North San Jose Growth*, SAN JOSE SPOTLIGHT (May 4, 2023), <https://sanjosespotlight.com/proposed-data-center-development-stack-infrastructure-spurs-north-san-jose-growth/> (quoting Planning Comm’r Chuck Cantrell: “It seems to me a bit perverse to remove trees and not replace them.”)

¹⁶⁹ See Exhibit B—Appeal of Special Use Permit (File No. SP20-016) 18, 21–22 (Mar. 27, 2022), <https://sanjose.legistar.com/View.ashx?GUID=006A6595-A46F-4758-B1F5-A198743B8FB5&ID=11132712&M=F> (arguing that the developer’s operations plan omitted a shuttle driver despite the TDM plan’s shuttle commitment); compare Hexagon Transp. Consultants, Inc., 1212 S. Winchester Boulevard Hotel Development: Draft Transportation Demand Management (TDM) Plan 13 (Jan. 27, 2021), <https://sanjose.legistar.com/View.ashx?M=F&ID=11133583&GUID=C25A1DFB-B2D5-4141-A44A-6E966A20F803> (stating that the project “would offer free shuttles to guests”), with Exhibit I—Operations Plan, 1212–1224 S. Winchester Blvd Hotel 3 (filed Sept. 27, 2021), <https://sanjose.legistar.com/View.ashx?M=F&ID=11133579&GUID=939CB4E5-7F23-420F-BCBF-CE9FB3F8A984> (listing employee staff positions without a shuttle-driver position).

¹⁷⁰ See City of Oakland, City Council Meeting, Final Reading of the 12th Street Remainder Second DDA Amendment (Nov. 14, 2019); City of Oakland, City Council Meeting, First Reading of the 12th Street Remainder DDA Amendment (Nov. 5, 2019).

Cupertino, a commenter noted that a consultant's graph rested on only seven respondents, but planning commissioners had already raised the same problem earlier.¹⁷¹

The strongest vindications of accountability-styled allegations are procedural and often come from litigants and repeat players preserving objections for the record. In Richmond, commenters alleged that the city had negotiated in closed session in violation of the Brown Act; months later, a federal judge thought there was enough merit in this claim to deny a motion to dismiss.¹⁷² In Los Angeles, a union representative traced a hotel's path through the zoning process, arguing that the applicant first sought a zone that could not legally accommodate the project's 110 rooms, the correction enlarged the entitlement, and the council was poised to skip the review required for that change.¹⁷³ These patterns speak to the marginal value of oral comment within the broader accountability apparatus of records requests, audits, litigation, and state enforcement. In these comments, public comment is effectively operating as a courthouse antechamber.

The register a commenter adopts tracks the legal character of the proceedings. Where the city is making rules (general plans, zoning ordinances, housing-element updates), accountability sounds more systemic, with residents more likely to question whether the public was meaningfully consulted, to invoke disparate impacts on disadvantaged groups, and to contest which body is entitled to decide. Where the city is applying rules in an adjudicative setting, accountability comments sound more legalistic, with residents more likely to allege that the evidentiary record is dishonest and that a particular procedural requirement was violated.

Yet every register on display here presupposes something to inspect, like a staff report to contradict, a hearing record to audit, or a procedural step to catch being skipped. A substantial share of council business is conducted out of view. As Part I.A explains, the Brown Act allows closed sessions only for a limited set of reasons such as property negotiations, pending litigation, and personnel matters. The share of council meetings that included a closed session has remained

¹⁷¹ See City of Cupertino, City Council Meeting, Agenda Item No. 22-10325 (Feb. 1, 2022) (recounting what she had observed at the planning commission meeting the previous week).

¹⁷² See City of Richmond, City Council Meeting (Apr. 17, 2018); Barbara Harvey, *Lawsuit Challenging Point Molate Settlement to Proceed*, RICHMOND CONFIDENTIAL (Sept. 14, 2018), <https://richmondconfidential.org/2018/09/14/lawsuit-challenging-point-molate-settlement-to-proceed/>.

¹⁷³ See City of Los Angeles, City Council Meeting (Dec. 11, 2018); Communication from Council District 10 to L.A. City Clerk re: Council File No. 17-0558 (July 20, 2017) https://cityclerk.lacity.org/online/docs/2017/17-0558_misc_07-20-2017.pdf (proposing enlargement); Motion, L.A. City Council File No. 17-0558 (Dec. 7, 2018) https://cityclerk.lacity.org/online/docs/2017/17-0558_mot_12-07-2018.pdf (council about to rescind the referral and adopt directly).

relatively flat at around 51% between 2015 and 2025.¹⁷⁴ Comment-based accountability can extend only as far as the record does, and for half of council meetings, part of the record does not exist.¹⁷⁵

E. Participation as Procedural Cost

One of the predominant concerns of the prevailing critique is that participation lets organized residents block new construction, especially sorely needed new housing. Participation of course imposes first-order mechanical costs—for example, city council meetings in my sample have lengthened from about 186 minutes in 2015 to 205 in 2023 and the share running past six hours has risen from 6% to over 10%. But the abundance critique is predominantly concerned with the effects of participatory procedure on outcomes outside the council room, especially in housing. In this section, I first illustrate the scale of the issue with new facts about the housing pipeline in California. I then present evidence on the mechanisms through which participation may add costs to new development through outright vetoes, delay, and expensive conditions.

1. *Where Housing Is Lost in the Pipeline*

California is known for its sprawling developments of single-family homes, and this is captured in its existing housing stock, two-thirds of which is single-family.¹⁷⁶ Yet the majority of *proposed* new units in recent years are multifamily. Between 2018 and 2024, 59% of units proposed to local governments sat in projects of five or more units, against 23% in single-family homes and 10% in accessory dwelling units.¹⁷⁷ Multifamily projects also make up the plurality of units receiving building permits over the past seven years.¹⁷⁸ Multifamily is mathematically necessary to address housing supply issues, and it is the format that triggers discretionary review and therefore participation across California.¹⁷⁹

¹⁷⁴ A meeting is coded as having a closed session if its agenda or minutes, or its structured agenda line-items, cite a Brown Act closed-session authorization (Cal. Gov’t Code §§ 54956.7-.95, 54957, or 54957.6) or a standard closed-session item (e.g., conference with legal counsel re: litigation, with a labor negotiator, or over real property, or a public-employee personnel matter). The rate is computed by deterministic text-matching over the roughly 20,000 city-council meetings in 2015–2025 for which an agenda or minutes document could be retrieved (available for 67 of 115 cities). Because the document universe is enumerated directly from each city’s agenda portal rather than posted recordings, it is not a strict subset of the transcript corpus. These towns’ portals list meetings for which no video was ever posted (including closed-session-only special meetings), and only about 11,000 of the roughly 20,000 document-covered meetings correspond to a transcribed sample meeting.

¹⁷⁵ *But cf.* David E. Pozen, *Transparency’s Ideological Drift*, 128 YALE L. J. 100, 161 (2018) (urging a “desacralizing” of transparency and identifying the political valence to transparency).

¹⁷⁶ See U.S. Census Bureau, American Community Survey, 2020–2024 ACS 5-Year Estimates, Table B25024: Units in Structure (counting “1, detached” and “1, attached” as single-family units). For the postwar suburban archetype, see GARY J. MILLER, *CITIES BY CONTRACT: THE POLITICS OF MUNICIPAL INCORPORATION* 86–87 (1981).

¹⁷⁷ Olivia H. Martin, *Who Takes the Fast Lane? Multifamily Permit Streamlining in California* (Aug. 2026) (unpublished manuscript).

¹⁷⁸ *Id.*

¹⁷⁹ See Moira O’Neill, Giulia Gualco-Nelson & Eric Biber, *Developing Policy from the Ground Up: Examining Entitlement in the Bay Area to Inform California’s Housing Policy Debates*, 25 HASTINGS ENV’T L.J. 1, 49–50 (2019) (finding that all five examined jurisdictions required discretionary review for

The issue is not that there is not enough housing being *proposed* in California. From 2018 to 2020, developers proposed roughly 6,400 multifamily housing projects for a total of over 500,000 proposed units; this alone would make a meaningful dent in any estimate of the state's housing shortage, which ranges from around 800,000 to 3.5 million units.¹⁸⁰ But by 2025, only about 70 percent of those projects had received a city approval, and only about 30 percent had received a building permit.¹⁸¹

2. *Outright Denial Is Rare*

The simplest account of the lost projects is that cities deny them, and the denial rhetoric is commonly used. However, outright denials seem to be extremely rare, both in city council meetings and in planning commission meetings. Only three to five percent of city council votes on land-use issues result in denial¹⁸² and the same is true for only one percent of votes in San Francisco Planning Commission meetings. This is also corroborated by the state-mandated housing pipeline data from cities, which report denials for less than one percent of all proposed projects. This reorients the inquiry from the literal formal veto to the events that surround it.

3. *Participation Predicts Delay*

A second mechanism for participation to impose real costs is through delay. A recent RAND study of 50 completed market-rate projects found that California apartments take, on average, 28 months of pre-development time compared to 21 in Colorado and 13 in Texas.¹⁸³ California's own permitting data tell a similar story. Among 3,600 apartment projects with a building permit, the average number of days from application to building permit was 509 days or about 17 months;

residential developments of five or more units, even when zoning-compliant, and that San Francisco imposed discretionary review on all proposed projects).

¹⁸⁰ See UP FOR GROWTH, *3.85 Million Missing Homes in the U.S.* (Oct. 29, 2024), https://upforgrowth.org/news_insights/3-5-million-missing-homes-in-the-u-s/ (estimating California's housing underproduction at 840,000 homes); Lola Woetzel, Jan Mischke, Shannon Peloquin & Daniel Weisfield, *A Tool Kit to Close California's Housing Gap: 3.5 Million Homes by 2025*, MCKINSEY GLOBAL INST. (Oct. 2016), <https://www.mckinsey.com/featured-insights/urbanization/closing-californias-housing-gap> (estimating that California needed 3.5 million additional homes by 2025); LEGISLATIVE ANALYST'S OFFICE, CALIFORNIA'S HIGH HOUSING COSTS: CAUSES AND CONSEQUENCES (Mar. 2015), <https://lao.ca.gov/reports/2015/finance/housing-costs/housing-costs.aspx> (need to build up to 100,000 additional units annually).

¹⁸¹ Martin, *supra* note 177. For scale, the U.S. Bureau of Labor Statistics reports that, among private-sector establishments born in March 2013, 50.6% survived five years and 34.7% survived ten years; among construction establishments, 53.9% survived five years and 40.1% survived ten years. See Bureau of Labor Statistics, U.S. Department of Labor, *34.7 Percent of Business Establishments Born in 2013 Were Still Operating in 2023* (Jan. 12, 2024), <https://www.bls.gov/opub/ted/2024/34-7-percent-of-business-establishments-born-in-2013-were-still-operating-in-2023.htm>.

¹⁸² See Appendix § 5 for vote polarity methodology and validation. Beyond selection effects, the low denial rate might also reflect the fact that California law has increasingly made formal denial of housing projects legally dangerous, especially after *Cal. Renters v. San Mateo* clarified the strength of the Housing Accountability Act, which seeks to curb local governments' legal avenues to deny housing projects. 68 Cal. App. 5th 820, 830 (Sept. 10, 2021).

¹⁸³ JASON M. WARD & LUKE SCHLAKE, THE HIGH COST OF PRODUCING MULTIFAMILY HOUSING IN CALIFORNIA: EVIDENCE AND POLICY RECOMMENDATIONS, RAND CORP. RR-A3743-1, at 33 (Apr. 2025), https://www.rand.org/pubs/research_reports/RR-A3743-1.html.

however, for projects with 100 units or more, that number quickly approaches 800 days.¹⁸⁴ Despite California's wave of permit-streamlining reforms, a large housing project that applied in 2023 was only modestly more likely to receive a building permit within two years than one that applied in 2018—roughly one-quarter in either cohort. The only clear improvement is at the fast end. And as one would expect, delays are the worst in rich, coastal enclaves. San Francisco and West Hollywood lead in delay, with averages of 936 and 825 days, respectively.¹⁸⁵

San Francisco offers a compelling and feasible place to observe the relationship between participation and delay because its planning commission's records are unusually complete in documenting a project's full attributes, procedural history, and clerk-coded participant-level opposition to or support for a project.¹⁸⁶ I restrict the dataset to 581 proposals for projects of five or more units first heard between 1999 and 2024 and ask whether opposition at a project's first hearing predicts its subsequent path. It does, even after a demanding battery of controls including project size, a mixed-use indicator, neighborhood and hearing-year fixed effects, repeat player (developer and law-firm) indicators, project-history indicators such as a prior demolition, and census-tract socioeconomic controls.¹⁸⁷

Moving from no opposed speakers at the first hearing to three—roughly the threshold of an organized turnout—predicts about 1.3 additional continued hearings and nearly triples the span between a project's first and last commission event, turning the two months a typical proposal spends before the Commission into six. A doubling of supportive speakers predicts the mirror image at a comparable magnitude. Against a sample mean of 1.6 continuances and a 185-day commission window, these magnitudes are meaningful. They should not, however, be read as causal. Opposition is not randomly assigned; controversial projects draw opponents and unobserved features of a project beyond what I control may drive both turnout and delay. But even on that reading, the hearing is the venue where controversy converts into continuances, which is precisely the cost mechanism at issue.

4. *Participation and the Content of Approval Conditions*

A third mechanism, perhaps the least studied, is for participation to impose costs through negotiated conditions on a project. Some are legislative and generally applicable, like impact fees. Yet many are discretionary and negotiated, like changes to height, density, materials, parking, operating hours, affordability covenants, community-benefit funds, tenant protections, and public art. Many of these conditions may improve projects in ways that matter to residents, and they may force developers to internalize real local costs. But they also exemplify why understanding what is

¹⁸⁴ Martin, *supra* note 177.

¹⁸⁵ San Francisco's leadership remains even once adjusting for the mix of projects it has permitted—which are often on the larger end. *Id.*

¹⁸⁶ I expand on Sahn (2025) to assemble a project-level dataset of San Francisco Planning Commission matters from the Commission's published hearing records, linking each project across its repeated appearances and to staff reports providing rich details on project attributes. See Sahn, *supra* note 128; Appendix § 6 for details.

¹⁸⁷ Project-history indicators include whether there is evidence of residential demolition, tenant displacement, historic status, design-review concerns, and requested variances.

happening in processes beyond legislatively enacted zoning codes and impact fees is essential to understanding the costs on new development.

To measure conditioning, I follow projects across their repeated appearances before a council, linking agenda items that share a project name, address, parcel reference, or description within a city.¹⁸⁸ The land-use subset contains roughly 19,000 such histories, of which roughly 7,000 are for real development projects rather than citywide plans, fee schedules or policy resolutions. Conditioning is widespread; 49 percent of these histories carry at least one verified condition even though most come before the council only once, and among the multi-meeting histories that anchor the analysis below, 83 percent do. Roughly 70 percent of conditions appear to be negotiated under discretion (e.g., toning down exterior colors or adding a left-turn lane), whereas the remainder appear to be application of mandatory conditions like those imposed by citywide ordinances (e.g., minimum street setbacks, park in-lieu and impact fees, construction-hours limits).

Conditions sort into three rough types. The first and most common is infrastructure and access tied to the project's physical footprint: access and circulation conditions (17%, the single most prevalent category) and traffic mitigation (10%). These specify sidewalk and right-of-way dedications, bike lanes, emergency access, traffic signals, and fair-share contributions, and they map tightly onto the development itself, since new construction adds the trips and access demands the condition often offsets. Costs of these conditions are rarely explicitly discussed, but they can still be surprisingly large. For example, a 56-unit development of townhomes on a former industrial parcel on the Bay shoreline was conditioned to build a \$3 million, fourteen-foot-wide public Bay Trail extension along the waterfront.¹⁸⁹

The second type is control over a project's form and use, usually carrying no explicit price: design and aesthetic conditions (17%), use restrictions (11%), landscaping (11%) and noise (6%). Design and landscaping conditions specify things like single- or second-story stepping, fencing material, ground-floor treatment, and drought-tolerant planting. For example, a Simi Valley residential care facility was required to plant nine-foot Arbutus trees for "instant screening" of neighbors.¹⁹⁰ Noise conditions require sound walls and windows, roofs, and doors designed to reduce sound. In one extreme example, the Berkeley city council required a backyard hot tub to sit on a sound-reducing mat, with the pump "mounted and enclosed so that sound is not audible on adjacent properties."¹⁹¹ Use restrictions cabin permitted activity, such as limits on alcohol sales in mixed-use development.

¹⁸⁸ See Appendix § 7 for full linkage and condition extraction methodology.

¹⁸⁹ See Sierra Lopez, *Bayshore Condo Plan Approved in Redwood City*, SAN MATEO DAILY J. (June 28, 2023), https://www.smdailyjournal.com/news/local/bayshore-condo-plan-approved-in-redwood-city/article_ba6b6a20-1559-11ee-b0a8-570eb7e68d25.html; Regis Homes Bay Area, *New Housing Proposal: 505 E. Bayshore Townhomes*, at 10 (May 16, 2024), <https://www.bcdc.ca.gov/wp-content/uploads/sites/354/2024/01/2024-05-16-505EBayshore-v2.pdf> (valuing the easement at "\$3M+"). This condition was a descendant of state law because the San Francisco Bay Conservation and Development Commission has jurisdiction over a 100-foot shoreline band. See Cal. Gov't Code § 66610.

¹⁹⁰ City of Simi Valley, City Council Meeting (Aug. 23, 2021).

¹⁹¹ CITY OF BERKELEY, STAFF REPORT: 2924 RUSSELL STREET ADMINISTRATIVE USE PERMIT 4, 17 (2024) <https://berkeleyca.gov/sites/default/files/documents/2024-02-27%20Item%2015%20ZAB%20Appeal%202924%20Russell%20Street.pdf>. This was a non-discretionary

The third type is monetized and exaction-like: affordability covenants (15%) and community-benefit packages (11%), where the condition is more likely to include a specific dollar or dedicated unit count. For example, approval of a 303-unit development in Mountain View was conditioned on a \$4 million community benefit package, much of which would go to improving the city's sewer and water infrastructure, in addition to a \$1.5 million voluntary school contribution beyond the state-mandated school impact fee.¹⁹² Community benefit packages are most common for large mixed-use projects. Figures climb into the tens of millions for the largest projects. For example, a South San Francisco mixed-use development carried a \$47 million community-benefits package.¹⁹³

Conditions can also reshape core project characteristics like size and height. Across the 1,659 projects with documented changes in core features, the most consistent movement is downward on building height. 69 percent of recorded height changes are reductions, with a median cut near 17 percent, a typical project falling from 42 to 35 feet.¹⁹⁴ Unit counts move in both directions, with decreases accounting for 43 percent of recorded unit-count changes; reductions concentrate in the larger projects, while increases often track density-bonus negotiations in the transcript. Projects frequently have affordable units added to them throughout the approval process. As with named conditions, this captures only movements stated on the record, so these counts understate how often a project is resized between application and approval.

Unlike delay, the presence of conditions does not appear rationalizable by turnout. Roughly eight in ten projects end up with some form of condition visible in the transcript record, and neither opposition nor support at a project's first hearing predicts the incidence or count of conditions under a battery of controls similar to those used in the delay exercise above.¹⁹⁵ Yet participation does strongly track *which* conditions attach.¹⁹⁶ When each public comment at a project's first hearing is categorized into the same sixteen categories used for conditions—traffic, parking, design, noise, affordability, and so on—the categories the public raises reasonably predict what conditions appear. A category raised at the first hearing is about 9 percentage points more likely to appear among the project's conditions, against a base rate of 16 percent, with project and category fixed effects absorbing the fact that contested projects attract both more comment and more conditions.¹⁹⁷

Overall, project conditions are prevalent and achieve a wide variety of purposes, some of them tightly tied to project-impact mitigation, and some more loosely tied to off-site or third-party transfers. The exposure of this type of conditioning under current takings doctrine is explored in further detail in Part III.

condition. *See* Berkeley, Cal. Mun. Code § 23.304.070(D)(2) (requiring jacuzzi pumps to be mounted and enclosed for sound purposes).

¹⁹² City of Mountain View, City Council Meeting (June 30, 2020); City of Mountain View, Env't Planning Comm'n, Staff report: 1001 North Shoreline Boulevard Residential Development 18-20 (May 6, 2020), <https://mountainview.legistar.com/View.ashx?M=F&ID=8299170&GUID=D1C18CB4-DD7A-46A8-9A6C-4C43167203F4>.

¹⁹³ City of South San Francisco, City Council Meeting (Nov. 13, 2019) (approving an 800-unit mixed-use project at 1051 Mission Rd).

¹⁹⁴ *See* Appendix § 7.2 for methodology.

¹⁹⁵ Full regression table in Appendix § 7.3. Sample here is projects observed across multiple meetings.

¹⁹⁶ *Id.*

¹⁹⁷ *Id.*

III. Designing Local Participation

The empirical reality of public participation offers two broad lessons. One is that local participation in its current form has struggled to keep up with many of its purported benefits. Participation is sparse and unrepresentative. Project hearings elicit some valuable, situated knowledge, but much of their informational content is already available to officials or concerns forecasts and broader systems poorly matched to parcel-level adjudication. Comments alleging accountability failures seem roughly as likely to raise valid points as invalid ones, and even the procedural legitimacy function of participation is on uncertain footing, empirically and theoretically as applied to this setting.¹⁹⁸ The second is that evidence suggests a real relationship between heavy participation and project delays, and identifies conditions of approval as a mechanism translating participatory concerns into increased project complexity, all amidst a pipeline in which housing is sorely needed and proposed housing projects are substantially less likely to succeed than other new businesses.

The question this Part takes up is how to redesign participation so that it better achieves its stated purposes and produces fewer of its deleterious effects. Current law treats public input as a general-purpose procedural good, attaching it to legislative planning, discretionary permitting, environmental review, and appeals alike. This Part proposes a reallocation.¹⁹⁹ Broad participation should be concentrated in the local adoption and revision of generally applicable legislative plans and rules, with investments in reaching constituencies poorly represented in existing proceedings. In the housing setting, those local choices would operate within state-established planning obligations and enforcement frameworks. Housing applications satisfying the resulting objective standards would then receive ministerial approval, and participation at that stage would be narrowly limited to solicited input on safety-related concerns in post-entitlement proceedings. Part III.A develops this reallocation. Part III.B examines the legal mechanisms for constraining project-level discretion and its costs. It considers how takings doctrine might discipline the conversion of public opposition into project conditions; how to limit the ability of participation to become litigation leverage; and how state preemption and ministerial regimes might reduce the discretion through which local opposition affects project outcomes directly. The goal is a system in which residents have a meaningful voice over the rules shaping local growth, while individual projects that satisfy those rules are not forced to relitigate the growth question parcel by parcel.²⁰⁰

¹⁹⁸ See *supra* Part I.B.4.

¹⁹⁹ The reallocation proposed here is in the spirit of several recent proposals. In the infrastructure permitting context, see Zachary Liscow, *Getting Infrastructure Built: The Law and Economics of Permitting*, 39 J. ECON. PERSP. 151 (2025) (proposing reform through increased executive authority to decide and capacity to plan while streamlining project-level approval). In the local land use context, see Lemar, *supra* note 16; Moira O'Neill, Christopher S. Elmendorf, Eric Biber & Paavo Monkkonen, *State Administrative Review of Local Constraints on Housing Development: Improving the California Model*, 63 ARIZ. L. REV. 609 (2021) (proposing how state review can make housing elements' commitments enforceable—a precondition for the reallocation proposed here).

²⁰⁰ The concept of not relitigating the existence of rules in their enforcement should be a familiar one in federal administrative law. See, e.g., *Indep. Cmty. Bankers of Am. v. Bd. of Governors of Fed. Rsrv. Sys.*, 195 F.3d 28, 34 (D.C. Cir. 1999).

A. Reallocating Participation

The most straightforward responses to participation's shortcomings have centered around whether there should be more or less of it.²⁰¹ One response is to expand opportunities to participate, making meetings easier to attend and inviting more people into the process.²⁰² However, when pandemic-era Zoom reduced attendance costs, participation broadened only briefly and then reverted, with the under-40 share of commenters jumping from 22 to 30 percent before returning to baseline by March 2021.²⁰³ Moreover, cities with more participation per capita are, if anything, less representative of their registered voters. The opposite instinct is subtraction. If the numerous participation mandates across state codes deliver little, perhaps we should halve them. The abundance literature gestures in this direction, and Lemar's titular diagnosis of "overparticipation" invites it.²⁰⁴ But subtraction ignores participation's supply of information and its role as an expressive outlet.²⁰⁵ The abundance critique sometimes tends to treat process as an undifferentiated mass without asking whether participation's value varies by decision type. Its target is typically procedure in gross, not procedure at the wrong stage.

Instead of focusing on whether there should be more or less participation, my proposal centers on the how and when of participation. The proposal developed here concentrates broad engagement at selected moments when local governments establish the plans and rules governing development and narrows participation in their application to post-entitlement safety-related concerns. The periodic revisions of the locality's planning for how it will allocate space to meet the region's housing needs would become the city's main participatory events. The following subsections identify why reallocation is a promising solution, what the reallocated participation should look like, and what ingredients are required to make the proposal work.

1. *Why Reallocate*

Two findings from Part II motivate the proposed reallocation. First, participation is sparse, concentrated among repeat speakers, and demographically unrepresentative. Cities with more participation do not consistently draw more representative participants. Improving representation therefore requires attention to who participates, but meaningful outreach and deliberate efforts to include underrepresented constituencies require significant investments of time and resources. Undertaking those efforts across the full range of project-specific hearings would be a Sisyphean task. But concentrating participation at selected planning moments would make it possible to direct

²⁰¹ See generally BRUCE CAIN, *DEMOCRACY MORE OR LESS* (2014).

²⁰² See Lemar, *supra* note 16, at 1087, 1094, 1102; Johnnie Pina, *SB 707 Has Dramatically Overhauled California's Brown Act*, SONOMA VALLEY SUN (Nov. 27, 2025), <https://sonomasun.com/2025/11/27/sb-707-has-dramatically-overhauled-californias-brown-act/>.

²⁰³ See Martin & Venugopal, *supra* note 129 at 29.

²⁰⁴ KLEIN & THOMPSON, *supra* note 18; Lemar, *supra* note 16; Feinstein & Walters, *supra* note 18 at 4, 54 (describing the Trump administration's attempts to dismantle participatory mechanisms at the federal level).

²⁰⁵ In-person participation may continue to have an increased importance and value as concerns grow about bots and "highly realistic AI-controlled personas" dominating online participatory spheres. See, e.g., Mekela Panditharatne & Daniel I. Weiner, *Artificial Intelligence, Participatory Democracy, and Responsive Government*, BRENNAN CTR. FOR J. (Nov. 3, 2023), <https://www.brennancenter.org/our-work/research-reports/artificial-intelligence-participatory-democracy-and-responsive-government>.

those investments toward a smaller number of proceedings whose decisions govern many subsequent projects.

The second finding concerns the information participation supplies. Part II finds that firsthand observations about conditions at the project site constitute only a relatively small share of informational contributions. Many contributions concern forecasts, repeat information already available in meeting materials, or describe conditions extending beyond the parcel at issue. Even valuable firsthand observations can have this broader scope. A resident's report that bicyclists routinely ride on the sidewalk, for example, identifies a transportation planning problem that approving or denying the particular development will not itself resolve. The observation may bear on some aspect of the project, but the scope of the problem and the measures available to address it often extend beyond that approval decision. This distinction informs the proposal to gather broader information in planning proceedings while preserving a narrower channel for observations bearing directly on a particular project's compliance and safe implementation.

In the current legal scheme, participation is seemingly in everything, everywhere, all at once.²⁰⁶ But it was not always this way. The Standard State Zoning Enabling Act—the federal model statute that nearly every state adopted in some form, and that remains the structural backbone of local zoning procedure—encoded a sharp distinction between two kinds of land use decisions.²⁰⁷ *Legislative* decisions, covering adoption and amendment of zoning ordinances, demanded broad participation by design.²⁰⁸ *Adjudicative* decisions, such as decisions on variances, conditional use permits, and special exceptions, offered narrow participation, allowing only limited parties to present evidence.²⁰⁹

A century of practice has blurred the Standard Zoning Enabling Act's clean binary. Between the citywide ordinance and the single-parcel variance sits a large middle category of site-specific rezonings, project-driven general plan and specific plan amendments, and development agreements. These are legislative instruments aimed at an identified parcel and applicant. Courts have struggled to define their place. Oregon's *Fasano* line treats site-specific rezonings as quasi-judicial because their function is particular; California's *Arnel* rule labels them legislative because their form is an ordinance; and Florida's courts concede that the local zoning authority “wears many functional hats.”²¹⁰ Federal administrative law has fared little better with its own quasi-labels.²¹¹ I employ a functionalist approach and refer to a decision as legislative when it adopts prospective rules of general application, and adjudicative when it applies rules to an identified site or applicant

²⁰⁶ Cf. Everything Everywhere All at Once (A24 2022).

²⁰⁷ See Standard State Zoning Enabling Act, *supra* note 16, at iii & n.1, 1, 3.

²⁰⁸ *Id.* at §§ 4–6, at 7–9 & § 4 n.28, at 7.

²⁰⁹ See *id.* § 7, at 9–11.

²¹⁰ *Fasano v. Bd. of Cnty. Comm'rs*, 507 P.2d 23 (Or. 1973); *Arnel Dev. Co. v. City of Costa Mesa*, 620 P.2d 565 (Cal. 1980); *Snyder v. Bd. of Cnty. Comm'rs*, 595 So. 2d 65, 71 (Fla. Dist. Ct. App. 1991).

²¹¹ See *Trump v. Slaughter*, 609 U.S. __ (2026) (slip op., at 19–23) (rejecting *Humphrey's Executor's* reliance on “quasi-legislative” and “quasi-judicial” categories and overruling what remained of *Humphrey's*); Beau J. Baumann & Jed H. Shugerman, *Quasi-Judicial: A History and Tradition*, 127 Colum. L. Rev. (forthcoming, 2026).

regardless of form.²¹² My proposal concentrates participation in functionally legislative settings and narrows it in functionally adjudicative settings.

This reallocation also reflects where participation can most contribute. Because legislative decisions often turn on questions of value, deliberation among diverse resident perspectives can be highly productive in forming broadly applicable rules. Project-specific proceedings turn instead on facts about a parcel and its compliance with established requirements. The value tradeoffs that meaningful deliberation requires are difficult to make in (what should be) a narrow application of law to facts. Federal administrative law makes a similar choice in its allocation of broad participation rights predominantly to the rulemaking, rather than adjudicatory, work of agencies.

Montana offers a contemporary example of this approach. Its 2023 Land Use Planning Act emphasizes public participation in developing land use plans, followed by streamlined administrative review of site-specific applications.²¹³ One of the bill’s principal drafters described the theory as doing “the planning and the public participation up front,” allowing permitting to “becom[e] a very administrative process.”²¹⁴ The Act has already survived a claim that it violates the state’s constitutional provision guaranteeing public participation in agency operations.²¹⁵

2. *Designing Upstream Participation*

Upstream participation should focus on legislative planning moments that work within binding housing targets and timelines set and enforced by the state government.²¹⁶ A natural moment is when cities are updating the housing element of their general plan—an event that is mandated in some form in most states.²¹⁷ In California, for example, cities must assess housing needs across

²¹² To clarify, this decision distinction should not be confused with the evidentiary one. See Kenneth Culp Davis, *An Approach to Problems of Evidence in the Administrative Process*, 55 HARV. L. REV. 364 (1942) (distinguishing between legislative and adjudicative facts). Moreover, my proposal requires little to no doctrinal policing of the still delicate and difficult line between legislative and adjudicative decisions. The upstream half requires cities only to designate a short list of key legislative moments for concentrated investment. The downstream half requires no such delineation; a project proceeds ministerially if it satisfies objective standards, whatever the approving instrument would otherwise have been called. This does leave rezonings in somewhat of a grey area in which proposed projects, by definition, do not meet objective standards; however, I have confidence in the continued success of the long ongoing rezoning movement to further reduce the number of occasions in which this is a true bottleneck. See *infra* note 269.

²¹³ Mont. Code Ann. § 76-25-101 to -504 (codifying S.B. 382).

²¹⁴ Eric Dietrich, *Land Planning Overhaul Would Prioritize Proactive Urban Planning*, MONT. FREE PRESS (Feb. 23, 2023), <https://montanafreepress.org/2023/02/23/montana-land-planning-overhaul-prioritize-proactive-urban-planning/>.

²¹⁵ See *Montanans Against Irresponsible Densification, LLC v. State*, 2026 MT 53. Amendments enacted in 2025 temporarily expanded notice and comment on initial administrative determinations; those provisions are scheduled to expire on June 30, 2027. *Id.*

²¹⁶ Cf. Roderick M. Hills, Jr. & David Schleicher, *Planning an Affordable City*, 101 IOWA L. REV. 91, 94 (2015) (arguing that “the solution to excessive zoning is centralized, comprehensive, and binding land-use planning”).

²¹⁷ A survey of state statutes suggests that 30 states require housing planning in some form and 7 encourage it. For states that mandate such planning, see, e.g., Cal. Gov’t Code § 65302(c); Fla. Stat. § 163.3177(6)(f); Md. Code Ann., Land Use § 3-102(a)(1)(iv); Ariz. Rev. Stat. Ann. § 9-461.05(E)(6) (only for cities with at least 50,000 residents); Wash. Rev. Code § 36.70A (requiring housing elements only in larger and growing jurisdictions); Vt. Stat. Ann. tit. 24, § 4382(a)(10). Other states make the housing element of the general plan optional. See, e.g., N.Y. Gen. City Law §28-a(4) (“may” include housing considerations); N.H. Rev.

income levels, identify sites to accommodate their share of regional housing needs, and adopt a schedule of actions (including rezoning where necessary) to make those sites available.²¹⁸ Ideally, this planning occurs within state or regionally defined housing obligations to restrict the exclusionary tendencies of many wealthier communities; such statutory schemes are rarer but becoming more common.²¹⁹ Given the strong collective action issues that plague the political economy of housing development, a key element to the success of such a reallocation is an active state role in setting local obligations, monitoring their compliance, and enforcing these expectations. Without this role, upstream participation would still be vulnerable to capture by organized interests, though leverage for project-by-project holdup problems may be reduced.²²⁰ As scholars have noted, the state dynamic also gives councilmembers political cover to commit to housing by negotiating in the shadow of a pro-housing default and deflecting political blame to state officials.²²¹ With increased enforcement and scrutiny, cities appear to be acting on promised rezonings that are often the outcomes of housing element discussions.²²²

Might such upstream meetings suffer from the same demographic imbalance documented in this Article? Maybe, without further intervention. But one of the driving rationales for the reallocation is that focusing participation on less frequent moments makes more meaningful

Stat. Ann. § 674:2, III(I). Others do not even specify a housing element for city general plans. *See, e.g.*, Tex. Loc. Gov't Code Ann. § 213.002; Ohio Rev. Code Ann. § 713.02.

²¹⁸ Cal. Gov't Code § 65583.

²¹⁹ *See, e.g.* Cal. Gov't Code § 65584 (allocating regional housing need among localities by income level, with objectives addressing income concentration and affirmatively furthering fair housing); N.J. Stat. Ann. §§ 52:27D-304.1 to -304.3 (establishing municipal fair-share obligations under statutory formulas incorporating income and land capacity); Minn. Stat. § 473.859 (similar); Wash. Rev. Code § 36.70A.070(2) (similar); Or. Rev. Stat. § 184.453 (similar); Vt. Stat. Ann. tit. 24 §§ 4348a (similar at the regional level). Oregon and Vermont's statutes were recent, enacted in 2023.

²²⁰ Housing element meetings in my dataset also provide promising evidence that the views towards development in these discussions look more like those of the broader public. Among non-applicant speakers in housing element discussions, 37 percent supported the development outcome and 25 percent opposed, while across all other land use items the balance ran 41 percent opposed to 32 percent in favor. This is more in accord with national survey evidence that most Americans want more housing. *See supra* note 147. Even if I were to only compare the most recent year of full data—2023—anti-development sentiment still outnumbers pro-development sentiment. Appendix § 3.1.

²²¹ Christopher S. Elmendorf, Eric Biber, Paavo Monkkonen & Moira O'Neill, "I Would, If Only I Could": *How California Cities Can Use State Law to Overcome Neighborhood Resistance to New Housing*, 57 WILLAMETTE L. REV. 221 (2021). *But cf.* Miriam Seifter, *Counter-majoritarian Legislatures*, 121 COL. L. REV. 1733 (2021) (questioning the widespread belief that state legislatures are heroic emblems of majoritarian democracy). While most recent state laws preempting local control in the housing process generally seem to be productively targeting cities' exclusionary tendencies (rather than strengthening local control), some seem to have made unproductive concessions to wealthy cities. *See* S.B. 15, 89th Leg., Reg. Sess. § 1 (Tex. 2025) (excluding from its preemptive effects cities with under 150,000 population and homeowners' associations and private covenants, effectively nullifying effects on many of the state's wealthiest areas).

²²² For example, San Francisco committed to rezone for roughly 36,282 units, which it appears to have completed prior to the state's statutory deadline. Press Release, Office of the Mayor, City & County of San Francisco, Mayor Lurie Signs Historic Family Zoning Legislation (Dec. 12, 2025), <https://www.sf.gov/news-mayor-lurie-signs-historic-family-zoning-legislation-to-make-city-affordable-for-generations-of-san-franciscans>. Los Angeles similarly made good on its Housing Element commitment to rezone 252,415 units before the state's deadline. Steven Sharp, *City Council Approves Housing Element Rezoning Program*, URBANIZE L.A. (Dec. 11, 2024), <https://la.urbanize.city/post/city-council-approves-housing-element-rezoning-program>.

investment in representation possible. There is a rich literature proposing an array of mechanisms to remedy unrepresentative participation: intentionally balanced advisory boards, the convening of “mini-publics” or randomly selected citizens, or targeted polling.²²³ Each of these mechanisms has its vulnerabilities; for example, boards get captured, mini-publics are costly to convene, and surveys sometimes elicit thin, unconsidered preferences. But representativeness, theoretically, is purchasable with sufficient procedural and financial cost. And reducing the participatory surface should make such investments in representative depth more feasible.²²⁴

Another concern is that the abstract nature of long-term planning might be insufficiently salient to attract participation in general, regardless of its demographic composition. First, the more abstract nature of preferences at this stage may itself be a virtue: by bringing participation closer to a Rawlsian veil of ignorance, it may encourage more thoughtful deliberation.²²⁵ Second, at least in California, housing element and related legislative discussions routinely draw significant crowds, and are commonplace among the meetings that go on late in the night.²²⁶ Part of this draw may be how California makes this planning process concrete; as part of their housing element, California cities must prepare a “site inventory” of land and parcels suitable and available for development. This process facilitates engagement with more geographically specific preferences and information to inform tradeoffs, but against the backdrop of a state mandate to produce a plan and an inventory in a timely fashion to reduce uncertainty across the board for developers.

Yet another concern might be that such a reallocation would lose out on valuable project-specific information. The findings from this paper should alleviate some of this concern. Many comments at project-specific hearings consist of judgments residents are poorly positioned to make, like forecasts, aggregate traffic and economic effects, crime impacts, and other system-level

²²³ See, e.g., JOSEPH DE ANGELIS, RICHARD ROSENTHAL & BRIAN BUCHNER, CIVILIAN OVERSIGHT OF LAW ENFORCEMENT: ASSESSING THE EVIDENCE 13 (2016), <https://www2.burlingtonvt.gov/Archives/bd/BUYR3W6A0665/Exhibit%20D%20-%20Civilian%20Oversight%20-%20Assessing%20the%20Evidence.pdf> (advisory boards); David M. Farrell & Peter Stone, *Sortition and Mini-Publics: A Different Kind of Representation*, in THE OXFORD HANDBOOK OF POLITICAL REPRESENTATION IN LIBERAL DEMOCRACIES 228 (Robert Rohrschneider & Jacques Thomassen eds., 2020) (mini-publics).

²²⁴ California specifically calls for “a diligent effort . . . to achieve public participation of all economic segments of the community” during the housing element process. Cal Gov’t Code § 65583(c)(9). The reallocation I propose might even be paired with an equivalent such mandate if one does not already exist.

²²⁵ See generally JOHN RAWLS, A THEORY OF JUSTICE (1971).

²²⁶ Meetings with a housing element session are above-median meetings in terms of per-capita participation in my dataset (about 60.5 speakers per 10k residents, compared to 50 per 10k residents). Public media coverage also documents main housing element discussions going late into the night due to heavy participation. See, e.g., Riley Cooke, *Council Spars Over Strategies to Limit Impact of Contentious Housing Law*, PALO ALTO ONLINE (June 2, 2026), <https://www.paloaltoonline.com/housing/2026/06/02/council-spars-over-strategies-to-limit-impact-of-contentious-housing-law/> (describing a meeting going into “the wee hours” of the morning over planning how to comply with new state law changes); Clara Harter, *Council Approves Housing Element for 8,895 Units by 2029*, SANTA MONICA DAILY PRESS (Oct. 14, 2021) <https://www.smdp.com/council-approves-housing-element-plan-for-8895-new-units-by-2029/> (describing a six hour long council discussion on the city’s housing element plan); Bob Staedler, *Where Is the City’s State-Required Housing Plan?*, SAN JOSE SPOTLIGHT (Mar. 6, 2023) (planning for “several hours of public comment” for an upcoming housing element meeting) <https://sanjosespotlight.com/staedler-where-is-the-citys-state-required-housing-plan/>.

inferences that trained staff should feasibly be able to make and for which local intuition likely degrades accuracy. Of course, commenters do sometimes offer useful information that draws directly from firsthand, observational experience—such as the road segment where bicyclists ride on the sidewalk, or the fact that drivers regularly fail to stop at a particular stop sign. But as Part II showed, such comments are rare, and even when they do come up in project-level discussions, are often misallocated. A project-level hearing is not the appropriate place to re-design a city’s bike lane network or to fix traffic enforcement; such ideas should be gathered in broader legislative meetings about these topics. Then, there are still the rare comments that make first-hand observations about practices which could have direct project-design implications: for example, in planning one project in Simi Valley, a neighbor reported that the project entrance was too narrow for two cars to pass and reported two prior sideswipe collisions. These are the only kinds of comments that merit consideration during what should otherwise be a ministerial application of law to facts.

One solution could be to allow noticed abutters and other affected parties to submit written evidence on the defined question of whether the project complies with the adopted objective standards at the approval stage. Issues about how a compliant project will operate would then move to an expeditious implementation conference convened *after* entitlement, when the project’s existence is settled.²²⁷ This is the stage at which other safety-critical evaluations occur, including the building permit process. Participation at the approval stage converts every observation into a bargaining chip against the project’s success. But input after entitlement ideally removes the strongest threats that such input can pose.

3. *Participation and Legitimacy*

Reallocating participation toward legislative planning and away from project-specific adjudication may initially appear to reverse the constitutional allocation of procedural rights. For over a century, the *Londoner* and *Bi-Metallic* duet of cases has instructed administrative law students that adjudications typically demand *more* procedural due process than rulemakings do.²²⁸ In *Londoner*, the Court held that the Denver city council—acting as an agency—erred by failing to provide a hearing for a small set of property owners affected by a special assessment applied only to a small, new, and “arbitrarily created” district in the city—a quintessential adjudication.²²⁹ In contrast, in *Bi-Metallic*, the Court held that the state could raise the valuation of all taxable property—a quintessential, generally applicable, legislative move—in Denver without a hearing.²³⁰ The proposal here places greater emphasis on broad participation precisely where constitutional doctrine generally demands less.

²²⁷ “Expeditious” would ideally mean a specified window—for example, 30 days—within which the city may hold the conference, after which it forfeits the opportunity.

²²⁸ *But cf.* SEC v. Chenery Corp. (Chenery II), 332 U.S. 194, 202-03 (1947) (recognizing that agencies may develop policy through adjudication and that the choice between rulemaking and adjudication lies primarily in agency discretion).

²²⁹ 210 U.S. 373 (1908).

²³⁰ 239 U.S. 441 (1915).

The apparent inversion reflects the different questions being asked. Broad public participation is theoretically intended to elicit pluralistic perspectives, integrate distributed expertise, hold policymakers accountable, and provide an expressive outlet. Constitutional procedural due process, on the other hand, protects individuals against governmental deprivation of a protected interest.²³¹ Opposition to neighboring development, however sincerely felt, does not itself establish such a deprivation.²³² Neighboring ownership alone does not confer a right to unobstructed light, air, or views, according to the common law.²³³ Participation requirements thus give neighbors a right to be heard that does not depend on a threatened deprivation of a constitutionally protected interest.

More broadly, the proposed reallocation situates public input within a broader system of democratic participation. Voters elect the city councils that adopt local development rules and the state legislatures that establish housing obligations and enforcement frameworks, and can hold both accountable for those choices. Participants can still actively participate in shaping where and how (but not whether) housing is built in their city, and can still offer narrowly-tailored evidence concerning compliance and safety post-entitlement. The idea is to ensure meaningful democratic representation as well as much needed finality, enabling choices made through elected institutions to govern subsequent projects without requiring a renewed debate over those choices each time an applicant seeks to build.

Ultimately, participation's expressive value in the particular form of project-specific discussions must be assessed against the unequal distribution of opportunities to exercise it as well as a host of other competing values. If being heard matters because it recognizes affected people as persons whose interests government must take seriously, then the practical accessibility of that recognition matters too. As Part I explained, securing official attention through public comment depends heavily on free time, flexibility, and existing residence in the community; Part II documents the resulting demographic imbalance among speakers. A procedure that makes recognition more accessible to those with these advantages gives insufficient expression to the equal standing of others whose interests are also at stake. And even accepting that project-level

²³¹ *Mathews*, 424 U.S. at 332-35.

²³² See *Roth*, 408 U.S. at 571-77 (1972) (requiring a “legitimate claim of entitlement” created by “existing rules or understandings that stem from an independent source such as state law”); *Gagliardi v. Vill. of Pawling*, 18 F.3d 188, 192-93 (2d Cir. 1994) (holding that adjacent homeowners had no constitutional property interest in enforcement of zoning laws or permits and variances granted to neighboring properties).

²³³ See *Fontainebleau Hotel Corp. v. Forty-Five Twenty-Five, Inc.*, 114 So. 2d 357, 359 (Fla. Dist. Ct. App. 1959) (“No American decision has [held that] . . . a landowner has a legal right to the free flow of light and air across the adjoining land of his neighbor.”); *Wolford v. Thomas*, 190 Cal. App. 3d 347, 356-59 (1987) (similar). California’s *Horn v. County of Ventura* recognizes an important qualification. *Horn v. County of Ventura*, 596 P.2d 1134, 1138 (Cal. 1979). There, the plaintiff alleged that a proposed subdivision would substantially interfere with his only access to public streets, alongside increased congestion and air pollution. The court held those allegations sufficient to require preapproval notice and hearing. There, the plaintiff had a uniquely strong claim of substantial interference with his only access. Its rule still requires a substantial property deprivation, and the opinion expressly excludes the nondiscretionary application of objective standards from its inquiry. Regardless, *Horn* still raises concern for those trying to conduct streamlining. See Milene Minassians, *Saving the Permit Streamlining Act: The California Supreme Court Must Depart from Horn v. County of Ventura*, 30 HASTINGS ENVTL L.J. 105 (2024).

participation confers an independent dignitary benefit that upstream participation cannot deliver, it is still not obvious that this benefit should take precedence over other values like enabling people to live near transit, their work, and in more socioeconomically diverse settings, or in the case of homeless shelter, saving the lives of unhoused individuals.²³⁴

B. Taming Participation's Costs

This section evaluates three responses to participation's costs in ascending order of promise: constitutionalizing limits on participation-driven conditions through takings doctrine, curtailing the environmental review statutes that convert hearings into litigation records, and preempting project-level discretion altogether.

1. Takings Insulation

Part II brought to light the diversity of conditions that are imposed on new development projects. A number of these conditions are introduced in response to concerns raised by public commenters and stakeholders. A number of these conditions also sit uneasily with the Supreme Court's ever-expanding Takings Clause doctrine, and one natural response to the participation-driven costs catalogued above is to constitutionalize their limits. That is the path the Court itself has steadily extended over four decades.

The line of cases applying scrutiny to exactions of property as conditions for permits began humbly enough in *Nollan v. California Coastal Commission*.²³⁵ There, the Court found the Coastal Commission's imposition on a coastal permit of a condition requiring an easement for public beach access—under the concern that the building project would create a “psychological barrier” to beach access—to lack an “essential nexus” between “the condition and the original purpose of the building restriction” and therefore to constitute an unconstitutional taking.²³⁶ The Court then raised the scrutiny of this nexus requirement to require rough proportionality between conditions imposed and the impact of land use in *Dolan v. City of Tigard*.²³⁷ Two decades later, the doctrine took another leap in *Koontz*, where the Court expanded the doctrine to include monetary exactions when in lieu of a property exaction.²³⁸ And most recently, in *Sheetz*, the Court further expanded takings analysis to apply not just to individually adjudicated conditions, but also to broad legislatively imposed conditions like traffic impact fees set in a general plan.²³⁹ Notably, *Sheetz* was delivered unanimously.²⁴⁰ And now, there are calls to push the doctrine even further to invalidate rent control

²³⁴ See Derek Christopher, Mark Duggan & Olivia Martin, *The Social and Individual Effects of Homeless Shelter: Evidence from Temporary Shelter Provision*, NBER Working Paper 34376 (2025).

²³⁵ 483 U.S. 825 (1987).

²³⁶ *Id.* at 837-838.

²³⁷ 512 U.S. 374, 386, 391 (1994).

²³⁸ 570 U.S. 595, 612-15, 619 (2013); see also *id.* at 620-21, 630, 636 (Kagan, J., dissenting) (arguing that the majority had extended *Nollan/Dolan* to monetary demands even though the district “never demanded anything” in exchange for the permit).

²³⁹ *Sheetz v. Cnty. of El Dorado*, 601 U.S. 267, 271-72, 276-80 (2024).

²⁴⁰ Note, however, that the question presented was quite limited. See *id.* at 280-81 (Sotomayor, J., concurring).

ordinances.²⁴¹ *Sheetz*'s novel move was its extension to legislative fees, requiring further production of "nexus studies" to prove the connection between fees and project impacts.

Some conditions imposed on development projects potentially raise doctrinal questions. The most common form of conditions, circulation conditions, likely mostly evade serious scrutiny under Takings Clause analysis, as the nexus is quite tight; new developments inevitably introduce new congestion, and conditions designed to mitigate that congestion are closely linked to the approval of new development.²⁴² The next most common conditions are design and aesthetic requirements. These may impose significant costs on projects, yet it is unclear whether they qualify as exactions of *property* in the same way an easement—or, under *Koontz*, a monetary concession—does. Design restrictions would still generally appear to fall under the category of use restrictions rather than exactions and thus be subject to the more equitable *Penn Central* balancing test where success on the merits is unlikely.²⁴³

The two types of conditions likely to draw most scrutiny (and need for clever nexus studies) are affordable housing fees and adjudicatively imposed community benefit demands. The first category, affordable housing fees, was previously protected as legislatively imposed, but now is open to renewed scrutiny post-*Sheetz*.²⁴⁴ Affordable housing fees can be significant, are plausibly monetary exactions under *Koontz*, and are typically more calibrated to the city's affordable housing funding gap than to the new development's marginal impact on affordable housing demand.²⁴⁵ While the exact fate of each fee would depend on the nexus study's success in clearly tying the

²⁴¹ Whitney Prout, *CAA Takes Fight over Rent Control to Massachusetts High Court*, CAL. APARTMENTS ASS'N (Apr. 21, 2026), <https://caanet.org/caa-takes-fight-over-rent-control-to-massachusetts-high-court/>.

²⁴² Cf. *Sheetz v. County of El Dorado (Sheetz II)*, 335 Cal. Rptr. 3d 316, 337-52 (Cal. Ct. App. 2025) (upholding the county's fee on remand after concluding the traffic studies supported nexus).

²⁴³ See *Lingle v. Chevron*, 544 U.S. at 538-39, 546-48 (U.S. 2005); *Penn Cent. Transp. Co. v. City of New York*, 438 U.S. 104, 124 (1978). Success is improbable because it seems challenging to say that design restrictions destroy *all* economic use. Aesthetic regulation seems more like the kind of "public program adjusting the benefits and burdens of economic life" Justice Brennan was sheltering. *Id.* Aesthetic and design regulations also rest on a long-recognized land-use interest. See *Berman v. Parker*, 348 U.S. 26, 33 (1954). *Vill. of Belle Terre*, 416 U.S. at 9. But see Nimrita K. Singh, *The Right Thing in the Wrong Place? Unstable Dicta and Aesthetics' Gradual Incursion Into the Traditional Police Power Justifications*, 111 VA. L. REV. 905 (2025) (questioning the doctrinal foundation for aesthetics as an independent police-power justification). Cf. Matthew H. Winesett, *A Taking by Another Name: Challenging Historic Preservation After Cedar Point*, 57 COLUM. J.L. & SOC. PROBS. 345, 382-88 (2024) (arguing that some historic preservation restrictions may be vulnerable under *Cedar Point*'s physical-appropriation framework).

²⁴⁴ Such fees are also typically imposed in lieu of property deed restrictions, which formally constitute a transfer of a "property interest" to the government.

²⁴⁵ Affordable housing nexus studies generally calculate impact through a multi-step chain connecting new construction to induced employment and then to estimated affordable-housing demand. Structurally, the fee equals units multiplied by the per-unit subsidy gap, divided by project size. Several features of that method sit uneasily with *Sheetz*: the subsidy gap is a cost-side figure that rises with land and construction costs even when the impact chain is unchanged; the chain itself depends on speculative inputs that compound uncertainty; and adopted fees are often set far below the calculated maximum after a separate feasibility analysis. The last step suggests that nexus arithmetic often functions more as a ceiling for politically feasible fees, producing large cross-jurisdictional variation. See TERNER CTR. FOR HOUS. INNOVATION, IMPROVING IMPACT FEES IN CALIFORNIA: RETHINKING THE NEXUS STUDY REQUIREMENT 3, 7-8 (Nov. 2020), https://turnercenter.berkeley.edu/wp-content/uploads/2020/12/Nexus_Studies_November_2020.pdf (noting wide methodological variation in nexus studies and recommending feasibility analysis and closer calibration to incremental costs).

amount of fees imposed on the project to that project's marginal impact, such fees are theoretically newly vulnerable under recent doctrinal changes.

Community benefits packages raise even sharper concerns.²⁴⁶ A striking example comes from Rialto, where the council rezoned land to allow a 470,000-square-foot warehouse despite denial recommendations from planning staff. The council approved the project after the applicant offered a \$13 million community benefit at the dais.²⁴⁷ Nearly all of the package consisted of off-site payments to third parties, like \$5M to the Rialto Unified School District to build a new charter high school, \$2.5M to the Rialto Police Department for new station construction, and \$1M to the National Latina Business Women Association. San Francisco's 5M project at 925 Mission Street shows a parallel pattern in a different posture. There, staff recommended approval, and the Board of Supervisors finalized a development agreement imposing roughly \$42 million in new off-site and third-party conditions, including affordable-housing funds for separate parcels, park-shadow mitigation, and \$800,000 (raised from \$300,000 by floor amendment) for the Filipino Cultural Heritage District.²⁴⁸

Note that many community benefit agreements should remain outside the exactions inquiry. Under a "voluntariness" theory, they are treated instead as bargained-for contracts.²⁴⁹ Yet it is not obvious that all of the conditions imposed on projects in the city council corpus arrived as part of a formal development agreement.²⁵⁰ Moreover, many of these development agreements—especially those with council-imposed amendments in the middle of heated approval hearings—may push the boundaries of what "voluntariness" requires.²⁵¹ In Rialto, the \$13 million package

²⁴⁶ See Vicki Been, *Community Benefit Agreements: A New Local Government Tool or Another Variation on the Exactions Theme?*, 77 U. CHI. L. REV. 5 (2010).

²⁴⁷ City of Rialto, City Council Meeting (Apr. 25, 2023) (one councilmember noting that their motion was contingent on the developer "com[ing] back with an approved form of community benefits"); City of Rialto, City Council Meeting (June 13, 2023) (a dissenting councilmember objecting that the package was "blood money" and that the city had "been bought").

²⁴⁸ See City and County of San Francisco, Board of Supervisors Meeting (Nov. 17, 2015); Development Agreement Between the City and County of San Francisco and 5M Project (Dec. 17, 2015), https://default.sfplanning.org/devagreements/5M_Development_Agreement-12-17-2015.pdf. Off-site payments to non-victim third parties have drawn analogous criticism in other settings. The Department of Justice's practice of including third-party donations in settlement agreements was prohibited by regulation in 2020, see 28 C.F.R. § 50.28 (2020), rescinded in 2022. Class-action cy pres awards have attracted a parallel critique. See Martin H. Redish, Peter Julian & Samantha Zyontz, *Cy Pres Relief and the Pathologies of the Modern Class Action*, 62 FLA. L. REV. 617 (2010).

²⁴⁹ See *Santa Margarita Area Residents Together v. SLO County*, 84 Cal. App. 4th 221 (2000) (upheld DAs as a valid exercise of police power, framed as contracts); *Leroy Land Development v. Tahoe Regional Planning Agency*, 939 F.2d 696 (9th Cir. 1991) (*Nollan* inapplicable to conditions accepted in a voluntary settlement).

²⁵⁰ See, e.g., City of San Jose, City Council Meeting (June 29, 2021) (approving the Berryessa Flea Market rezoning with an escalated vendor-transition fund with no development agreement).

²⁵¹ To be sure, ordinary contract principles would hold that such bargains are still far from "duress." See Restatement (Second) of Contracts §§ 175–76; David L. Callies & Julia A. Tappendorf, *Unconstitutional Land Development Conditions and The Development Agreement Solution*, 51 CASE W. RES. L. REV. 663 (2001) (canonical view that development agreements create a safe harbor for the voluntariness inquiry). But the exactions doctrine has developed precisely under the premise that government leverage in rationing benefits seems to raise different issues of power than in a typical contractual agreement. The insulation of rezoning conditions has traditionally rested on an explicit voluntariness rationale. See, e.g., *Chrismon v. Guilford County*, 322 N.C. 611 (1988) (distinguishing permissible "conditional use zoning" where the

materialized only after staff and the Planning Commission had recommended denial, and entered the record mid-hearing as the explicit pivot for the swing vote. There was no underlying development agreement, no vested rights flowing back to the applicant, and no temporal separation between the proffer and the approval it secured. Under *Koontz*, an “offer” structured this way—accepted at the price of avoiding an otherwise likely denial—begins to look less like a contract and more like the extortionate demand the unconstitutional conditions doctrine is designed to reach. Even in San Francisco, where there was a negotiated development agreement, the Board appeared to enlarge conditions at the last moment of approval. Condition-setting contemporaneous with the discretionary vote—and unilateral by the government—starts to look a bit like the leverage structure *Nollan*, *Dolan*, and now *Sheetz* target.

Thus far, this section has taken takings law as it stands, and on its own terms the doctrine has a defensible core. Rialto-style demands—individualized, adjudicative, contemporaneous with a discretionary vote—start to look like the leverage structure *Nollan* and *Dolan* were built to police, even according to the doctrine’s sharpest critics.²⁵² Yet even with its defensible core, takings litigation is a poor instrument for taming participation-driven conditioning for several reasons. First, its enforcement structures likely do not match the political and economic incentives of development. Developers who hope to be repeat players before the same council are unlikely to judge a courtroom win worth the political cost of suing the city; indeed, the canonical exactions plaintiffs have been more one-shot landowners.²⁵³ The doctrine therefore binds mainly through anticipatory compliance, and the compliance it elicits is the nexus study—the consultant-prepared analysis meant to justify a fee’s connection to a project’s impacts—a document of dubious analytical value and real cost to cities.²⁵⁴ Second, it encourages the further development of a doctrine that has already exceeded its constitutional footing, as eloquently argued by Lee Anne Fennell and Timothy Mulvaney.²⁵⁵ In their account, the Court has turned a nuanced inquiry seeking to combat individualized government pressure where physical threats to exclusion were at stake into a searching test applied in a vast array of situations, irrespective of whether a constitutional right is actually at stake.²⁵⁶ Third, it places the courts in the position of gatekeeping new development, a legislative task which strains against their institutional competence and also a task which demands a swiftness and efficiency that the courts cannot deliver. Fourth, for some types of development with clear negative externalities on communities, enabling some degree of bargaining

owner proposes the conditions from impermissible “contract zoning”). But in some states, this line seems to be eroding. For example, in 2016, Virginia reformed its legislation to restrict localities from requesting or accepting landowner proffers that were not specifically attributable to the project, enacted on the premise that nominally voluntary proffers were functionally demanded. Va. Code § 15.2-2303.4. The state’s supreme court recently held that even a formally voluntary cash proffer attached to a legislative rezoning is subject to the unconstitutional conditions doctrine. *Board of Supervisors of Albemarle County v. Route 29, LLC*, 301 Va. 134, 146-50 (2022).

²⁵² Lee Anne Fennell & Timothy M. Mulvaney, *The Exactions Illusion: Sheetz’s Missing Dissent*, 135 *YALE L.J.* 1143 (2025).

²⁵³ See, e.g., *Sheetz*, 601 U.S. at 270-72 (2024) (describing the individual plaintiff trying to build a single-family manufactured home).

²⁵⁴ See Daniel E. Ho et al., *The Abundance of Reports and Incapacity of States*, *YALE J. REG.* (2026, forthcoming) (finding that many mandated reports are not produced and those that are are often not read).

²⁵⁵ Fennell & Mulvaney, *supra* note 252 at 1170-93.

²⁵⁶ *Id.* at 1188-89 (“Property, on its own, is not a [constitutional] right ...[the right] attaches only to ‘taken’ property.”)

would seem to be efficient in a Coasian sense; governments should be selective about when they proscribe such bargaining.²⁵⁷

To be clear, this is not to excuse cities' practice of leveraging new development to address fiscal gaps. Development exactions should not be used to do the work of taxation while evading the political and doctrinal discipline normally associated with taxation. Public economics makes clear that raising revenue is costly because taxes change behavior, and the design question is how to raise a given amount of money while minimizing those distortions.²⁵⁸ The same basic principle underlies the modern optimal-tax literature's emphasis on using broad, general tax instruments to pursue revenue and distributional goals rather than layering selective charges onto particular goods or transactions, let alone individual firms. Development fees tax the production of new housing, often at the margin where projects are barely feasible, rather than the broader base of residents, landowners, and firms that benefit from the public goods being funded. The result is a fiscal instrument that is both inefficient and politically evasive. It raises the cost of new supply, discourages marginal projects, and shifts the burden of general public goods onto future residents and the developers who must obtain discretionary permission to build.²⁵⁹ In other words, putting so much of the fiscal burden on new developers is simply bad economics and bad governance. But attempting to regulate that process through the Constitution is worse.

2. *Voice vs. Veto*

Public participation can have particular legal significance in land-use bargaining by transforming hearings into records for future litigation. The chief concern has been environmental review statutes, which create multiple opportunities to convert procedural defects into lawsuits. At the federal level, this concern centers on NEPA, the procedural framework governing environmental review of major federal actions.²⁶⁰ Many states have "mini-NEPAs" that extend

²⁵⁷ A compelling category of development for Coasian bargaining is developments like windfarms with obvious negative externalities on nearby communities or properties. See Zane Kashner, *Building with Externalities: Local Governments and Wind Farms* 1-5, 42-43 (Jan. 2026, unpublished manuscript). Where courts block side payments between developers and cities, a city retains full discretion to deny any project with net-negative local effects, however large its external benefits. Developer payments are one of the few mechanisms that give weight to the interests of broader communities that might benefit from the project. The necessity of such bargaining may be less obvious, though, for new *housing* development, which in some cases would be expected to *raise* new home values (due to an amenity effect exceeding the supply effect), as has been documented in the construction of new Low-Income Housing Tax Credit projects. See Richard Voith et al., *Effects of Concentrated LIHTC Development on Surrounding House Prices*, 56 J. HOUSING. ECON. 101838 (2022) (finding that LIHTC developments generate positive price spillovers in surrounding neighborhoods).

²⁵⁸ See Peter A. Diamond & James A. Mirrlees, *Optimal Taxation and Public Production I: Production Efficiency*, 61 AM. ECON. REV. 8, 8-9, 24 (1971) (explaining that optimal taxation includes "no intermediate good taxes" where such taxes would prevent production efficiency).

²⁵⁹ This is not to say, of course, that project-level fees are indefensible when they require development to internalize infrastructure costs that it actually causes. See Vicki Been, *Impact Fees and Housing Affordability*, 8 CITYSCAPE 139, 143-45 (2005); Jan K. Brueckner, *Infrastructure Financing and Urban Development: The Economics of Impact Fees*, 66 J. PUB. ECON. 383 (1997); Kashner, *supra* note 257 (finding that policies permitting targeted payments to local governments for windfarm disamenities can increase welfare).

²⁶⁰ See 42 U.S.C. § 4332(2)(C) (requiring environmental-impact statements for "major Federal actions").

similar review to broader categories of projects.²⁶¹ California's CEQA is perhaps the most notable example. It appears to generate more litigation than NEPA—roughly 115 NEPA cases are filed each year nationally, compared with around 200 CEQA cases annually in California alone.²⁶²

The exact role of such lawsuits in the broader building crisis is sharply contested. One side emphasizes that environmental lawsuits are rare relative to the universe of projects and therefore cannot be a primary bottleneck.²⁶³ Critics respond that litigation matters less through direct invalidation than through its timing, uncertainty, and deterrent effect on marginal projects.²⁶⁴ Both sides have their merits: while environmental litigation is statistically rare compared to the volume of all proposed development, the threat of it likely increases uncertainty, costs, and delays for a variety of stakeholders, city approvers and project proponents alike.

Both NEPA and CEQA have been significantly curtailed recently in response to these concerns. At the federal level, retrenchment has come from both the courts and the executive. The D.C. Circuit held that CEQ never had authority to issue its government-wide NEPA regulations, the new administration rescinded them wholesale, the Supreme Court in *Seven County* narrowed the required scope of review and the judicial role in policing it, and agencies rewrote their NEPA procedures to match.²⁶⁵ In June 2025, California enacted a new CEQA exemption for qualifying infill housing projects.²⁶⁶ Whether either retrenchment was warranted turns on where environmental review does useful work. The case is strongest where environmental stakes are high and uncertain and the analysis feeds back into the decision, and weakest where impacts are bounded

²⁶¹ See Greta Raser, *States as Laboratories: State Environmental Policy Acts Are Tools to Address Pressing Environmental Harms*, VT. L. REV. BLOG (Dec. 5, 2023), <https://lawreview.vermontlaw.edu/states-as-laboratories-state-environmental-policy-acts-are-tools-to-address-pressing-environmental-harms/> (noting that fifteen states and the District of Columbia have enacted state environmental policy acts, or “little-NEPAs,” and identifying those states).

²⁶² Compare John C. Ruple & Kayla M. Race, *Measuring the NEPA Litigation Burden: A Review of 1,499 Federal Court Cases*, 50 ENVTL. L. 479, 501 tbl.3 (2020) (reporting an annual average of 115 NEPA cases 2001-2013), with JANET SMITH-HEIMER & JESSICA HITCHCOCK, CEQA BY THE NUMBERS: MYTHS & FACTS 11–12 (2023), <https://rosefdn.org/wp-content/uploads/CEQA-By-the-Numbers-2023-5-5-23-Final.pdf> (finding that California averaged 192 CEQA lawsuits annually 2002-2021).

²⁶³ See David E. Adelman, Sommer Engels, Andrew Mergen & Jamie Pleune, *Dispelling the Myths of Permitting Reform and Identifying Effective Pathways Forward*, 55 ENV'T L. REP. 10038, 10039, 10044–45 (2025); Smith-Heimer & Hitchcock, *supra* note 262.

²⁶⁴ See Brooks and Liscow, *supra* note 124 at 22-23; Jennifer Hernandez, *In the Name of the Environment Part III: CEQA, Housing, and the Rule of Law*, 26 CHAP. L. REV. 57, 58, 100, 147 (2022); Zambrano, *supra* note 122.

²⁶⁵ See *Marin Audubon Soc'y v. FAA*, 121 F.4th 902, 906-15 (D.C. Cir. 2024) (holding that NEPA authorizes CEQ only to advise the President and that its binding regulations were ultra vires); Exec. Order No. 14,154, 90 Fed. Reg. 8,353 (Jan. 20, 2025) (revoking the 1977 executive order on which CEQ's claimed rulemaking authority rested); Removal of National Environmental Policy Act Implementing Regulations, 90 Fed. Reg. 10,610 (Feb. 25, 2025) (interim final rule rescinding all CEQ NEPA regulations); *Seven County*, 605 U.S. at 177-79; Harvard Law Sch. Env't & Energy L. Program, *Agencies Significantly Narrowed NEPA Requirements, Changes Effective Immediately* (last updated Apr. 3, 2026), <https://eelp.law.harvard.edu/tracker/rollback-agencies-significantly-narrowed-nepa-requirements-changes-effective-immediately/>.

²⁶⁶ See Cal. Pub. Res. Code § 21080.66(a); see also Eric Biber, Christopher S. Elmendorf, Nicholas Marantz & Moira O'Neill, *Just Look at the Map: Bounding Environmental Review of Housing Development in California*, 54 ENV'T L. 221, 233–34 (2024) (arguing for geographically bounded limits on CEQA review of housing development in infill-priority areas).

and predictable. The two reforms fall on opposite ends of that scale. *Seven County* and the rescission of CEQ's coordination regulations cut review across all major federal actions at once, pulling scrutiny from the high-impact, high-uncertainty actions where it does the most work. California's infill exemption targets the opposite category. Infill sits on already-developed, infrastructure-served land, which bounds its marginal environmental burden from the start.²⁶⁷ CEQA's no-build baseline also mismeasures that burden, since the realistic counterfactual to a blocked infill project is the same housing demand absorbed by fringe development, with higher per-unit driving and emissions.²⁶⁸ Review of infill is thus both least necessary and most distortive, which is what makes the exemption defensible. California's exemption is a well-aimed first step, though unblocking housing will require reforming the participatory and litigation channels it leaves standing.

3. Preemption

The reforms canvassed so far work within the local process: who participates, when, and to what litigable effect. Preemption operates differently by taking the project-by-project decision away from the local process altogether. It is also a mechanism for effectuating my earlier proposal to move the participatory aspects of the planning decision upstream.

My proposal is relatively straightforward: an urban housing project that satisfies objective zoning standards should proceed to a building permit without discretionary review or the hearings that attach to it.²⁶⁹ In other words, nearly all infill housing should be buildable by right.²⁷⁰ By-right approval is the best instrument because it removes the precise stage at which participation's costs

²⁶⁷ Biber et al., *supra* note 266 at 233-34.

²⁶⁸ *Id.* at 287.

²⁶⁹ One objection is that by-right approval only matters where the underlying zoning already permits enough housing. But that objection shows that by-right approval and upzoning are complements, not substitutes. States and cities have already begun expanding the zoning envelope in major housing markets. *See, e.g.*, Cal. Gov't Code § 65912.157(a) (i.e., SB 79, which made qualifying housing developments an "allowed use" near transit); Mass. Gen. Laws ch. 40A, § 3A(a)(1) (requiring MBTA communities to create at least one district of reasonable size in which multifamily housing is permitted "as of right"); S.F. Planning, *S.F. Family Zoning Plan & Rezoning Capacity Calculations* 1-2 (2025), <https://sfplanning.org/sites/default/files/documents/citywide/FZP-Factsheet-Capacity-Calculations.pdf> (stating that San Francisco's Family Zoning Plan was calibrated to create realistic capacity for 36,200 new units); L.A. City Planning, *Citywide Housing Incentive Program (CHIP) Ordinance 2* (updated Oct. 17, 2024), https://planning.lacity.gov/odocument/a38fe378-2c4b-4260-807e-af66a053a95b/FD_CHIP_Fact_Sheet.pdf (stating that Los Angeles identified a need to update zoning regulations to allow 255,433 additional units); L.A. City Planning, *Housing Element Rezoning Program Takes Effect February 11, 2025* (Feb. 11, 2025), <https://planning.lacity.gov/plans-policies/community-plan-update/housing-element-rezoning-program-news/housing-element-0> (describing adoption and effective date of implementing ordinances). And because zoned capacity converts into actual housing only gradually, removing discretionary approval remains important even after rezoning. *See* Leah Brooks & Jenny Schuetz, *Does Housing Growth in Washington, D.C., Reflect Land Use Policy Changes?*, 25 CITYSCAPE 203, 204-06 (2023) (finding that most 2000-2020 D.C. housing growth was not tied to large-scale neighborhood rezonings); Vincent Rollet, *Zoning and the Dynamics of Urban Redevelopment* 4, 30 (Oct. 2025) (unpublished manuscript), https://vrollet.github.io/files/city_structure.pdf (estimating that an ambitious New York City upzoning would produce little effect on construction within ten years).

²⁷⁰ Localities might retain discretion for very large buildings. For example, California's most recent CEQA exemption only exempts projects from labor conditions up until 85 feet, but this seems like more of a labor negotiation than a clear safety benefit. *See* Cal. Pub. Res. Code § 21080.66.

concentrate. The delay, the conditioning, and the litigation-readiness documented earlier are products of project-by-project discretionary review.

State preemption to achieve this is theoretically appropriate because the consequences of local land-use choices have outgrown the boundary within which they are made. Zoning began as a tool for the local problem of controlling nuisances, like keeping the factory off the residential block. That is the rationale on which the Court upheld it in *Euclid*.²⁷¹ And that allocation fits the fiscal-federalist principle that authority should rest with the government whose boundaries contain the relevant effects.²⁷² But housing restrictions in productive metros have now been shown to impose costs far beyond city borders. Modern agglomeration economics argues that limiting housing in high-productivity regions misallocates labor across the national economy, while each locality still has reason to under-build because the benefits of new housing spread regionally and the costs—schools, infrastructure, congestion, and political backlash—remain local.²⁷³

In many ways, the dense lattice of participation the localist tradition prizes is the machinery through which concentrated local opposition turns a free-riding incentive into a working obstacle.²⁷⁴ The result is a quintessential collective-action failure, and the appropriate cure is an authority that can bind every jurisdiction at once.²⁷⁵ The claim that the regional consequences of local exclusion belong to a larger unit is, of course, not new. New Jersey's *Mount Laurel* line of cases held that the zoning power carries an affirmative obligation to provide a realistic opportunity for the municipality's fair share of regional housing need.²⁷⁶ Massachusetts, as another example, created remedies for housing developers through its anti-snob zoning laws under a similar logic.²⁷⁷

Preemption still makes local government scholars nervous, with the recent wave of state preemption being perceived as sweeping, punitive, and highly politically motivated.²⁷⁸ But housing preemption differs from the “new preemption” Richard Briffault criticizes. Laws barring municipal minimum-wage, paid-leave, firearm, and sanctuary ordinances often void local action without replacing it with a state scheme. California's housing laws do the opposite. They install a

²⁷¹ *Village of Euclid v. Ambler Realty Co.*, 272 U.S. 365, 387-88 (1926).

²⁷² See Wallace E. Oates, *An Essay on Fiscal Federalism*, 37 J. ECON. LIT. 1120, 1130-31 (1999).

²⁷³ See David Schleicher, *Stuck! The Law and Economics of Residential Stagnation*, 127 YALE L.J. 78, 84-86, 95-103, 114-17 (2017); Peter Ganong & Daniel Shoag, *Why Has Regional Income Convergence in the U.S. Declined?*, 102 J. URB. ECON. 76, 76-77 (2017).

²⁷⁴ See MANCUR OLSON, JR., *THE LOGIC OF COLLECTIVE ACTION: PUBLIC GOODS AND THE THEORY OF GROUPS* 2-3 (1965); Richard Briffault, *Localism and Regionalism*, 48 BUFF. L. REV. 1 (2000). Cf. Tiebout, *supra* note 60 (developing a local-sorting model premised on assumptions including mobility, information, many communities, no employment constraints, and no interjurisdictional spillovers).

²⁷⁵ Note that this is, after all, why we do not regulate pollution town by town. Most groundwater contamination, like most of a new building's effects, is felt locally. Yet we centralize its regulation anyway, predominantly between the federal and state governments. The matching principle I invoked above was in fact developed for exactly the structure of environmental spillover. See Henry N. Butler & Jonathan R. Macey, *Externalities and the Matching Principle: The Case for Reallocation Environmental Regulatory Authority*, 14 YALE L. & POL'Y REV. 23 (1996); John Infranca, *The New State Zoning: Land Use Preemption Amid a Housing Crisis*, 60 B.C. L. REV. 823, 824-26 (2019).

²⁷⁶ See *S. Burlington Cnty. N.A.A.C.P. v. Twp. of Mount Laurel (Mount Laurel I)*, 67 N.J. 151, 174, 187-90 (1975); *S. Burlington Cnty. N.A.A.C.P. v. Twp. of Mount Laurel (Mount Laurel II)*, 92 N.J. 158, 214-22 (1983).

²⁷⁷ See Mass. Gen. Laws ch. 40B, §§ 20-23.

²⁷⁸ Richard Briffault, *The Challenge of the New Preemption*, 70 STAN. L. REV. 1995, 1999-2002 (2018).

substantive state regime in place of local discretion, centered on regional housing targets allocated jurisdiction by jurisdiction and on mandatory, state-reviewed local housing plans. They are *re-regulatory* rather than merely deregulatory. In Chris Elmendorf’s terms, this form of preemption is more like an “intergovernmental compact.”²⁷⁹

California has made fragmentary preemption moves through over 100 state laws aimed at reducing barriers to housing development since 2017.²⁸⁰ Accessory dwelling units are now ministerial by default; SB 9 made duplexes and lot splits by-right on single-family parcels; SB 35 opened a streamlined ministerial path for multifamily affordable infill in jurisdictions that miss their housing target.²⁸¹ Yet preemption has arrived parcel type by parcel type and program by program, and often bundled with conditions heavy enough to blunt it.²⁸²

Evidence on the efficacy of by-right reforms is challenging to produce, especially in California, where the reforms arrived in a torrent, which makes it challenging to causally attribute any project’s fate to any one of them, and the most consequential reforms have only months of post-enactment data behind them. However, the reforms offer some evidence. For example, take-up of SB 35’s ministerial pathway to development was low. Only 11 percent of plausibly eligible projects and 15 percent of plausibly eligible units invoked it.²⁸³ Yet the projects that did invoke it were approved far faster than comparable conventional applications.²⁸⁴ Studying Los Angeles’s transit-oriented program, which let many large projects proceed by-right, Manville and coauthors found by-right approvals roughly 28% faster than discretionary ones, with markedly less variance.²⁸⁵ At the smaller end, the surge in accessory dwelling units after the state made them ministerial, from 8,000 to 35,000 units permitted a year, provides a suggestive sign of how much a removed discretionary gate can unlock.²⁸⁶

California’s experiments also offer some design lessons. The first is the cost of bundling. SB 35 paired its streamlined approval with a prevailing-wage requirement, and in California, prevailing wage raises per-unit costs by more than 20%. The likely result is that streamlining drew in few

²⁷⁹ Christopher S. Elmendorf, *Beyond the Double Veto: Housing Plans as Preemptive Intergovernmental Compacts*, 71 HASTINGS L.J. 79, 82-85 (2019).

²⁸⁰ BILL FULTON, DAVID GARCIA, BEN METCALF, CAROLINA REID & TRUMAN BRASLAW, TERNER CTR. FOR HOUS. INNOVATION, *NEW PATHWAYS TO ENCOURAGE HOUSING PRODUCTION: A REVIEW OF CALIFORNIA’S RECENT HOUSING LEGISLATION 1*, 16–23 app. A (Apr. 2023), <https://turnercenter.berkeley.edu/wp-content/uploads/2023/04/New-Pathways-to-Encourage-Housing-Production-Evaluating-Californias-Recent-Housing-Legislation-April-2023-Final-1.pdf>.

²⁸¹ *See id.* at 6-8.

²⁸² Note that this generalization is somewhat distinct from Elmendorf’s 2019 proposal. He is wary of complete preemption, but the costs I document concentrate at the project-by-project discretionary stage itself. Elmendorf, *supra* note 279.

²⁸³ Martin, *supra* note 177.

²⁸⁴ Developers of course selectively invoke SB 35. The empirical paper addresses this selection through covariate adjustment and matched comparisons, which substantially attenuate the speed gap.

²⁸⁵ Michael Manville, Paavo Monkkonen, Nolan Gray & Shane Phillips, *Does Discretion Delay Development? The Impact of Approval Pathways on Multifamily Housing’s Time to Permit*, 89 J. AM. PLAN. ASS’N 336, 336, 343–44 (2023).

²⁸⁶ Martin, *supra* note 177; Nicholas J. Marantz, Christopher S. Elmendorf & Youjin B. Kim, *Where Will Accessory Dwelling Units Sprout Up When a State Lets Them Grow? Evidence from California*, 25 CITYSCAPE 107, 108 (2023).

projects not already committed to those wages. At least 39 percent of the projects that used SB 35 appeared to be supported by government programs already carrying a prevailing-wage mandate. SB 35 thus may have worked on the intensive margin, speeding projects already in the pipeline, while doing little on the extensive margin.

The second lesson is that preemption only works if it is enforced.²⁸⁷ California's enforcement regime has divided the labor after many years of complaints about under-enforcement.²⁸⁸ The agency charged with pre-litigation enforcement, the Department of Housing and Community Development (HCD), operates at volume. Its Housing Accountability Unit sent 454 technical assistance and enforcement letters to 312 jurisdictions in 2025, and well over 1,000 since its creation in 2021.²⁸⁹ But HCD is constrained by capacity and process. The division that reviews local housing plans is structurally separate from the one that pursues violations, and little of HCD's enforcement is focused on project-level violations.²⁹⁰ Project-level enforcement appears to fall instead to philanthropically funded nonprofits like the California Housing Defense Fund (CalHDF), which monitors jurisdictions through an AI tool, files written comments to preserve administrative remedies, and litigates a handful of cases a year with a staff of two attorneys.²⁹¹ In 2025, CalHDF sent 583 letters, two-thirds of which invoked the Housing Accountability Act on behalf of specific projects, and a quarter pressed cities to conform local ordinances to new state ADU law.²⁹² Of 50 cities CalHDF challenged on noncompliant ADU ordinances in the first half of 2025, 24 amended them in response.²⁹³

Where full by-right is politically out of reach, states should also consider pre-approving certain plans to develop housing. Pre-approved plan sets are designed by a jurisdiction in advance; a builder who adopts one skips most project-level review, which compresses the timeline without removing discretion wholesale. The state would have to impose restrictions on how much these pre-approved plans can vary and set strict deadlines for their provision (likely as part of the current

²⁸⁷ See, e.g., Christopher S. Elmendorf, Eric Biber, Paavo Monkkonen & Moira O'Neill, *Making It Work: Legal Foundations for Administrative Reform of California's Housing Framework*, 47 *ECOLOGY L. Q.* 973, 996-99 (2020).

²⁸⁸ See Ben Metcalf, Managing Dir., Turner Ctr. for Hous. Innovation, *Testimony Before the Little Hoover Commission: Hearing on the State's Response to California's Housing Crisis* 4-5 (Sept. 23, 2021), <https://turnercenter.berkeley.edu/wp-content/uploads/2021/10/Little-Hoover-Hearing-Sept-23-2021-Metcalf-Testimony.pdf> (describing HCD's prior compliance-monitoring efforts as often ad hoc, observing that the state had brought only one enforcement action during the preceding decade, and explaining that HCD relied heavily on third parties to identify violations).

²⁸⁹ Author's calculations from Technical Assistance and Enforcement Letters Dashboard, Cal. Dep't of Hous. & Cmty. Dev., <https://www.hcd.ca.gov/hau/enforcement-letters> (last visited July 15, 2026) (filtering letter dates to January 1 through December 31, 2025, and counting 454 letters sent to 312 unique jurisdictions).

²⁹⁰ Author's calculations from CalHDF's public letter postings and HCD's Technical Assistance and Enforcement Letters Dashboard, <https://www.hcd.ca.gov/hau/enforcement-letters>.

²⁹¹ Interview with Dylan Casey, Exec. Dir., Cal. Hous. Def. Fund (Jan. 2026) (notes on file with author); *Mission and Staff*, CAL. HOUS. DEF. FUND, <https://calhdf.org/about-us/>.

²⁹² Author's calculations from 583 enforcement letters sent by the California Housing Defense Fund in 2025 (letters and coding on file with author).

²⁹³ James M. Lloyd, *CalHDF Midyear Enforcement Report*, CAL. HOUS. DEF. FUND (July 28, 2025), <https://calhdf.org/calhdf-midyear-enforcement-report/>.

housing element plan). Pre-approved plans could help even under a by-right regime by lowering barriers to entry for smaller builders who cannot carry a long entitlement.

Conclusion

Local participation in land use decisions sits at the center of an increasingly urgent question: how can government remain open to those it governs and still build? Participation allows residents to express their preferences, places officials in public view, and sometimes transmits concrete information that thinly staffed local governments would otherwise miss. Yet those values are poorly served by concentrating the thickest participatory process at the point where one project, one parcel, and one applicant have already become the object of organized opposition. The novel transcript evidence this Article has marshaled shows the mismatch. Public comment is scarce, skewed, and only thinly consumed by decisionmakers; outright project denial is rare, but participation still matters through delay, conditioning, and the record for litigation.

Local participation should be strongest where government chooses the rules that will govern whole classes of projects. At that stage, cities should invest more in representativeness, information quality, and structured deliberation. Once those rules have been set, compliant projects should move through ministerial channels, with resident input reserved for defined factual questions and post-entitlement implementation issues such as construction management, access, and safety. That design preserves voices while stripping away (some of) the veto.

Legal reform also has a natural limit. Most housing projects are for-profit. And a project only pencils when expected income can cover the required return on the full costs of production such as hard costs, soft costs, land, and the time and uncertainty that scale each of these components. Participatory structures directly affect time and uncertainty through delay, risk, fees, litigation exposure, and the scarcity value of buildable land. They have less direct effects on other key elements, like labor, materials, interest rates, macroeconomic cycles, construction technology, and investor risk tolerance. Future work should measure each of these terms with more care, identify which margins actually bind in different markets, and discipline the ambition of legal reform by the size of the housing-supply effects those reforms can plausibly produce.

The broader lesson is that procedure should be designed around what it is for. Local participation has too often been treated as a general-purpose good, appended to decisions because openness feels democratically safe. The evidence here suggests a more demanding view. Participation is valuable when it provides representative and pluralist viewpoints, surfaces novel information, enables accountability, and honors the dignity of being heard. It becomes costly when it converts diffuse public decisions into serial opportunities for project-specific leverage. A better participatory state would incorporate more deliberate and representative upstream democracy, fewer downstream veto points, and a legal architecture to let cities hear their residents without making housing depend on who has the time to show up.